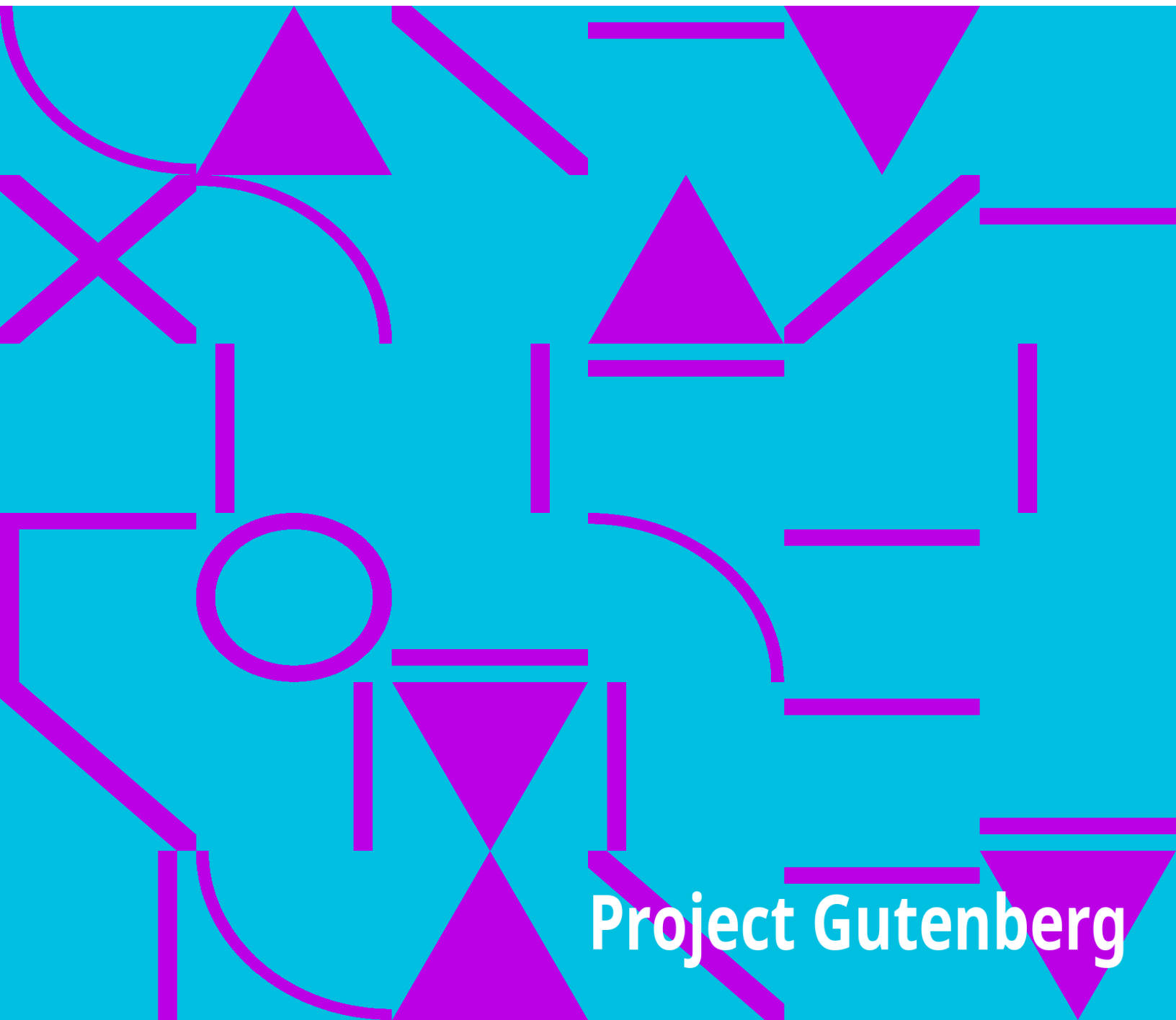


James VI and the Gowrie Mystery

Andrew Lang

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Andrew Lang

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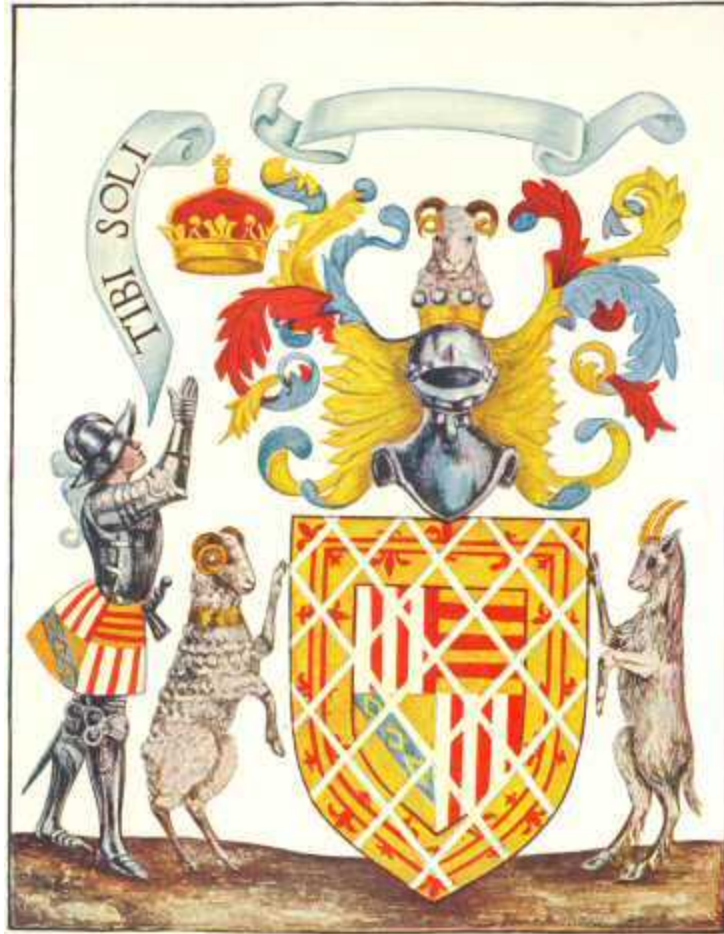
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JAMES VI AND THE GOWRIE MYSTERY

BY
ANDREW LANG

WITH GOWRIE'S COAT OF ARMS IN COLOUR, 2 PHOTOGRAVURE PORTRAITS
AND OTHER ILLUSTRATIONS

LONGMANS, GREEN, AND CO.
39 PATERNOSTER ROW, LONDON
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1902

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TO
THE LADY CECILY BAILLIE-HAMILTON
THIS INQUIRY
IS GRATEFULLY DEDICATED

INTRODUCTION

An old Scottish lady, four generations ago, used to say, 'It is a great comfort to think that, at the Day of Judgment, we shall know the whole truth about the Gowrie Conspiracy at last.' Since the author, as a child, read 'The Tales of a Grandfather,' and shared King Jamie's disappointment when there was no pot of gold, but an armed man, in the turret, he had supposed that we do know all about the Gowrie Conspiracy, that it was a plot to capture the King, carry him to Fastcastle, and 'see how the country would take it,' as in the case of the Gunpowder Plot. But just as Father Gerard has tried to show that the Gunpowder affair may have been Cecil's plot, so modern historians doubt whether the Gowrie mystery was not a conspiracy by King James himself. Mr. Hume Brown appears rather to lean to this opinion, in the second volume of his 'History of Scotland,' and Dr. Masson, in his valuable edition of the 'Register of the Privy Council,' is also dubious. Mr. Louis Barbé, in his 'Tragedy of Gowrie House,' holds a brief against the King. Thus I have been tempted to study this 'auld misterie' afresh, and have convinced myself that such historians as Sir Walter Scott, Mr. Frazer Tytler, and Mr. Hill Burton were not wrong; the plot was not the King's conspiracy, but the desperate venture of two very young men. The precise object remains obscure in detail, but the purpose was probably to see how a deeply discontented Kirk and country 'would take it.'

In working at this fascinatingly mysterious puzzle, I have made use of manuscript materials hitherto uncited. The most curious of these, the examinations and documents of the 'country writer,' Sprot, had been briefly summarised in Sir William Fraser's 'Memorials of the Earls of Haddington.' My attention was drawn to this source by the Rev. John Anderson, of the General Register House, who aided Sir William Fraser in the compilation of his book. The Earl of Haddington generously permitted me to have copies made of the documents, which Lady Cecily Baillie-

Hamilton was kind enough to search for and rediscover in an enormous mass of documents bequeathed by the learned first Earl.

On reading the Calendars of the Hatfield MSS. I had observed that several letters by the possible conspirator, Logan of Restalrig, were in the possession of the Marquis of Salisbury, who was good enough to permit photographs of some specimens to be taken. These were compared, by Mr. Anderson, with the alleged plot-letters of Logan at Edinburgh; while photographs of the plot-letters were compared with Logan's authentic letters at Hatfield, by Mr. Gunton, to whose acuteness and energy I owe the greatest gratitude. The results of the comparison settle the riddle of three centuries.

The other hitherto unused manuscripts are in no more recondite place than the Record Office in London, and I do not know how they managed to escape the notice of previous writers on the subject. To Dr. Masson's 'Register of the Privy Council' I am indebted for the sequel of the curious adventure of Mr. Robert Oliphant, whose part in the mystery, hitherto overlooked, is decisive, if we accept the evidence—a point on which the reader must form his own opinion. For copies made at the Record Office I have to thank the care and accuracy of Miss E. M. Thompson.

To Mr. Anderson's learning and zest in this 'longest and sorest chase' (as King James called his hunt on the morning of the fatal August 5) I am under the deepest obligations. The allurements of a romantic conclusion have never tempted him to leave the strait path of historical impartiality.

I have also to thank Mr. Henry Paton for his careful copies of the Haddington MSS., extracts from the Treasurer's accounts, and other researches.

For permission to reproduce the picture of Fastcastle by the Rev. Mr. Thomson of Duddingston, I have to thank the kindness of Mrs. Blackwood-Porter. The painting, probably of about 1820, when compared with the photograph of to-day, shows the destruction wrought by wind and weather in the old fortalice.

My obligations to Sir James Balfour Paul (Lyon King of Arms) for information on points of Heraldry ought to be gratefully acknowledged.

Since this book was written, the author has had an opportunity to read an Apology for the Ruthvens by the late Andrew Bisset. This treatise is apt to escape observation: it is entitled 'Sir Walter Scott,' and occupies pp. 172–303 in 'Essays on Historical Truth,' long out of print. ^[0a] On many points Mr. Bisset agreed with Mr. Barbé in his 'Tragedy of Gowrie House,' and my replies to Mr. Barbé serve for his predecessor. But Mr. Bisset found no evidence that the King had formed a plot against Gowrie. By a modification of the contemporary conjecture of Sir William Bowes he suggested that a brawl between the King and the Master of Ruthven occurred in the turret, occasioned by an atrocious insult offered to the Master by the King. This hypothesis, for various reasons, does not deserve discussion. Mr. Bisset appeared to attribute the Sprot papers to the combined authorship of the King and Sir Thomas Hamilton: which our new materials disprove. A critic who, like Mr. Bisset, accused the King of poisoning Prince Henry, and many other persons, was not an unprejudiced historian.

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I. THE MYSTERY AND THE EVIDENCE

There are enigmas in the annals of most peoples; riddles put by the Sphinx of the Past to the curious of the new generations. These questions do not greatly concern the scientific historian, who is busy with constitution-making, statistics, progress, degeneration, in short with human evolution. These high matters, these streams of tendency, form the staple of history, but the problems of personal character and action still interest some inquiring minds. Among these enigmas nearly the most obscure, 'The Gowrie Conspiracy,' is our topic.

This affair is one of the haunting mysteries of the past, one of the problems that nobody has solved. The events occurred in 1600, but the interest which they excited was so keen that belief in the guilt or innocence of the two noble brothers who perished in an August afternoon, was a party shibboleth in the Wars of the Saints against the Malignants, the strife of Cavaliers and Roundheads. The problem has ever since attracted the curious, as do the enigma of Perkin Warbeck, the true character of Richard III, the real face behind 'The Iron Mask,' the identity of the False Pucelle, and the innocence or guilt of Mary Stuart.

In certain respects the Gowrie mystery is necessarily less attractive than that of 'the fairest and most pitiless Queen on earth.' There is no woman in the story. The world, of course, when the Ruthvens died, at once acted on the maxim, *cherchez la femme*. The woman in the case, men said, was the beautiful Queen, Anne of Denmark, wife of James VI. That fair and frivolous dame, 'very very woman,' certainly did her best, by her behaviour, to encourage the belief that she was the cause of these sorrows. Even so, when the Bonny Earl Moray—the tallest and most beautiful man in Scotland—died like a lion dragged down by wolves, the people sang:

He was a brave gallant,
And he rode at the ring,
And the Bonny Earl Moray,
He might have been the King.

He was a brave gallant,
And he rode at the glove,
And the Bonny Earl Moray
He was the Queen's love.

On one side was a beautiful Queen mated with James VI, a pedant and a clown. On the other side were, first the Bonny Earl, then the Earl of Gowrie, both young, brave, handsome, both suddenly slain by the King's friends: none knew why. The opinion of the godly, of the Kirk, of the people, and even of politicians, leaped to the erroneous conclusion that the young men perished, like Königsmarck, because they were beautiful and beloved, and because the Queen was fair and kind, and the King was ugly, treacherous, and jealous. The rumour also ran, at least in tradition, that Gowrie 'might have been the King,' an idea examined in Appendix A. Here then was an explanation of the slaying of the Ruthvens on the lines dear to romance. The humorous King Jamie (who, if he was not always sensible, at least treated his flighty wife with abundance of sense) had to play the part of King Mark of Cornwall to Gowrie's Sir Tristram. For this theory, we shall show, no evidence exists, and, in 'looking for the woman,' fancy found two men. The Queen was alternately said to love Gowrie, and to love his brother, the Master of Ruthven, a lad of nineteen—if she did not love both at once. It is curious that the affair did not give rise to ballads; if it did, none has reached us.

In truth there was no woman in the case, and this of course makes the mystery much less exciting than that of Mary Stuart, for whom so many swords and pens have been drawn. The interest of character and of love is deficient. Of Gowrie's character, and even of his religion, apart from his learning and fascination, we really know almost nothing. Did he cherish that strongest and most sacred of passions, revenge; had he brooded over it in Italy, where revenge was subtler and craftier than in Scotland? Did this passion blend with the vein of fanaticism in his nature? Had he been biding his time, and dreaming, over sea, boyish dreams of vengeance and

ambition? All this appears not improbable, and would, if true, explain all; but evidence is defective. Had Gowrie really cherished the legacy of revenge for a father slain, and a mother insulted; had he studied the subtleties of Italian crime, pondered over an Italian plot till it seemed feasible, and communicated his vision to the boy brother whom he found at home—the mystery would be transparent.



As to King James, we know him well. The babe ‘wronged in his mother’s womb;’ threatened by conspirators before his birth; terrified by a harsh tutor as a child; bullied; preached at; captured; insulted; ruled now by debauched favourites, now by godly ruffians; James naturally grew up a dissembler, and betrayed his father’s murderer with a kiss. He was frightened into deceit: he could be cruel; he became, as far as he might, a tyrant. But, though not the abject coward of tradition, James (as he himself observed) was never the man to risk his life in a doubtful brawl, on the chance that his enemies might perish while he escaped. For him a treachery of that kind, an affair of sword and dagger fights on staircases and in turrets and

chambers, in the midst of a town of doubtful loyalty, had certainly no attractions. Moreover, he had a sense of humour. This has been the opinion of our best historians, Scott, Mr. Tytler, and Mr. Hill Burton; but enthusiastic writers have always espoused the cause of the victims, the Ruthvens, so young, brave, handsome; so untimely slain, as it were on their own hearthstone. Other authors, such as Dr. Masson in our own day, and Mr. S. R. Gardiner, have abstained from a verdict, or have attempted the *via media*; have leaned to the idea that the Ruthvens died in an accidental brawl, caused by a nervous and motiveless fit of terror on the part of the King. Thus the question is unsettled, the problem is unsolved. Why did the jolly hunt at Falkland, in the bright August morning, end in the sanguinary scuffle in the town house at Perth; the deaths of the Ruthvens; the tumult in the town; the King's homeward ride through the dark and dripping twilight; the laying of the dead brothers side by side, while the old family servant weeps above their bodies; and the wailing of the Queen and her ladies in Falkland Palace, when the torches guide the cavalcade into the palace court, and the strange tale of slaughter is variously told, 'the reports so fighting together that no man could have any certainty'? Where lay the actual truth?

This problem, with which the following pages are concerned, is much darker and more complex than that of the guilty 'Casket Letters' attributed to Mary, Queen of Scots. The Queen did write these, in the madness of a criminal passion; or she wrote parts of them, the rest being garbled or forged. In either case, her motives, and the motives of the possible forgers, are distinct, and are human. The Queen was in love with one man, and hated another to the death; or her enemies desired to prove that these were her moods. Absolute certainty escapes us, but, either way, motives and purposes are intelligible.

Not so with the Gowrie mystery. The King, Mary's son, after hunting for four hours, rides to visit Lord Gowrie, a neighbour. After luncheon, that nobleman and his brother are slain, in their own house, by the King's attendants. The King gives his version of the events instantly; he never varies from it in any essential point, but the story is almost incredible. On the other hand, the slain men cannot speak, and only one of them, if both were innocent, could have told what occurred. But one of their apologists, at the time, produced a version of the events which is, beyond all doubt, boldly mendacious. It was easy to criticise and ridicule the King's version;

but the opposite version, hitherto unknown to historians, destroys itself by its conspicuous falsehoods. In the nature of the case, as will appear, no story accounting for such wild events could be easily credible, so extraordinary, motiveless, and inexplicable do the circumstances appear. If we try the theory that the King wove a plot, we are met by the fact that his plot could not have succeeded without the voluntary and vehement collaboration of one of his victims, a thing that no man could have reckoned on. If we adopt the idea that the victims had laid a trap for the King, we have only a vague surmise as to its aim, purpose, and method. The later light which seemed to fall on the affair, as we shall see, only darkens what was already obscure. The inconceivable iniquity of the Government, at a later date, reflects such discredit on all concerned on their side, that we might naturally, though illogically, be inclined to believe that, from the first, the King was the conspirator. But *that*, we shall find, was almost, or quite, a physical impossibility.

Despite these embroilments, I am, in this case, able to reach a conclusion satisfactory to myself, a thing which, in the affair of the Casket Letters and Queen Mary, I was unable to do. ^[7] There is no doubt, in my own mind, that the Earl of Gowrie and his brother laid a trap for King James, and fell into the pit which they had digged.

To what precise end they had plotted to seize the King's person, what they meant to do with him when they had got him, must remain matter of conjecture. But that they intended to seize him, I have no doubt at all.

These pages, on so old and vexed a problem, would not have been written, had I not been fortunate enough to obtain many unpublished manuscript materials. Some of these at least clear up the secondary enigma of the sequel of the problem of 1600. Different readers will probably draw different conclusions from some of the other documents, but perhaps nobody will doubt that they throw strange new lights on Scottish manners and morals.

The scheme adopted here is somewhat like that of Mr. Browning's poem, 'The Ring and the Book.' The personages tell their own stories of the same set of events, in which they were more or less intimately concerned. This

inevitably entails some repetition, but I am unable to find any plan less open to objection.

It must, of course, be kept in mind that all the evidence is of a suspicious nature. The King, if he were the conspirator, or even if innocent, had to clear himself; and, frankly, his Majesty's word was not to be relied upon. However, he alone was cross-examined, by an acute and hostile catechist, and that upon oath, though not in a court of justice. The evidence of his retinue, and of some other persons present, was also taken on oath, three months after the events, before a Parliamentary Committee, 'The Lords of the Articles.' We shall see that, nine years later, a similar Committee was deceived shamelessly by the King's Government, he himself being absent in England. But the nature of the evidence, in the second case, was entirely different: it did not rest on the sworn testimony of a number of nobles, gentlemen, and citizens, but on a question of handwriting, *comparatio litterarum*, as in the case of the Casket Letters. That the witnesses in 1600 did not perjure themselves, in the trial which followed on the slaughter of the Ruthvens, is what I have to argue. Next, we have the evidence, taken under torture, of three of the slain Earl's retainers, three weeks after the events. No such testimony is now reckoned of value, but it will be shown that the statements made by the tortured men only compromise the Earl and his brother incidentally, and in a manner probably not perceived by the deponents themselves. They denied all knowledge of a plot, disclaimed belief in a plot by the Earl, and let out what was suspicious in a casual way, without observing the import of their own remarks.

Finally, we have the evidence of the only living man, except the King, who was present at the central point of the occurrences. That this man was a most false and evasive character, that he was doubtless amenable to bribes, that he was richly rewarded, I freely admit. But I think it can be made probable, by evidence hitherto overlooked, that he really was present on the crucial occasion, and that, with all allowances for his character and position, his testimony fits into the facts, while, if it be discarded, no hypothesis can account for *him*, and his part in the adventure. In short, the King's tale, almost incredible as it appears, contains the only explanation which is not demonstrably impossible. To this conclusion, let me repeat, I am drawn by no sentiment for that unsentimental Prince, 'gentle King Jamie.' He was not the man to tell the truth, 'if he could think of anything

better.' But, where other corroboration is impossible, by the nature of the circumstances, facts corroborate the King's narrative. His version 'colligates' them; though extravagant they become not incoherent. No other hypothesis produces coherency: each guess breaks down on demonstrated facts.

II. THE SLAUGHTER OF THE RUTHVENS

In the month of August 1600 his Majesty the King of Scotland, James, sixth of that name, stood in more than common need of the recreation of the chase. Things had been going contrary to his pleasure in all directions. 'His dearest sister,' Queen Elizabeth (as he pathetically said), seemed likely 'to continue as long as Sun or Moon,' and was in the worst of humours. Her minister, Cecil, was apparently more ill disposed towards the Scottish King than usual, while the minister's rival, the Earl of Essex, had been suggesting to James plans for a military demonstration on the Border. Money was even more than normally scarce; the Highlands were more than common unruly; stories of new conspiracies against the King's liberty were flying about; and, above all, a Convention of the Estates had just refused, in June, to make a large grant of money to his Majesty. It was also irritating that an old and trusted servant, Colonel Stewart, wished to quit the country, and take English service against the Irish rebels. This gentleman, sixteen years before, had been instrumental in the arrest and execution of the Earl of Gowrie; the new young Earl, son of the late peer, had just returned from the Continent to Scotland, and Colonel Stewart was afraid that Gowrie might wish to avenge his father. Therefore he desired to take service in Ireland.

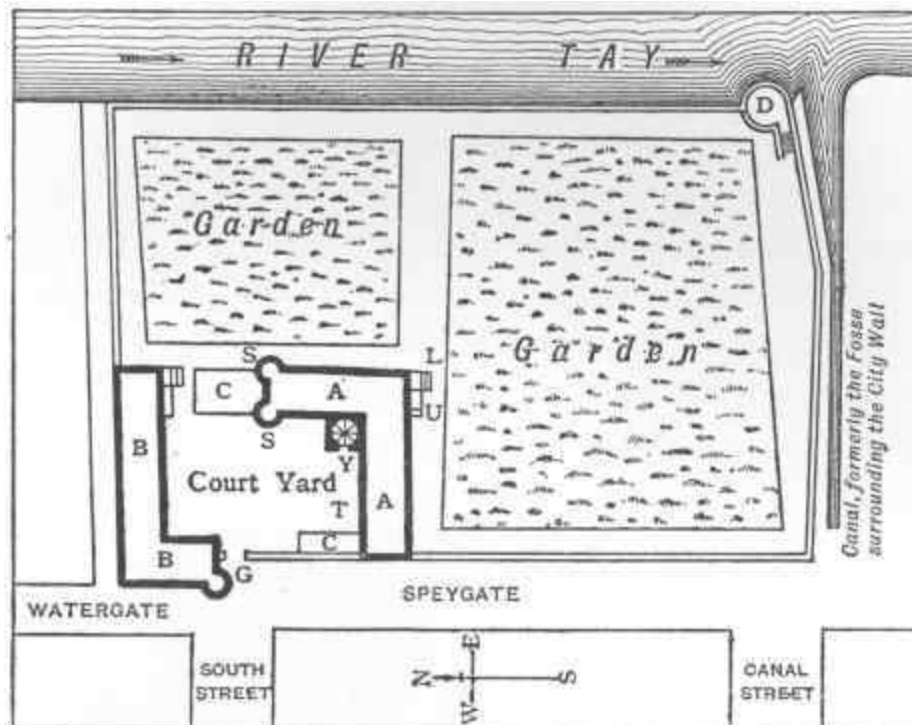
With all these frets, the King needed the refreshment of hunting the buck in his park of Falkland. He ordered his own hunting costume; it was delivered early in August, and (which is singular) was paid for instantly. Green English cloth was the basis of his apparel, and five ounces of silver decorated his second-best 'socks.' His boots had velvet tops, embroidered; his best 'socks' were adorned with heavy gold embroidery; he even bought a new horse. His gentlemen, John Ramsay, John Murray, George Murray, and John Auchmuty, were attired, at the Royal expense, in coats of green cloth, like the King. ^[12a]

Thus equipped, the Royal party rose early on the morning of Tuesday, August 5, left the pleasant house of Falkland, with its strong round towers that had lately protected James from an attack by his cousin, wild Frank Stewart, the Earl of Bothwell; and rode to the stables in the park; 'the weather,' says his Majesty, 'being wonderful pleasant and seasonable.' ^[12b] 'All the jolly hunt was there;' 'Tell True' and the other hounds were yelping at the limits of their leashes; the Duke of Lennox and the Earl of Mar, friends of James from his youth, and honourable men, were the chief nobles in the crowd; wherein were two or three of the loyal family of Erskine, cousins of Mar, and a Dr. Herries, remarkable for a club foot.

At the stables, hacks were discarded, hunters were led out, men were mounting, the King had his foot in the stirrup, when a young gentleman, the Master of Ruthven, rode swiftly up from the town of Falkland. He had trotted over, very early, from the town house, at Perth (some twelve or fourteen miles away), of his brother, the Earl of Gowrie. He was but nineteen years of age, tall, handsome, and brother of the Queen's favourite maid of honour, Mrs. Beatrix Ruthven. That he was himself one of the Gentlemen of the Household has often been said, but we find no trace of money spent for him in the Royal accounts: in fact he had asked for the place, but had not yet obtained it. ^[13] However, if we may believe the Royal word (which is a matter of choice), James 'loved the young Master like a brother.'

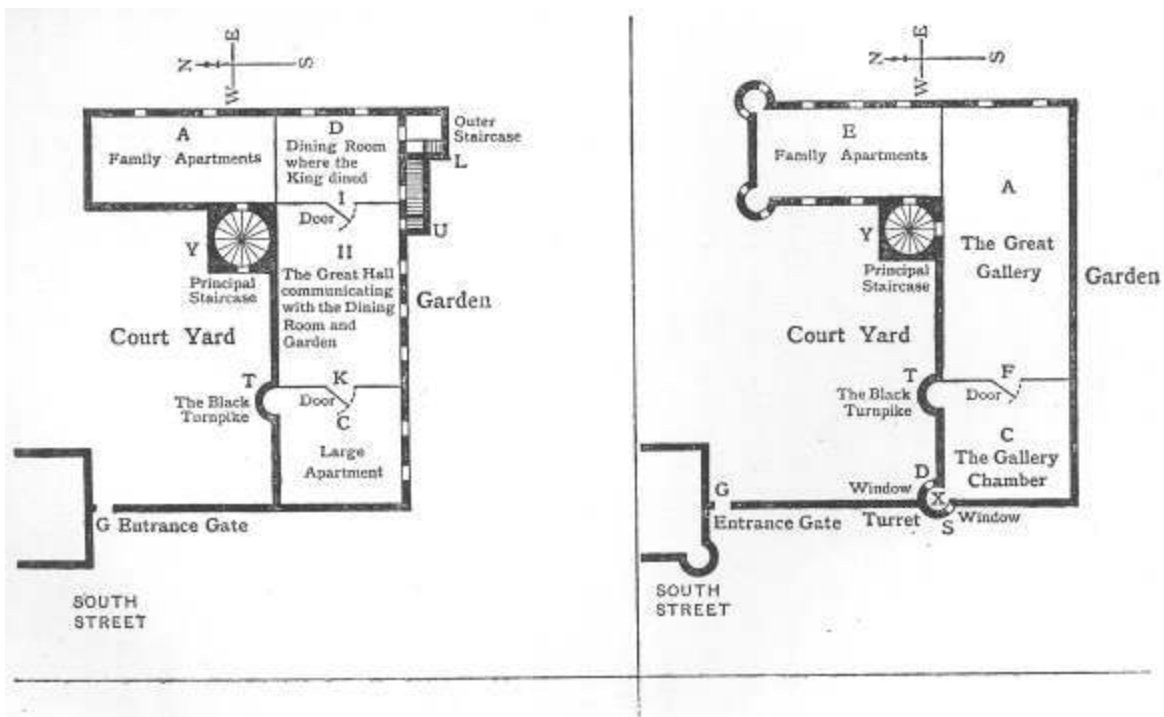
The Master approached the King, and entered into conversation with him. James's account of what he had to say must be given later. For the present we may be content with the depositions on oath, which were made later, at a trial in November, by the attendants of the King and other witnesses. Among these was the Duke of Lennox, who swore to the following effect. They hunted their buck, and killed him. The King, in place of trotting back to lunch at the House of Falkland (to which the progress of the chase had led the sportsmen round in a circle), bade the Duke accompany him to Perth, some twelve miles away, 'to speak with the Earl of Gowrie.' His Majesty then rode on. Lennox despatched his groom for his sword, and for a fresh horse (another was sent after the King); he then mounted and followed. When he rejoined James, the King said 'You cannot guess what errand I am riding for; I am going to get a treasure in Perth. The Master of Ruthven' ('Mr. Alexander Ruthven') 'has informed me that he has found a

man with a pitcher full of gold coins of great sorts.’ James also asked Lennox what he deemed of the Master, whose manner he reckoned very strange. ‘Nothing but an honest, discreet gentleman,’ said the Duke. The King next gave details about the treasure, and Lennox said he thought the tale ‘unlikely,’ as it was, more or less. James then bade Lennox say nothing on the matter to Ruthven, who wanted it to be a secret. At about a mile from Perth, the Master galloped forward, to warn his brother, the Earl, who met the Royal party, on foot, with some companions, near the town. ^[14] This was about one o’clock in the afternoon.



The Royal party, of thirteen nobles and gentlemen, then entered the Earl’s house. It faced the street, as the House of Falkland also does, and, at the back, had gardens running down to the Tay. It is necessary to understand the situation and topography of Gowrie House. Passing down South Street, or ‘Shoe Gait,’ the chief street in Perth, then a pretty little town, you found it crossed at right angles by a street called, on the left, Water Gate, on the right, Spey Gate. Immediately fronting you, as you came to the end of South Street, was the gateway of Gowrie House, the garden wall continuing towards your right. On your left were the houses in Water Gate, occupied by rich citizens and lairds. Many will understand the position if they fancy

themselves walking down one of the streets which run from the High Street, at Oxford, towards the river. You then find Merton College facing you, the street being continued to the left in such old houses as Beam Hall. The gate of Gowrie House fronted you, as does the gate-tower of Merton, and led into a quadrangle, the front court, called The Close. Behind Gowrie House was the garden, and behind that ran the river Tay, as the Isis flows behind Merton and Corpus. Entering the quadrangle of Gowrie House you found, on your right and facing you, a pile of buildings like an inverted L (⌋). The basement was occupied by domestic offices: at the angle of the ⌋ was the main entrance. On your right, and much nearer to you than the main entrance, a door opened on a narrow spiral staircase, so dark that it was called the Black Turnpike.



As to the interior, entering the main doorway you found yourself in the hall. A door led thence into a smaller dining-room on the left. The hall itself had a door and external stair giving on the garden behind. The chief staircase, which you entered from the hall, led to the Great Gallery, built and decorated by the late Earl. This extended above the dining-room and the hall, and, to the right, was separated by a partition and a door from the large upstairs room on the same flat called 'The Gallery Chamber.' At the extremity of this chamber, on the left hand as you advanced, was a door

leading into a 'round,' or turret, or little circular-shaped 'study,' of which one window seems to have looked to the gateway, the other to the street. People below in the street could see a man looking out of the turret window. A door in the gallery chamber gave on the narrow staircase called 'The Black Turnpike,' by which the upper floor might be reached by any one from the quadrangle, without entering the main door, and going up the broad chief staircase. Thus, to quote a poet who wrote while Gowrie House was extant (in 1638):

The Palace kythes, may nam'd be Perth's White Hall
With orchards like these of Hesperides.

The palace was destroyed, to furnish a site for a gaol and county buildings, in 1807, but the most interesting parts had long been in ruins. ^[18]

In 1774, an antiquary, Mr. Cant, writes that the palace, after the Forty Five, was converted into artillery barracks. 'We see nothing but the remains of its former grandeur.' The coats of arms of 'the nobility and gentlemen of fortune,' who dwelt in Spey Gate and Water Gate, were, in 1774, still visible on the walls of their houses. A fragment of the old palace is said to exist to-day in the Gowrie Inn. Into this palace the King was led by Gowrie: he was taken to the dining chamber on the left of the great hall; in the hall itself Lennox, Mar, and the rest of the retinue waited and wearied, for apparently no dinner had been provided, and even a drink for his thirsty Majesty was long in coming. Gowrie and the Master kept going in and out, servants were whispered to, and Sir Thomas Erskine sent a townsman to buy him a pair of green silk stockings in Perth. ^[19] He wanted to dine comfortably.

Leaving the King's retinue in the hall, and the King in the dining chamber off the hall, we may note what, up to this point, the nobles and gentlemen of the suite had to say, at the trial in November, about the adventures of that August morning. Mar had not seen the Master at Falkland; after the kill Mar did not succeed in rejoining James till they were within two or three miles of Perth.

Drummond of Inchaffray had nodded to the Master, at Falkland, before the Master met the King at the stables. He later saw the Master in conference

for about a quarter of an hour with James, outside the stables. The Master then left the King: Inchaffray invited him to breakfast, but he declined, 'as his Majesty had ordered him to wait upon him.' (According to other evidence he had already breakfasted at Falkland.) Inchaffray then breakfasted in Falkland town, and next rode along the highway towards his own house. On the road he overtook Lennox, Lindores, Urchill, Hamilton of Grange, Finlay Taylor, the King, and the Master, riding Perthwards. He joined them, and went with them into Gowrie House.

Nobody else, among the witnesses, did anything but agree with Lennox's account up to this point. But four menials of James, for example, a cellarer and a porter, were at Gowrie House, in addition to the nobles and gentlemen who gave this evidence.

To return to Lennox's tale: dinner was not ready for his hungry Majesty, as we have said, till an hour after his arrival; was not ready, indeed, till about two o'clock. He had obviously not been expected, or Gowrie did not wish it to be known that he was expected, and himself had dined before the King's arrival, between twelve and one o'clock. A shoulder of mutton, a fowl, and a solitary grouse were all that the Earl's caterer could procure, except cold meat: obviously a poor repast to set before a king. It is said that the Earl had meant to leave Perth in the afternoon. When James reached the stage of dessert, Gowrie, who had waited on him, entered the hall, and invited the suite to dine. When they had nearly finished, Gowrie returned to them in the hall, and sent round a grace-cup, in which all pledged the King. Lennox then rose, to rejoin the King (who now passed, with the Master, across and out of the hall), but Gowrie said 'His Majesty was gone upstairs quietly some quiet errand.' Gowrie then called for the key of the garden, on the banks of the Tay, and he, Lindores, the lame Dr. Herries, and others went into the garden, where, one of them tells us, they ate cherries. While they were thus engaged, Gowrie's equerry, or master stabler, a Mr. Thomas Cranstoun, who had been long in France, and had returned thence with the Earl in April, appeared, crying, 'The King has mounted, and is riding through the Inch,' that is, the Inch of Perth, where the famous clan battle of thirty men a side had been fought centuries ago. Gowrie shouted 'Horses! horses!' but Cranstoun said 'Your horse is at Scone,' some two miles off, on the further side of the Tay. Why the Earl that day kept his horse so remote,

in times when men of his rank seldom walked, we may conjecture later (cf. p. 86, *infra*).

The Earl, however (says Lennox), affected not to hear Cranstoun, and still shouted 'Horses!' He and Lennox then passed into the house, through to the front yard, or Close, and so to the outer gate, giving on the street. Here Lennox asked the porter, Christie, if the King had gone. The porter said he was certain that the King had not left the house. On this point Lindores, who had been with Gowrie and Lennox in the garden, and accompanied them to the gate, added (as indeed Lennox also did) that Gowrie now explained to the porter that James had departed by the back gate. 'That cannot be, my Lord,' said the porter, 'for I have the key of the back gate.' Andrew Ray, a bailie of Perth, who had been in the house, looking on, told the same tale, adding that Gowrie gave the porter the lie. The porter corroborated all this at the trial, and quoted his own speech about the key, as it was given by Lindores. He had the keys, and must know whether the King had ridden away or not.

In this odd uncertainty, Gowrie said to Lennox, 'I am sure the King has gone; but stay, I shall go upstairs, and get your lordship the very certainty.' Gowrie thereon went from the street door, through the court, and up the chief staircase of the house, whence he came down again at once, and anew affirmed to Lennox that 'the King was forth at the back gate and away.' They all then went out of the front gate, and stood in the street there, talking, and wondering where they should seek for his Majesty.

Where was the King? Here we note a circumstance truly surprising. It never occurred to the Earl of Gowrie, when dubiously told that the King had 'loupén on'—and ridden off—to ask, *Where is the King's horse?* If the Royal nag was in the Earl's stable, then James had not departed. Again—a thing more astonishing still—it has never occurred to any of the unnumbered writers on the Gowrie conspiracy to ask, 'How did the Earl, if guilty of falsehood as to the King's departure, mean to get over the difficulty about the King's horse?' If the horse was in the stable, then the King had not ridden away, as the Earl declared. Gowrie does not seem to have kidnapped the horse. We do not hear, from the King, or any one, that the horse was missing when the Royal party at last rode home.

The author is bound, in honour, to observe that this glaring difficulty about the horse did not occur to him till he had written the first draft of this historical treatise, after reading so many others on the subject. And yet the eagle glance of Mr. Sherlock Holmes would at once have lighted on his Majesty's mount. However, neither at the time, nor in the last three centuries (as far as we know), was any one sensible enough to ask 'How about the King's horse?'

We return to the question, 'Where was the King?'

Some time had elapsed since he passed silently from the chamber where he had lunched, through the hall, with the Master, and so upstairs, 'going quietly a quiet errand,' Gowrie had explained to the men of the retinue. The gentlemen had then strolled in the garden, till Cranstoun came out to them with the news of the King's departure. Young John Ramsay, one of James's gentlemen, had met the Laird of Pittencrieff in the hall, and had asked where his Majesty was. Both had gone upstairs, had examined the fair gallery filled with pictures collected by the late Earl, and had remained 'a certain space' admiring it. They thence went into the front yard, the Close, where Cranstoun met them and told them that the King had gone. Instead of joining the gentlemen whom we left loitering and wondering outside the front gate, on the street, Ramsay ran to the stables for his horse, he said, and, as he waited at the stable door (being further from the main entrance than Lennox, Mar, and the rest), he heard James's voice, 'but understood not what he spake.' ^[23]

The others, on the street, just outside the gate, being nearer the house than Ramsay, suddenly heard the King's voice, and even his words. Lennox said to Mar, 'The King calls, be he where he will.' They all glanced up at the house, and saw, says Lennox, 'his Majesty looking out at the window, hatless, his face red, and a hand gripping his face and mouth.' The King called: 'I am murdered. Treason! My Lord of Mar, help, help!' Mar corroborated: Inchaffray saw the King vanish from the window, 'and in his judgment, his Majesty was pulled, perforce, in at the same window.' Bailie Ray of Perth saw the window pushed up, saw the King's face appear, and heard his cries. Murray of Arbany, who had come to Perth from another quarter, heard the King. Murray seems to have been holding the King's falcon on his wrist, in hall; he had later handed the bird to young Ramsay.

On beholding this vision of the King, hatless, red-faced, vociferous, and suddenly vanishing, most of his lords and gentlemen, and Murray of Arbany, rushed through the gate, through the Close, into the main door of the house, up the broad staircase, through the long fair gallery, *and there they were stopped by a locked door*. They could not reach the King! Finding a ladder, they used it as a battering-ram, but it broke in their hands. They sent for hammers, and during some half an hour they thundered at the door, breaking a hole in a panel, but unable to gain admission.

Now these facts, as to the locked door, and the inability of most of the suite to reach the King, are denied by no author. They make it certain that, if James had contrived a plot against the two Ruthvens, he had not taken his two nobles, Mar and Lennox, and these other gentlemen, and Murray of Arbany, into the scheme. He had not even arranged that another of his retinue should bring them from their futile hammer-work, to his assistance, by another way.

For there *was* another way. Young Ramsay was not with Lennox and the rest, when they saw and heard the flushed and excited King cry out of the window. Ramsay, he says, was further off than the rest; was at the stable door: he heard and recognised James's voice, but saw nothing of him, and distinguished no words. He ran into the front yard, through the outer gate. Lennox and the rest had already vanished within the house. Ramsay noticed the narrow door in the wall of the house, giving on the quadrangle, and nearer him than the main door of entrance, to reach which he must cross the quadrangle diagonally. He rushed into the narrow doorway, ran up a dark corkscrew staircase, found a door at the top, heard a struggling and din of men's feet within, 'dang open' the door, *caught a glimpse of a man behind the King's back*, and saw James and the Master 'wrestling together in each other's arms.'

James had the Master's head under his arm, the Master, 'almost upon his knees,' had his hand on the King's face and mouth. 'Strike him low,' cried the King, 'because he wears a secret mail doublet'—such as men were wont to wear on a doubtful though apparently peaceful occasion, like a Warden's Day on the Border. Ramsay threw down the King's falcon, which he had taken from Murray and bore on his wrist, drew his dagger or *couteau de chasse*, and struck the Master on the face and neck. The King set his foot

on the falcon's leash, and so held it. Ramsay might have spared and seized the Master, instead of wounding him; James later admitted *that*, but 'Man,' he said, 'I had neither God nor the Devil before me, but my own defence.' Remember that hammers were thundering on a door hard by, and that neither James nor Ramsay knew who knocked so loud—enemies or friends.

The King then, says Ramsay, pushed the wounded Master down the steep narrow staircase up which the young man had run. The man of whom Ramsay had caught a glimpse, standing behind the King, had vanished like a wraith. Ramsay went to a window, looked out, and, seeing Sir Thomas Erskine, cried, 'Come up to the top of the staircase.'

Where was Erskine, and what was he doing? He had not followed Lennox and Mar in their rush back into the house. On hearing James's cries from the window, he and his brother had tried to seize Gowrie, who had been with the party of Lennox and Mar. If James was in peril, within Gowrie's house, they argued, naturally, that Gowrie was responsible. Not drawing sword or dagger—daggers, indeed, they had none—the two Erskine brothers rushed on Gowrie, who was crying 'What is the matter? I know nothing!' They bore him, or nearly bore him, to the ground, but his retainers separated the stragglers, and one, a Ruthven, knocked Sir Thomas down with his fist. The knight arose, and ran into the front court, where Dr. Herries asked him 'what the matter meant.' At this moment Erskine heard Ramsay cry 'Come up here,' from the top of the narrow dark staircase, he says, *not* from the window; Ramsay may have called from both. Erskine, who was accompanied by the lame Dr. Herries, and by a menial of his brother's named Wilson, found the bleeding Master near the foot of the stair, and shouted 'This is the traitor, strike him.' The stricken lad fell, saying, 'Alas, I had not the wyte of it,' and the three entered the chamber where now were only the King and Ramsay. Words, not very intelligible as reported by Erskine (we consider them later), passed between him and the King. Though Erskine does not say so, they shut James up in the turret opening into the chamber where they were, and instantly Cranstoun, the Earl's equerry, entered with a drawn sword, followed by Gowrie, with 'two swords,' while some other persons followed Gowrie.

Where had Gowrie been since the two Erskines tried to seize him in the street, and were separated from him by a throng of his retainers? Why was

Gowrie, whose honour was interested in the King's safety, later in reaching the scene than Erskine, the limping Dr. Herries, and the serving man, Wilson? The reason appears to have been that, after the two Erskines were separated from Gowrie, Sir Thomas ran straight from the street, through the gateway, into the front court of the house, meeting, in the court, Dr. Herries, who was slow in his movements. But Gowrie, on the other hand, was detained by certain of Tullibardine's servants, young Tullibardine being present. This, at least, was the story given under examination by Mr. Thomas Cranstoun, Gowrie's master stabler, while other witnesses mention that Gowrie became involved in a struggle, and went 'back from' his house, further up or down the street. Young Tullibardine, present at this fray, was the heir of Murray of Tullibardine, and ancestor, in the male line, of the present Duke of Atholl. He later married a niece of the Earl of Gowrie. His father being a man of forty in 1600, young Tullibardine must have been very young indeed. The Murrays were in Perth on the occasion of the marriage of one of their clan, an innkeeper.

Some of their party were in the street, and seeing an altercation in which two of the King's gentlemen were prevented from seizing Gowrie, they made an ineffectual effort to capture the Earl. Gowrie ran from them along the street, and there 'drew his two swords out of one scabbard,' says Cranstoun. ^[28] The Earl had just arrived in Scotland from Italy, where he had acquired the then fashionable method of fencing with twin-swords, worn in a single scabbard. Gowrie, then, had retreated from the Murrays to the house of one Macbreck, as Cranstoun and Macbreck himself declared. Cranstoun too drew his sword, and let his cloak fall, asking Gowrie 'what the fray was.' The Earl said that 'he would enter his own house, or die by the way.' Cranstoun said that he would go foremost, 'but at whom should he strike, for he knew not who was the enemy?' He had only seen the Erskines collar Gowrie, then certain Murrays interfere, and he was entirely puzzled. Gowrie did not reply, and the pair advanced to the door of the house through a perplexed throng. A servant of Gowrie's placed a steel cap on his head, and with some four or five of Gowrie's friends (Hew Moncrieff, Alexander Ruthven, Harry Ruthven, and Patrick Eviot) the Earl and Cranstoun entered the front court.

Here Cranstoun saw the body of a man, whether dead or wounded he knew not, lying at 'the old turnpike door,' the entry to the dark narrow staircase

up which Ramsay had run to the King's rescue. 'Who lies there?' asked Cranstoun. Gowrie only replied, 'Up the stair!' Cranstoun led the way, Gowrie came next; the other four must have followed, for several witnesses presently saw them come down again, wounded and bleeding. Cranstoun found Erskine, Ramsay, and Herries with drawn swords in the chamber. The King, then in the turret, he did not see. He taunted Herries; Ramsay and Gowrie crossed swords; Cranstoun dealt, he says, with Herries, Erskine, and perhaps Wilson. But, though Cranstoun 'nowise knew who followed him,' the four men already named, two Ruthvens, a Moncrieff, and Eviot, were in the fray, though there was some uncertainty about Eviot. [30]

The position of the King, at this moment, was unenviable. He was shut up in the little round turret room. On the other side of the door, in the chamber, swords were clashing, feet were stamping. James knew that he had four defenders, one of them a lame medical man; who or how many their opponents might be, he could not know. The air rang with the thunder of hammers on the door of the chamber where the fight raged; were they wielded by friends or enemies? From the turret window the King could hear the town bell ringing, and see the gathering of the burgesses of Perth, the friends of their Provost, Gowrie. We know that they could easily muster eight hundred armed men. Which side would they take? The Murrays, as we saw, had done nothing, except that some of them had crowded round Gowrie. Meanwhile there was clash of steel, stamping of feet, noise of hammers, while the King, in the turret, knew not how matters were going.

Cranstoun only saw his own part of the fight in the chamber. How Ramsay and Gowrie sped in their duel he knew not. Ramsay, he says, turned on *him*, and ran him through the body; Herries also struck him. Of Gowrie he saw nothing; he fled, when wounded, down the turret stair, his companions following or preceding him. Gowrie, in fact, had fallen, leaving Ramsay free to deal with Cranstoun. Writers of both parties declare that Ramsay had cried to Gowrie, 'You have slain the King!' that Gowrie dropped his points, and that Ramsay lunged and ran him through the body. Erskine says that he himself was wounded in the right hand by Cranstoun; Herries lost two fingers. When Ramsay ran Gowrie through, the Earl, says Erskine, fell into the arms of a man whom he himself knew not; Gowrie's party retreated, but it seems they returned to the head of the narrow staircase, and

renewed hostilities by pushing swords and halberts under the narrow staircase door. This appears from the evidence of Lennox.

After pounding at the door so long, Lennox's party at last sent Robert Brown (a servant of James's, who had brought the hammers) round to discover another way of reaching the King. Brown, too, now went up the narrow staircase, and in the gallery chamber he found the King, with Herries, Erskine, Ramsay, Wilson, and the dead Earl. He reassured James; the hammerers were his friends. They handed, says Lennox, one of the hammers to the King's party, through a shattered panel, 'and they within broke the doors, and gave them entry.' At this time, halberts and swords were being struck, by Gowrie's retainers, under the door, and through the sides of the door, of the chamber; this door apparently being that from the chamber to the narrow staircase. Murray of Arbany (who had come into the house at the end of dinner) was stricken through the leg by one of these weapons. Deacon Rhynd of Perth saw Hew Moncrieff striking with 'a Jeddart staff,' a kind of halbert. A voice, that of Alexander Ruthven (a cousin of the fallen Earl), cried 'For God's sake, my lord, tell me how the Earl of Gowrie does.' 'He is well. Go your way; you are a fool; you will get no thanks for this labour,' answered Lennox, and all was silence. Alexander Ruthven and the rest retreated; Ruthven rushed to the town, rousing the people, and rifling shops in search of gunpowder. The King and the nobles knelt in prayer on the bloody floor of the chamber where the dead Gowrie lay. For some time the confused mob yelled outside, shaking their fists at the King's party in the window: men and women crying 'Come down, Green-coats, ye have committed murder! Bloody butchers!' Others cried 'The King is shot!' The exits of the house were guarded by retainers of Gowrie—Rentoul, Bissett, and others.

Mar and Lennox, from the window, explained to the mob that the King was well. James showed himself, the magistrates and nobles pacified the people, who, some armed, some unarmed, were all perplexed, whether they were anxious about the King or about their Provost, the Earl. From the evidence of scores of burghers, it appears that the tumult did not last long. One man was reaping in the Morton haugh. Hearing the town bell he hastened in, 'when all the tumult was ceased,' and the magistrates, Ray and others, were sending the people to their houses, as also did young Tullibardine. A baker, hearing the bell, went to the town cross, and so to

Gowrie's house, where he met the stream of people coming away. Another baker was at work, and stayed with his loaves, otherwise he 'would have lost his whole baking.' The King represents that it was between seven and eight in the evening before matters were quiet enough for him to ride home to Falkland, owing to the tumult. The citizens doubtless minimised, and James probably exaggerated, the proportions and duration of the disturbance.



This version of that strange affair, the slaughter of the Ruthvens, is taken entirely from the lips of sworn witnesses. We still know no more than we did as to what passed between the moment when James and the Master, alone, left the dining chamber, and the moment when the King cried 'Treason!' out of the turret window.

The problem is, had James lured the Master to Falkland for the purpose of accompanying him back to Perth, as if by the Master's invitation, and of there craftily begetting a brawl, in which Gowrie and the Master should perish at the hands of Ramsay? Or had the Master, with or without his brother's knowledge, lured James to Perth for some evil end? The question divided Scotland; France and England were sceptical as to the King's innocence. Our best historians, like Mr. Hill Burton and Mr. Tytler, side with the King; others are dubious, or believe that James was the conspirator, and that the Ruthvens were innocent victims.

III. THE KING'S OWN NARRATIVE

So far we have not gained any light on the occurrences of the mysterious interval between the moment when the King and Alexander Ruthven passed alone through the hall, after dinner, up the great staircase, and the moment when the King cried 'Treason!' out of the turret window. In the nature of the case, the Master being for ever silent, only James could give evidence on the events of this interval, James and *one other man*, of whose presence in the turret we have hitherto said little, as only one of the witnesses could swear to having seen a man there, none to having seen him escaping thence, or in the tumult. Now the word of James was not to be relied on, any more than that of the unequalled Elizabeth. If we take the King's word in this case, it is from no prejudice in his favour, but merely because his narrative seems best to fit the facts as given on oath by men like Lennox, Mar, and other witnesses of all ranks. It also fits, with discrepancies to be noted, the testimony of *the other man*, the man who professed to have been with the Master and the King in the turret.

The evidence of that other man was also subject, for reasons which will appear presently, to the gravest suspicion. James, if himself guilty of the plot, had to invent a story to excuse himself; the other man had to adopt the version of the King, to save his own life from the gibbet. On the other hand, James, if innocent, could not easily have a credible story to tell. If the Master was sane, it was hardly credible that, as James averred, he should menace the King with murder, in his brother's house, with no traceable preparations either for flight or for armed resistance. In James's narrative the Master is made at least to menace the King with death. However true the King's story might be, his adversaries, the party of the Kirk and the preachers, would never accept it. In Lennox's phrase they 'liked it not, because it was not likely.' Emphatically it was not likely, but the contradictory story put forward by the Ruthven apologist, as we shall see, was not only improbable, but certainly false.

There was living at that time a certain Mr. David Calderwood, a young Presbyterian minister, aged twenty-five. He was an avid collector of rumour, of talk, and of actual documents, and his 'History of the Kirk of Scotland,' composed at a much later date, is wonderfully copious and accurate. As it was impossible for King James to do anything at which Calderwood did not carp, assigning the worst imaginable motives in every case, we shall find in Calderwood the sum of contemporary hostile criticism of his Majesty's narrative. But the criticism is negative. Calderwood's critics only pick holes in the King's narrative, but do not advance or report any other explanation of the events, any complete theory of the King's plot from the Ruthven side. Any such story, any such hypothesis, must be to the full as improbable as the King's narrative.

There is nothing probable in the whole affair; every system, every hypothesis is *difficile à croire*. Yet the events did occur, and we cannot reject James's account merely because it is 'unlikely.' The improbabilities, however, were enormously increased by the King's theory that the Ruthvens meant to *murder* him. This project (not borne out by the King's own version of Ruthven's conduct) would have been insane: the Ruthvens, by murdering James, would have roused the whole nation and the Kirk itself against them. But if their object was to kidnap James, to secure his person, to separate him from his Ministers (who were either secretly Catholics, or Indifferents), and to bring in a new administration favourable to Kirk, or Church, then the Ruthvens were doing what had several times been done, and many times attempted. James had been captured before, even in his own palace, while scores of other plots, to take him, for instance, when hunting in Falkland woods, remote from his retinue, had been recently planned, and had failed. To kidnap the King was the commonest move in politics; but as James thought, or said, that the idea at Gowrie House was to *murder* him, his tale, even if true, could not be easily credible.

The first narrative was drawn up at Falkland in the night of August 5. Early on August 6 the letter reached the Chancellor in Edinburgh, and the contents of the letter were repeated orally by the Secretary of State (Elphinstone, later Lord Balmerino) to Nicholson, the English resident at the Court of Holyrood. Nicholson on the same day reported what he remembered of what the Secretary remembered of the Falkland letter, to Cecil. Yet though at third hand Nicholson's written account of the Falkland

letter of August 5 ^[38] contains the same version as James later published, with variations so few and so unessential that it is needless to dwell upon them, they may safely be attributed to the modifications which a story must suffer in passing through the memories of two persons. Whatever the amount of truth in his narrative, the King had it ready at once in the form to which he adhered, and on which he voluntarily underwent severe cross-examination, on oath, by Mr. Robert Bruce, one of the Edinburgh ministers; a point to which we return.

James declares in a later narrative printed and published about the end of August 1600, that the Master, when he first met him at Falkland, made a very low bow, which was not his habit. The Master then said (their conference, we saw, occupied a quarter of an hour) that, while walking alone on the previous evening, he had met a cloaked man carrying a great pot, full of gold in large coined pieces. Ruthven took the fellow secretly to Gowrie House, ‘locked him *in a privy derved house*, and, after locking many doors on him, left him there and his pot with him.’

It might be argued that, as the man was said to be locked in a *house*, and as James was not taken out of Gowrie House to see him, James must have known that, when he went upstairs with the Master, he was not going to see the prisoner. The error here is that, in the language of the period, a *house* often means a *room*, or chamber. It is so used by James elsewhere in this very narrative, and endless examples occur in the letters and books of the period.

Ruthven went on to explain, what greatly needed explanation, that he had left Perth so early in the morning that James might have the first knowledge of this secret treasure, concealed hitherto even from Gowrie. James objected that he had no right to the gold, which was not treasure trove. Ruthven replied that, if the King would not take it, others would. James now began to suspect, very naturally, that the gold was foreign coin. Indeed, what else could it well be? Coin from France, Italy, or Spain, brought in often by political intriguers, was the least improbable sort of minted gold to be found in poor old Scotland. In the troubles of 1592–1596 the supplies of the Catholic rebels were in Spanish money, whereof some was likely enough to be buried by the owners. James, then, fancied that Jesuits or others had brought in gold for seditious purposes, ‘as they have

ofttimes done before.’ Sceptics of the period asked how one pot of gold could cause a sedition. The question is puerile. There would be more gold where the potful came from, if Catholic intrigues were in the air. James then asked the Master ‘what kind of coin it was.’ ‘They seemed to be foreign and uncouth’ (unusual) ‘strokes of coin,’ said Ruthven, and the man, he added, was a stranger to him.

James therefore suspected that the man might be a disguised Scottish priest: the few of them then in Scotland always wore disguises, as they tell us in their reports to their superiors. ^[40] The King’s inferences as to *popish* plotters were thus inevitable, though he may have emphasised them in his narrative to conciliate the preachers. His horror of ‘practising Papists,’ at this date, was unfeigned. He said to the Master that he could send a servant with a warrant to Gowrie and the magistrates of Perth to take and examine the prisoner and his hoard. Contemporaries asked why he did not ‘commit the credit of this matter to another.’ James had anticipated the objection. He *did* propose this course, but Ruthven replied that, if others once touched the money, the King ‘would get a very bad account made to him of that treasure.’ He implored his Majesty to act as he advised, and not to forget him afterwards. This suggestion may seem mean in Ruthven, but the age was not disinterested, nor was Ruthven trying to persuade a high-souled man. The King was puzzled and bored, ‘the morning was fair, the game already found,’ the monarch was a keen sportsman, so he said that he would think the thing over and answer at the end of the hunt.

Granting James’s notorious love of disentangling a mystery, granting his love of money, and of hunting, I agree with Mr. Tytler in seeing nothing improbable in this narration. If the Master wanted to lure the King to Perth, I cannot conceive a better device than the tale which, according to the King, he told. The one improbable point, considering the morals of the country, was that Ruthven should come to James, in place of sharing the gold with his brother. But Ruthven, we shall see, had possibly good reasons, known to James, for conciliating the Royal favour, and for keeping his brother ignorant. Moreover, to seize the money would not have been a safe thing for Ruthven to do; the story would have leaked out, questions would have been asked. James had hit on the only plausible theory to account for a low fellow with a pot of gold; he *must* be ‘a practising Papist.’ James could neither suppose, nor expect others to believe that he supposed, one pot of

foreign gold enough ‘to bribe the country into rebellion.’ But the pot, and the prisoner, supplied a clue worth following. Probabilities strike different critics in different ways. Mr. Tytler thinks James’s tale true, and that he acted in character. That is my opinion; his own the reader must form for himself.

Ruthven still protested. This hunt of gold was well worth a buck! The prisoner, he said, might attract attention by his cries, a very weak argument, but Ruthven was quite as likely to invent it on the spur of the moment, as James was to attribute it to him falsely, on cool reflection. Finally, if James came at once, Gowrie would then be at the preaching (Tuesdays, Thursdays, and Sundays were preaching days), and the Royal proceedings with the captive would be undisturbed.

Now, on the hypothesis of intended kidnapping, this was a well-planned affair. If James accepted Ruthven’s invitation, he, with three or four servants, would reach Gowrie House while the town of Perth was quiet. Nothing would be easier than to seclude him, seize his person, and transport him to the seaside, either by Tay, or down the north bank of that river, or in disguise across Fife, to the Firth of Forth, in the retinue of Gowrie, before alarm was created at Falkland. Gowrie had given out (so his friends declared) that he was to go that night to Dirleton, his castle near North Berwick, ^[42] a strong hold, manned, and provisioned. Could he have carried the King in disguise across Fife to Elie, Dirleton was within a twelve miles sail, on summer seas. Had James’s curiosity and avarice led him to ride away at once with Ruthven, and three or four servants, the plot might have succeeded. We must criticise the plot on these lines. Thus, if at all, had the Earl and his brother planned it. But Fate interfered, the unexpected occurred—*but the plot could not be dropped*. The story of the pot of gold could not be explained away. The King, with royal rudeness, did not even reply to the new argument of the Master. ‘Without any further answering him,’ his Majesty mounted, Ruthven staying still in the place where the King left him. At this moment Inchaffray, as we saw, met Ruthven, and invited him to breakfast, but he said that he was ordered to wait on the King.

At this point, James’s narrative contains a circumstance which, confessedly, was not within his own experience. He did not know, he says, that the

Master had any companion. But, from the evidence of another, he learned that the Master had a companion, indeed two companions. One was Andrew Ruthven, about whose presence nobody doubts. The other, one Andrew Henderson, was not seen by James at this time. However, the King says, on Henderson's own evidence, that the Master now sent him (about seven o'clock) to warn Gowrie that the King was to come. Really it seems that Henderson was despatched rather later, during the first check in the run.

It was all-important to the King's case to prove that Henderson had been at Falkland, and had returned at once with a message to Gowrie, for this would demonstrate that, in appearing to be unprepared for the King's arrival (as he did), Gowrie was making a false pretence. It was also important to prove that the ride of Ruthven and Henderson to Falkland and back had been concealed, by them, from the people at Gowrie House. Now this *was* proved. Craigengelt, Gowrie's steward, who was tortured, tried, convicted, and hanged, deposed that, going up the staircase, just after the King's arrival, he met the Master, booted, and asked 'where he had been.' 'An errand not far off,' said the Master, concealing his long ride to Falkland.

[44a] Again, John Moncrieff, a gentleman who was with Gowrie, asked Henderson (who had returned to Perth much earlier than the King's arrival) where he had been, and he said 'that he had been two or three miles above the town.' [44b] Henderson himself later declared that Gowrie had told him to keep his ride to Falkland secret. [44c] The whole purpose of all this secrecy was to hide the fact that the Ruthvens had brought the King to Perth, and that Gowrie had early notice, by about 10 a.m., of James's approach, from Henderson. Therefore to make out that Henderson had been in Falkland, and had given Gowrie early notice of James's approach, though Gowrie for all that made no preparations to welcome James, was almost necessary for the Government. They specially questioned all witnesses on this point. Yet not one of their witnesses would swear to having seen Henderson at Falkland. This disposes of the theory of wholesale perjury.

The modern apologist for the Ruthvens, Mr. Louis Barbé, writes: 'We believe that Henderson perjured himself in swearing that he accompanied Alexander' (the Master) 'and Andrew Ruthven when . . . they rode to Falkland. We believe that Henderson perjured himself when he asserted, on

oath, that the Master sent him back to Perth with the intelligence of the King's coming.' [45]

On the other hand, George Hay, lay Prior of the famous Chartreux founded by James I in Perth, deponed that Henderson arrived long before Gowrie's dinner, and Peter Hay corroborated. But Hay averred that Gowrie asked Henderson 'who was at Falkland with the King?' It would not follow that Henderson had been at Falkland himself. John Moncrieff deponed that Gowrie said nothing of Henderson's message, but sat at dinner, feigning to have no knowledge of the King's approach, till the Master arrived, a few minutes before the King. Mr. Rhynd, Gowrie's tutor, deponed that Andrew Ruthven (the Master's other companion in the early ride to Falkland) told him that the Master had sent on Henderson with news of the King's coming. If Henderson had been at Falkland, he had some four hours' start of the King and his party, and must have arrived at Perth, and spoken to Gowrie, long before dinner, he himself says at 10 a.m. Dinner was at noon, or, on this day, half an hour later. Yet Gowrie made no preparations for welcoming the King.

It is obvious that, though the Hays and Moncrieff both saw Henderson return, booted, from a ride somewhere or other, at an early hour, none of them could *prove* that he had ridden to Falkland and back. There was, in fact, no evidence that Henderson had been at Falkland except his own, and that of the poor tortured tutor, Rhynd, to the effect that Andrew Ruthven had confessed as much to him. But presently we shall find that, while modern apologists for Gowrie deny that Henderson had been at Falkland, the contemporary Ruthven apologist insists that he had been there.

To return to James's own narrative, he asserts Henderson's presence at Falkland, but not from his own knowledge. He did not see Henderson at Falkland. Ruthven, says James, sent Henderson to Gowrie just after the King mounted and followed the hounds. Here it must be noted that Henderson himself says that Ruthven did not actually despatch him till after he had some more words with the King. This is an instance of James's *insouciance* as to harmonising his narrative with Henderson's, or causing Henderson to conform to his. 'Cooked' evidence, collusive evidence, would have avoided these discrepancies. James says that, musing over the story of the pot of gold, he sent one Naismith, a surgeon (he had been with

James at least since 1592), to bring Ruthven to him, during a check, and told Ruthven that he would, after the hunt, come to Perth. James thought that this was *after* the despatch of Henderson, but probably it was before, to judge by Henderson's account.

During this pause, the hounds having hit on the scent again, the King was left behind, but spurred on. At every check, the Master kept urging him to make haste, so James did not tarry to break up the deer, as usual. The kill was but two bowshots from the stables, and the King did not wait for his sword, or his second horse, which had to gallop a mile before it reached him. Mar, Lennox, and others did wait for their second mounts, some rode back to Falkland for fresh horses, some dragged slowly along on tired steeds, and did not rejoin James till later.

Ruthven had tried, James says, to induce him to refuse the company of the courtiers. Three or four servants, he said, would be enough. The others 'might mar the whole purpose.' James was 'half angry,' he began to entertain odd surmises about Ruthven. One was 'it might be that the Earl his brother *had handled him so hardly*, that the young gentleman, being of a high spirit, had taken such displeasure, as he was become somewhat beside himself.' But why should Gowrie handle his brother hardly?

The answer is suggested by an unpublished contemporary manuscript, 'The True Discovery of the late Treason,' ^[48a] &c. 'Some offence had passed betwixt the said Mr. Alexander Ruthven' (the Master) 'and his brother, for that the said Alexander, both of himself and by his Majesty's mediation, had craved of the Earl his brother the demission and release of the Abbey of Scone, which his Majesty had bestowed upon the said Earl during his life. . . . His suit had little success.' ^[48b]

If this be fact (and there is no obvious reason for its invention), James might have reason to suspect that Gowrie had 'handled his brother hardly:' Scone being a valuable estate, well worth keeping. To secure the King's favour as to Scone, Ruthven had a motive, as James would understand, for making him, and not Gowrie, acquainted with the secret of the treasure. Thus the unpublished manuscript casually explains the reason of the King's suspicion that the Earl might have 'handled the Master hardly.'

On some such surmise, James asked Lennox (who corroborates) whether he thought the Master quite ‘settled in his wits.’ Lennox knew nothing but good of him (as he said in his evidence), but Ruthven, observing their private talk, implored James to keep the secret, and come *alone* with him—at first—to see the captive and the treasure. James felt more and more uneasy, but he had started, and rode on, while the Master now despatched Andrew Ruthven to warn Gowrie. Within a mile of Perth the Master spurred on his weary horse, and gave the news to Gowrie, who, despite the messages of Henderson and Andrew Ruthven, was at dinner, unprepared for the Royal arrival. However, Gowrie met James with sixty men (four, says the Ruthven apologist).

James’s train then consisted of fifteen persons. Others must have dropped in later: they had no fresh mounts, but rested their horses, the King says, and let them graze by the way. They followed because, learning that James was going to Perth, they guessed that he intended to apprehend the Master of Oliphant, who had been misconducting himself in Angus. Thus the King accounts for the number of his train.

An hour passed before dinner: James pressed for a view of the treasure, but the Master asked the King not to converse with him then, as the whole affair was to be kept secret from Gowrie. If the two brothers had been at odds about the lands of Scone, the Master’s attitude towards his brother might seem intelligible, a point never allowed for by critics unacquainted with the manuscript which we have cited. At last the King sat down to dinner, Gowrie in attendance, whispering to his servants, *and often going in and out of the chamber*. The Master, too, was seen on the stairs by Craigenelt.

If Gowrie’s behaviour is correctly described, it might be attributed to anxiety about a Royal meal so hastily prepared. But if Gowrie had plenty of warning, from Henderson (as I do not doubt), that theory is not sufficient. If engaged in a conspiracy, Gowrie would have reason for anxiety. The circumstances, owing to the number of the royal retinue, were unfavourable, yet, as the story of the pot of gold had been told by Ruthven, the plot could not be abandoned. James even ‘chaffed’ Gowrie about being so pensive and *distract*, and about his neglect of some little points of Scottish etiquette. Finally he sent Gowrie into the hall, with the grace-cup

for the gentlemen, and then called the Master. He sent Gowrie, apparently, that he might slip off with the Master, as that gentleman wished. 'His Majesty desired Mr. Alexander to bring Sir Thomas Erskine with him, who' (Ruthven) 'desiring the King to go forward with him, and promising that he should make any one or two follow him that he pleased to call for, desiring his Majesty to command *publicly* that none should follow him.' This seems to mean, James and the Master were to cross the hall and go upstairs; James, or the Master for him, bidding no one follow (the Master, according to Balgonie, did say that the King would be alone), while, presently, the Master should return and privately beckon on one or two to join the King. The Master's excuse for all this was the keeping from Gowrie and others, for the moment, of the secret of the prisoner and the pot of gold.

Now, if we turn back to Sir Thomas Erskine's evidence, we find that, when he joined James in the chamber, after the slaying of the Master, he said 'I thought your Majesty would have concredited more to me, than to have commanded me to await your Majesty at the door, if you thought it not meet to have taken me with you.' The King replied, 'Alas, the traitor deceived me in that, as in all else, for I commanded him expressly to bring you to me, and he returned back, as I thought, to fetch you, but he did nothing but *steik* [shut] the door.'

What can these words mean? They appear to me to imply that James sent the Master back, according to their arrangement, to bring Erskine, that the Master gave Erskine some invented message about waiting at some door, that he then shut a door between the King and his friends, but told the King that Erskine was to follow them. Erskine was, beyond doubt, in the street with the rest of the retinue, before the brawl in the turret reached its crisis, when Gowrie had twice insisted that James had ridden away.

In any case, to go on with James's tale, he went with Ruthven up a staircase (the great staircase), 'and through three or four rooms'—'three or four sundry *houses*'—'the Master ever locking behind him every door as he passed, and so into a little study'—the turret. This is perplexing. We nowhere hear in the evidence of more than two doors, in the suite, which were locked. The staircase perhaps gave on the long gallery, with a door between them. The gallery gave on a chamber, which had a door (the door

battered by Lennox and Mar), and the chamber gave on a turret, which had a door between it and the chamber.

We hear, in the evidence, of no other doors, or of no other locked doors. However, in the Latin indictment of the Ruthvens, ‘many doors’ are insisted on. As all the evidence tells of opposition from only *one* door—that between the gallery and the chamber of death—James’s reason for talking of ‘three or four doors’ must be left to conjecture. ‘The True Discourse’ (MS.) gives but the gallery, chamber, and turret, but appears to allow for a door between stair and gallery, which the Master ‘closed,’ while he ‘made fast’ the next door, that between gallery and chamber. One Thomas Hamilton, ^[52a] who writes a long letter (MS.) to a lady unknown, also speaks of several doors, on the evidence of the King, and some of the Lords. This manuscript has been neglected by historians. ^[52b]

Leaving this point, we ask why a man already suspicious, like James, let the Master lock any door behind him. We might reply that James had dined, and that ‘wine and beer produce a careless state of mind,’ as a writer on cricket long ago observed. We may also suppose that, till facts proved the locking of one door at least (for about that there is no doubt), James did not know that any door *was* locked. On August 11 the Rev. Mr. Galloway, in a sermon preached before the King and the populace at the Cross of Edinburgh, says that the Master led the monarch upstairs, ‘and through a *trans*’ (a passage), ‘the door whereof, so soon as they had entered, *chekit to with ane lok*, then through a gallery, whose door also *chekit to*, through a chamber, and the door thereof *chekit to*, also,’ and thence into the turret of which he ‘also locked the door.’ ^[53]

Were the locks that ‘chekit to’ spring locks, and was James unaware that he was locked in? But Ramsay, before the affray, had wandered into ‘a gallery, very fair,’ and unless there were two galleries, he could not do this, if the gallery door was locked. Lennox and Mar and the rest speak of opposition from only one door.

While we cannot explain these things, *that* door, at least, between the gallery and the gallery chamber, excluded James from most of his friends. Can the reader believe that he purposely had that door locked, we know not how, or by whom, on the system of compelling Gowrie to ‘come and be

killed' by way of the narrow staircase? Could we see Gowrie House, and its 'secret ways,' as it then was, we might understand this problem of the locked doors. Contemporary criticism, as minutely recorded by Calderwood, found no fault with the number of locked doors, but only asked 'how could the King's fear but increase, perceiving Mr. Alexander' (the Master) 'ever to lock the doors behind them?' If the doors closed with spring locks (of which the principle had long been understood and used), the King may not have been aware of the locking. The problem cannot be solved; we only disbelieve that the King himself had the door locked, to keep his friends out, and let Gowrie in.

NOTE.—*The Abbey of Scone*. On page 48 we have quoted the statement that James had bestowed on Gowrie the Abbey of Scone 'during his life.' This was done in 1580 (*Registrum Magni Sigilli*, vol. iii. No. 3011). On May 25, 1584, William Fullarton got this gift, the first Earl of Gowrie and his children being then forfeited. But on July 23, 1586, the Gowrie of the day was restored to all his lands, and the Earldom of Gowrie included the old church lands of Scone (*Reg. Mag. Sig.* iv. No. 695, No. 1044). How, then, did John, third Earl of Gowrie, hold only 'for his life' the Commendatorship of the Abbey of Scone, as is stated in S. P. Scot. (Eliz.) vol. lxvi. No. 50?

IV. THE KING'S NARRATIVE—II. THE MAN IN THE TURRET

We left James entering the little 'round,' or 'study,' the turret chamber. Here, at last, he expected to find the captive and the pot of gold. And here the central mystery of his adventure began. His Majesty saw standing, 'with a very abased countenance, not a bondman but a freeman, with a dagger at his girdle.' Ruthven locked the door, put on his hat, drew the man's dagger, and held the point to the King's breast, '*avowing now that the King behoved to be at his will, and used as he list*; swearing many bloody oaths that if the King cried one word, or opened a window to look out, that dagger should go to his heart.'

If this tale is true, murder was not intended, unless James resisted: the King was only being *threatened* into compliance with the Master's 'will.' Ruthven added that the King's conscience must now be burthened 'for murdering his father,' that is, for the execution of William, Earl of Gowrie, in 1584. His conviction was believed to have been procured in a dastardly manner, later to be explained.

James was unarmed, and obviously had no secret coat of mail, in which he could not have hunted all day, perhaps. Ruthven had his sword; as for the other man he stood 'trembling and quaking.' James now made to the Master the odd harangue reported even in Nicholson's version of the Falkland letter of the same day. As for Gowrie's execution, the King said, he had then been a minor (he was eighteen in 1584), and Gowrie was condemned 'by the ordinary course of law'—which his friends denied. James had restored, he said, all the lands and dignities of the House, two of Ruthven's sisters were maids of honour. Ruthven had been educated by the revered Mr. Rollock, he ought to have learned better behaviour. If the King died he would be avenged: Gowrie could not hope for the throne. The King solemnly promised forgiveness and silence, if Ruthven let him go.

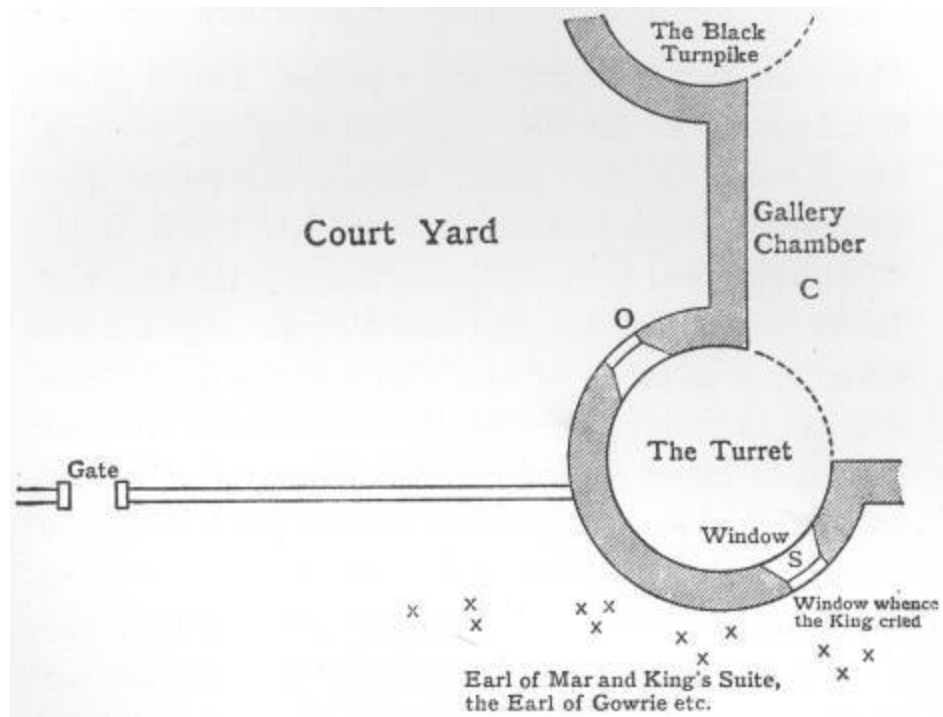
Ruthven now uncovered his head, and protested that the King's life should be safe, if he made no noise or cry: in that case Ruthven would now bring Gowrie to him. 'Why?' asked James; 'you could gain little by keeping such a prisoner?' Ruthven said that he could not explain; Gowrie would tell him the rest. Turning to *the other man*, he said 'I make you the King's keeper till I come again, and see that you keep him upon your peril.' He then went out, and locked the door. The person who later averred that he had been the man in the turret, believed that Ruthven never went far from the door. James believed, indeed averred, that he ran downstairs, and consulted Gowrie.

If there was an armed man in the turret, he was either placed there by the King, to protect him while he summoned his minions by feigned cries of treason, or he was placed there by Gowrie to help the Master to seize the King. In the latter case, the Master's position was now desperate; in lieu of an ally he had procured a witness against himself. Great need had he to consult Gowrie, but though Gowrie certainly entered the house, went upstairs, and returned to Lennox with the assurance that James had ridden away, it is improbable that he and his brother met at this moment. James, however, avers that they met, Ruthven running rapidly downstairs, but this was mere inference on the King's part.

James occupied the time of Ruthven's absence in asking the man of the turret what he knew of the conspiracy. The man replied that he knew nothing, he had but recently been locked into the little chamber. Indeed, while Ruthven was threatening, the man (says James) was trembling, and adjuring the Master not to harm the King. James, having sworn to Ruthven that he would not open the window himself, now, characteristically, asked the man to open the window 'on his right hand.' If the King had his back to the turret door, the window on his right opened on the courtyard, the window on his left opened on the street. The man readily opened the window, says the King, and the person claiming to be the man deposed later that he first opened what the King declared to be the wrong window, but, before he could open the other, in came the Master, who, 'casting his hands abroad in desperate manner, said "he could not mend it, his Majesty behoved to die."' Instead of stabbing James, however, he tried to bind the Royal hands with a garter, 'swearing he behoved to be bound.' (A garter

was later picked up on the floor by one of the witnesses, Graham of Balgonie, and secured by Sir Thomas Erskine. ^[58])

A struggle then began, James keeping the Master's right hand off his sword-hilt; the Master trying to silence James with his left hand. James dragged the Master to the window, which the other man had opened. (In the Latin indictment of the dead Ruthvens, James opens the window himself.) The turret man said, in one of two depositions, that he stretched across the wrestlers, and opened the window. The retinue and Gowrie were passing, as we know, or loitering below; Gowrie affected not to hear the cries of treason; Lennox, Mar, and the rest rushed up the great staircase. Meanwhile, struggling with the Master, James had brought him out of the turret into the chamber, so he says, though, more probably, the Master brought *him*. They were now near the door of the chamber that gave on the narrow staircase, and James was 'throwing the Master's sword out of his hand, thinking to have stricken him therewith,' when Ramsay entered, and wounded the Master, who was driven down the stairs, and there killed by Erskine and Herries. Gowrie then invaded the room with seven others: James was looking for the Master's sword, ^[59] which had fallen, but he was instantly shut into the turret by his friends, and saw none of the fight in which Gowrie fell. After that Lennox and the party with hammers were admitted, and—the tumult appeased—James rode back, through a dark rainy night, to Falkland.



V. HENDERSON'S NARRATIVE

The man in the turret had vanished like a ghost. Henderson, on the day after the tragedy, was also not to be found. Like certain Ruthvens, Hew Moncrieff, Eviot, and others, who had fought in the death-chamber, or been distinguished in the later riot, Henderson had fled. He was, though a retainer of Gowrie, a member of the Town Council of Perth, and 'chamberlain,' or 'factor,' of the lands of Scone, then held by Gowrie from the King. To find any one who had seen him during the tumult was difficult or impossible. William Robertson, a notary of Perth, examined in November before the Parliamentary Committee, said then that he only saw Gowrie, with his two drawn swords, and seven or eight companions, in the forecourt of the house, and so, 'being afraid, he passed out of the place.' The same man, earlier, on September 23, when examined with other citizens of Perth, had said that he followed young Tullibardine and some of his men, who were entering the court 'to relieve the King.'^[60] He saw the Master lying dead at the foot of the stair, and saw Henderson 'come out of the said turnpike, over the Master's belly.' He spoke to Henderson, who did not answer. He remembered that Murray of Arbany was present. Arbany, before the Parliamentary Committee in November, said nothing on this subject, *nor did Robertson*. His evidence would have been important, had he adhered to what he said on September 23. But, oddly enough, if he perjured himself on the earlier occasion (September 23), he withdrew his perjury, when it would have been useful to the King's case, in the evidence given before the Lords of the Articles, in November. Mr. Barbé, perhaps misled by the sequence of versions in Pitcairn, writes: 'Apparently it was only when his memory had been stimulated by the treatment of those whose evidence was found to be favourable to the King that the wily notary recalled the details by which he intended to corroborate Henderson's statement. . . .'^[61a]

The reverse is the case: the wily notary did not offer, at the trial in November, the evidence which he had given, in September, at the examination of the citizens of Perth. It may perhaps be inferred that perjury was not encouraged, but depressed. ^[61b]

Despite the premiums on perjury which Ruthven apologists insist on, not one witness would swear to having seen Henderson during or after the tumult. Yet he instantly fled, with others who had been active in the brawl, and remained in concealment. Calderwood, the earnest collector of contemporary gossip and documents, assures us that when the man in the turret could not be found, the first proclamation identified him with a Mr. Robert Oliphant, a 'black grim man,' but that Oliphant proved his absence from Perth. One Gray and one Lesley were also suspected, and one Younger (hiding when sought for, it is said) was killed. But we have no copy of the proclamation as to Mr. Robert Oliphant. To Mr. Robert Oliphant, who had an alibi, we shall return, for this gentleman, though entirely overlooked by our historians, was probably at the centre of the situation (p. 71, *infra*).

Meanwhile, whatever Henderson had done, he mysteriously vanished from Gowrie House, during or after the turmoil, 'following darkness like a dream.' Nobody was produced who could say anything about seeing Henderson, after Moncrieff and the Hays saw him on his return from Falkland, at about ten o'clock in the morning of August 5.

By August 12, Henderson was still in hiding, and was still being proclaimed for, with others, of whom Mr. Robert Oliphant was not one: they were Moncrieff, Eviot, and two Ruthvens. ^[63a] But, on August 11 at the Cross of Edinburgh, in presence of the King, his chaplain, the Rev. Patrick Galloway, gave news of Henderson. Mr. Galloway had been minister of Perth, and a fierce Presbyterian of old.

Blow, Galloway, the trumpet of the Lord!

exclaimed a contemporary poet. But James had tamed Galloway, he was now the King's chaplain, he did not blow the trumpet of the Lord any longer, and, I fear, was capable of anything. He had a pension, Calderwood tells us, from the lands of Scone, and knew Henderson, who, as

Chamberlain, or steward, paid the money. In his exciting sermon, Galloway made a dramatic point. Henderson was found, and Henderson was the man in the turret! Galloway had received a letter from Henderson, in his own hand; any listener who knew Henderson's hand might see the letter. Henderson tells his tale therein; Galloway says that it differs almost nothing from the King's story, of which he had given an abstract in his discourse. And he adds that Henderson stole downstairs while Ramsay was engaged with the Master. ^[63b]

Henderson, being now in touch with Galloway, probably received promise of his life, and of reward, for he came in before August 20, and, at the trial in November, was relieved of the charge of treason, and gave evidence.

Here we again ask, Why did Henderson take to flight? What had he to do with the matter? None fled but those who had been seen, sword in hand, in the fatal chamber, or stimulating the populace to attack the King during the tumult. Andrew Ruthven, who had ridden to Falkland with Henderson and the Master, did not run away, no proclamation for *him* is on record. Nobody swore to seeing Henderson, like his fellow fugitives, armed or active, yet he fled and skulked. Manifestly Henderson had, in one way or other, been suspiciously concerned in the affair. He had come in, and was at Falkland, by August 20, when he was examined before the Chancellor, Montrose, the King's Advocate, Sir Thomas Hamilton, Sir George Hume of Spot (later Earl of Dunbar), and others, in the King's absence. He deponed that, on the night of August 4, Gowrie bade him and Andrew Ruthven ride early to Falkland with the Master, and return, if the Master ordered him so to do, with a message. At Falkland they went into a house, ^[64] and the Master sent him to learn what the King was doing. He came back with the news; the Master talked with the King, then told Henderson to carry to Gowrie the tidings of the King's visit, 'and that his Majesty would be quiet.' Henderson asked if he was to start at once. Ruthven told him to wait till he spoke to the King again. They did speak, at a gap in a wall, during the check in the run; Ruthven returned to Henderson, sent him off, and Henderson reached Perth about ten o'clock. Gowrie, on his arrival, left the company he was with (the two Hays), and here George Hay's evidence makes Gowrie ask Henderson 'who was with the King at Falkland?' Hay said that Gowrie then took Henderson into another room. Henderson says nothing about a question as to the King's company, asked in presence of

Hay, a compromising and improbable question, if Gowrie wished to conceal the visit to Falkland.

Apart, Gowrie put some other questions to Henderson as to how the King received the Master. Henderson then went to his house; an hour later Gowrie bade him put on his secret coat of mail, and plate sleeves, as he had to arrest a Highlander. Henderson did as commanded; at twelve the steward told him to bring up dinner, as Craigengelt (the caterer) was ill. Dinner began at half-past twelve; at the second course the Master entered, Andrew Ruthven had arrived earlier. The company rose from table, and Henderson, who was not at the moment in the room, heard them moving, and thought that they were 'going to make breeks for Maconilduy,' that is, to catch the Highlander. Finding he was wrong, he threw his steel gauntlet into the pantry, and sent his boy to his house with his steel cap. He then followed Gowrie to meet the King, and, after he had fetched 'a drink' (which James says 'was long in coming'), the Master bade him ask Mr. Rhynd, Gowrie's old tutor, for the key of the gallery, which Rhynd brought to the Master. Gowrie then went up, and spoke with the Master, and, after some coming and going, Henderson was sent to the Master in the gallery. Thither Gowrie returned, and bade Henderson do whatever the Master commanded. (The King says that Gowrie came and went from the room, during his dinner.) The Master next bade Henderson enter the turret, and locked him in. He passed the time in terror and in prayer.

There follows the story of the entry of James and the Master, and Henderson now avers that he 'threw' the dagger out of the Master's hand. He declares that the Master said that he wanted 'a promise from the King,' on what point Gowrie would explain. The rest is much as in the King's account, but Henderson was 'pressing to have opened the window,' he says, when the Master entered for the second time, with the garter to bind the King's hands. During the struggle Henderson removed the Master's hand from the King's mouth, and opened the window. The Master said to him, 'Wilt thou not help? Woe betide thee, thou wilt make us all die.' [67a]

Henderson's later deposition, at the trial in November, was mainly, but not without discrepancies, to the same effect as his first. He said that he prayed, when alone in the turret, but omits the statement (previously made by him) that he deprived Ruthven of his dagger, a very improbable tale, told

falsely at first, no doubt, as Robertson the notary at first invented his fable about meeting with Henderson, coming out of the dark staircase. This myth Robertson narrated when examined in September, but omitted it in the trial in November. Henderson now explained about his first opening the wrong window, but he sticks to it that he took the garter from Ruthven, of which James says nothing. He vows that he turned the key of the door on the staircase, so that Ramsay could enter, whereas Ramsay averred that he himself forced the door. Mr. Hudson (James's resident at the Court of England), who in October 1600 interviewed both Henderson and the King, says that, in fact, the Master had not locked the door, on his re-entry. [67b] Henderson slunk out when Ramsay came in. He adds that it was *his* steel cap which was put on Gowrie's head by a servant (there was plenty of evidence that a steel cap was thus put on).

One singular point in Henderson's versions is this: after Ruthven, in deference to James's harangue in the turret, had taken off his hat, the King said, 'What is it ye crave, man, if ye crave not my life?' '*Sir, it is but a promise,*' answered Ruthven. The King asked 'What promise?' and Ruthven said that his brother would explain. This tale looks like a confusion made, by Henderson's memory, in a passage in James's narrative. 'His Majesty inquired what the Earl would do with him, since (if his Majesty's life were safe, *according to promise*) they could gain little in keeping such a prisoner.' Ruthven then, in James's narrative, said 'that the Earl would tell his Majesty at his coming.' It appears that the word 'promise' in the Royal version, occurring at this point in the story, clung to Henderson's memory, and so crept into his tale. Others have thought that the Ruthvens wished to extort from James a promise about certain money which he owed to Gowrie. But to extort a promise, by secluding and threatening the King, would have been highly treasonable and dangerous, nor need James have kept a promise made under duress.

Perhaps few persons who are accustomed to weigh and test evidence, who know the weaknesses of human memories, and the illusions which impose themselves upon our recollections, will lay great stress on the discrepancies between Henderson's first deposition (in August), his second (in November), and the statement of the King. In the footnote printed below, [69a] Hudson explains the origin of certain differences between the King's narrative and Henderson's evidence, given in August. Hudson declares that

James boasted of having taken the dagger out of Ruthven's hands (which, in fact, James does not do, in his published narration), and that Henderson claimed to have snatched the dagger away, 'to move mercy by more merit.' It is clear that James would not accept his story of disarming Ruthven; Henderson omits *that* in his second deposition. For the rest, James, who was quite clever enough to discover the discrepancies, let them stand, at the end of his own printed narrative, with the calm remark, that if any differences existed in the depositions, they must be taken as 'uttered by the deponer in his own behouf, for obtaining of his Majesty's princely grace and favour.' ^[69b] Henderson's first deposition was one of these which James printed with his own narrative, and thus treated *en prince*. He was not going to harmonise his evidence with Henderson's, or Henderson's with his. On the other hand, from the first, Henderson had probably the opportunity to frame his confession on the Falkland letter of August 5 to the Chancellor, and the Provost of Edinburgh; and, later, on the printed narrative officially issued at the close of August 1600. He varied, when he did vary, in hopes of 'his Majesty's princely grace and favour,' and he naturally tried to make out that he was not a mere trembling expostulating caitiff. He clung to the incident of the garter which he snatched from the Master's hand.

Henderson had no Royal model for his account of how he came to be in the turret, which James could only learn from himself. Now that is the most incredible part of Henderson's narrative. However secret the Ruthvens may have desired to be, how could they trust everything to the chance that the town councillor of Perth, upper footman, and Chamberlain of Scone, would act the desperate part of seizing a king, without training and without warning?

But *was* Henderson unwarned and uninstructed, or, did he fail after ample instruction? That is the difficult point raised by the very curious case of Mr. Robert Oliphant, which has never been mentioned, I think, by the many minute students of this bewildering affair.

VI. THE STRANGE CASE OF MR. ROBERT OLIPHANT

Suppose that men like the Ruthvens, great and potent nobles, had secretly invited their retainer, Andrew Henderson, to take the *rôle* of the armed man in the turret, what could Henderson have done? Such proposals as this were a danger dreaded even by the most powerful. Thus, in March 1562, James Hepburn, the wicked Earl of Bothwell, procured, through John Knox, a reconciliation with his feudal enemy, Arran. The brain of Arran was already, it seems, impaired. A few days after the reconciliation he secretly consulted Knox on a delicate point. Bothwell, he said, had imparted to him a scheme whereby they should seize Queen Mary's person, and murder her secretary, Lethington, and her half-brother, Lord James Stuart, later Earl of Moray. Arran explained to Knox that, if ever the plot came to light, he would be involved in the crime of guilty concealment of foreknowledge of treason. But, if he divulged the plan, Bothwell would challenge him to trial by combat. Knox advised secrecy, but Arran, now far from sane, revealed the real or imagined conspiracy.

To a man like Henderson, the peril in simply listening to treasonable proposals from the Ruthvens would be even greater. If he merely declined to be a party, and kept silence, or fled, he lost his employment as Gowrie's man, and would be ruined. If the plot ever came to light, he would be involved in guilty concealment of foreknowledge. If he instantly revealed to the King what he knew, his word would not be accepted against that of Gowrie: he would be tortured, to get at the very truth, and probably would be hanged by way of experiment, to see if he would adhere to his statement on the scaffold—a fate from which Henderson, in fact, was only saved by the King.

What then, if the Gowries offered to Henderson the *rôle* of the man in the turret, could Henderson do? He could do what, according to James and to

himself, he did, he could tremble, expostulate, and assure the King of his ignorance of the purpose for which he was locked up, 'like a dog,' in the little study.

That this may have been the real state of affairs is not impossible. We have seen that Calderwood mentions a certain Mr. Robert Oliphant (Mr. means Master of Arts) as having been conjectured at, immediately after the tragedy, as the man in the turret. He must therefore have been, and he was, a trusted retainer of Gowrie. But Oliphant at once proved an alibi; he was not in Perth on August 5. His name never occurs in the voluminous records of the proceedings. He is not, like Henderson, among the persons who fled, and for whom search was made, as far as the documents declare, though Calderwood says that he was described as a 'black grim man' in 'the first proclamation.' If so, it looks ill for James, as Henderson was a brown fair man. In any case, Oliphant at once cleared himself.

But we hear of him again, though historians have overlooked the fact. Among the Acts of Caution of 1600—that is, the records of men who become sureties for the good behaviour of others—is an entry in the Privy Council Register for December 5, 1600. ^[73] 'Mr. Alexander Wilky in the Canongate for John Wilky, tailor there, 200*l.*, not to harm John Lyn, also tailor there; further, to answer when required touching his (John Wilky's) pursuit of Lyn for revealing certain speeches spoken to him by Mr. Robert Oliphant anent his foreknowledge of the treasonable conspiracy of the late John, sometime Earl of Gowrie.'

Thus Robert Oliphant, M.A., had spoken to tailor Lyn, or so Lyn had declared, about his own foreknowledge of the plot; Lyn had blabbed; tailor Wilky had 'pursued' or attacked Lyn; and Alexander Wilky, who was bailie of the Canongate, enters into recognisances to the amount of 200*l.* that John Wilky shall not further molest Lyn.

Now what had Oliphant said?

On the very day, December 5, when Alexander Wilky became surety for the good behaviour of John Wilky, Nicholson, the English resident at Holyrood, described the facts to Robert Cecil. ^[74a] Nicholson says that, at a house in the Canongate, Mr. Robert Oliphant was talking of the Gowrie case. He

was a man who had travelled, and he inveighed against the unfairness of Scottish procedure in the case of Cranstoun.

We have seen that Mr. Thomas Cranstoun, Gowrie's equerry, first brought to Lennox and others, in the garden, the report that the King had ridden away. We have seen that he was deeply wounded by Ramsay just before or after Gowrie fell. Unable to escape, he was taken, examined, tortured, tried on August 22, and, on August 23, hanged at Perth. He had invaded and wounded Herries, and Thomas Erskine, and had encouraged the mob to beleaguer the back gate of Gowrie House, against the King's escape. He had been in France, he said, since 1589, had come home with Gowrie, but, he swore, had not spoken six words with the Ruthvens during the last fortnight. [74b] This is odd, as he was their Master Stabler, and as they, by their friends' account, had been making every preparation to leave for Dirleton, which involved arrangements about their horses.

In any case, Mr. Robert Oliphant, in a house in the Canongate, in November or early December 1600, declared that Cranstoun, who, he said, knew nothing of the conspiracy, had been hanged, while Henderson, *who was in the secret, and had taken the turret part*, escaped, and retained his position as Chamberlain of Scone. Henderson, at the critical moment, had 'fainted,' said Oliphant; that is, had failed from want of courage. Oliphant went on to say that he himself had been with Gowrie in Paris (February-March 1600), and that, both in Paris and at home in Scotland later, Gowrie had endeavoured to induce him to take the part later offered to Henderson. He had tried, but in vain, to divert Gowrie's mind from his dangerous project. This talk of Oliphant's leaked out (through Lyn as we know), and Oliphant, says Nicholson, 'fled again.' [75]

Of Oliphant we learn no more till about June 1608. At that time, the King, in England, heard a rumour that he had been connected with the conspiracy. A Captain Patrick Heron [76] obtained a commission to find Oliphant, and arrested him at Canterbury: he was making for Dover and for France. Heron seized Oliphant's portable property, 'eight angels, two half rose-nobles, one double pistolet, two French crowns and a half, one Albertus angel; two English crowns; one Turkish piece of gold, two gold rings, and a loose stone belonging to one; three Netherland dollars; one piece of four royals; two *quart decuria*; seven pieces of several coins of

silver; two purses, one sword; one trunk, one “mail,” and two budgets.’ Oliphant himself lay for nine months in ‘the Gate House of Westminster,’ but Heron, ‘careless to justify his accusation, and discovering his aim in that business’ (writes the King), ‘presently departed from hence.’ ‘We have tried the innocency of Mr. Robert Oliphant,’ James goes on, ‘and have freed him from prison.’ The Scottish Privy Council is therefore ordered, on March 6, 1609, to make Heron restore Oliphant’s property. On May 16, 1609, Heron was brought before the Privy Council in Edinburgh, and was bidden to make restitution. He was placed in the Tolbooth, but released by Lindsay, the keeper of the prison. In March 1610, Oliphant having again gone abroad, Heron expressed his readiness to restore the goods, except the trunk and bags, which he had given to the English Privy Council, who restored them to Robert Oliphant. The brother of Robert, Oliphant of Bauchiltoun, represented him in his absence, and, in 1611, Robert got some measure of restitution from Heron.

We know no more of Mr. Robert Oliphant. ^[77] His freedom of talk was amazing, but perhaps he had been drinking when he told the story of his connection with the plot. By 1608 nothing could be proved against him in London: in 1600, had he not fled from Edinburgh in December, something might have been extracted. We can only say that his version of the case is less improbable than Henderson’s. Henderson—if approached by Gowrie, as Oliphant is reported to have said that he *was*—could not divulge the plot, could not, like Oliphant, a gentleman, leave Perth, and desert his employment. So perhaps he drifted into taking the *rôle* of the man in the turret. If so, he had abundance of time to invent his most improbable story that he was shut up there in ignorance of the purpose of his masters.

Henderson was not always of the lamblike demeanour which he displayed in the turret. On March 5, 1601, Nicholson reports that ‘Sir Hugh Herries,’ the lame doctor, ‘and Henderson fell out and were at offering of strokes,’ whence ‘revelations’ were anticipated. They never came, and, for all that we know, Herries may have taunted Henderson with Oliphant’s version of his conduct. He was pretty generally suspected of having been in the conspiracy, and of having failed, from terror, and then betrayed his masters, while pretending not to have known why he was placed in the turret.

It is remarkable that Herries did not appear as a witness at the trial in November. He was knighted and rewarded: every one almost was rewarded out of Gowrie's escheats, or forfeited property. But that was natural, whether James was guilty or innocent; and we repeat that the rewards, present or in prospect, did not produce witnesses ready to say that they saw Henderson at Falkland, or in the tumult, or in the turret. Why men so freely charged with murderous conspiracy and false swearing were so dainty on these and other essential points, the advocates of the theory of perjury may explain. How James treated discrepancies in the evidence we have seen. His account was the true account, he would not alter it, he would not suppress the discrepancies of Henderson, except as to the dagger. Witnesses might say this or that to secure the King's princely favour. Let them say: the King's account is true. This attitude is certainly more dignified, and wiser, than the easy method of harmonising all versions before publication. Meanwhile, if there were discrepancies, they were held by sceptics to prove falsehood; if there had been absolute harmony, that would really have proved collusion. On one point I suspect suppression at the trial. Almost all versions aver that Ramsay, or another, said to Gowrie, 'You have slain the King,' and that Gowrie (who certainly did not mean murder) then dropped his points and was stabbed. Of this nothing is said, at the trial, by any witnesses.

VII. THE CONTEMPORARY RUTHVEN VINDICATION

We now come to the evidence which is most fatally damaging to the two unfortunate Ruthvens. It is the testimony of their contemporary Vindication. Till a date very uncertain, a tradition hung about Perth that some old gentlemen remembered having seen a Vindication of the Ruthvens; written at the time of the events. ^[80] Antiquaries vainly asked each other for copies of this valuable apology. Was it printed, and suppressed by Royal order? Did it circulate only in manuscript?

In 1812 a Mr. Panton published a vehement defence of the Ruthvens. Speaking of the King's narrative, he says, 'In a short time afterwards a reply, or counter manifesto, setting forth the matter in its true light, written by some friend of the Ruthven family, made its appearance. The discovery of this performance would now be a valuable acquisition; but there is no probability that any such exists, as the Government instantly ordered the publication to be suppressed. . . . '

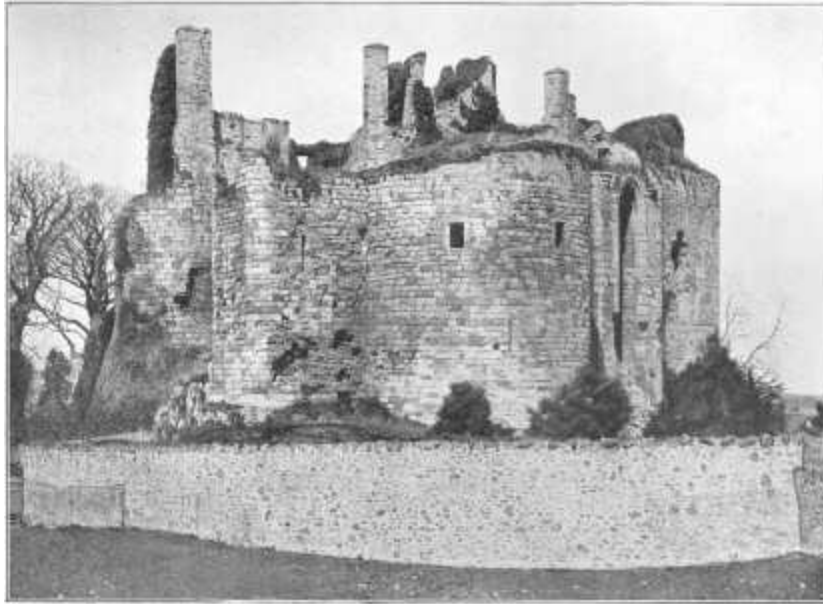
The learned and accurate Lord Hailes, writing in the second half of the eighteenth century (1757), says, 'It appears by a letter of Sir John Carey, Governor' (really Deputy Governor) 'of Berwick, to Cecil, 4th September, 1600, that some treatise had been published in Scotland, in vindication of Gowrie.' That 'treatise,' or rather newsletter, unsigned, and overlooked by our historians (as far as my knowledge goes), is extant in the Record Office. ^[81] We can identify it as the document mentioned by Carey to Cecil in his letter of September 4, 1600. Carey was then in command of Berwick, the great English frontier fortress, for his chief, 'the brave Lord Willoughby,' was absent on sick leave. On September 4, then, from Berwick, Carey wrote to Sir Robert Cecil, 'I have thought good to send you such' (information) 'as I have received out of Scotland this morning on both

sides, both on the King's part and the Earl's part, that you may read them both together.'

Now we possess a manuscript, 'The Verie Maner of the Erll of Gowrie and his brother their Death, quha war killit at Perth, the fyft of August, by the Kingis Servanttis, his Majestie being present.' This paper is directed to 'My Lord Governor,' and, as Carey was acting for 'My Lord Governor,' Lord Willoughby, at Berwick, he received and forwarded the document to Cecil. This is the Vindication, at least I know no other, and no printed copy, though Nicholson writes that a 'book on the Ruthven side was printed in England' (October 28, 1600).

The manuscript is in bad condition, in parts illegible; acids appear to have been applied to it. The story, however, from the Gowrie side, can be easily made out. It alleges that, 'on Saturday, August 1' (really August 2), the lame Dr Herries came, on some pretext, to Gowrie's house. 'This man by my Lord was convoyed through the house, and the secret parts shown him.'

Now there was no 'secret part' in the house, as far as the narratives go. The entry to the narrow staircase was inconspicuous, but was noticed by Ramsay, and, of course, was familiar to Gowrie and his men. On Tuesday, the fatal day (according to the Ruthven Vindication), Gowrie's retainers were preparing to go with him 'to Lothian,' that is to Dirleton, a castle of his on the sea, hard by North Berwick. The narrator argues, as all the friends of the Ruthvens did, that, if Gowrie had intended any treason, his men would not have been busy at their houses with preparations for an instant removal. The value of this objection is null. If Gowrie had a plot, it probably was to carry the King to Dirleton with him, in disguise.



The Master, the apology goes on, whom the King had sent for ‘divers times before, and on August 5,’ rode early to Falkland, accompanied by Andrew Ruthven, and *Andrew Henderson*. None of James’s men, nor James himself, as we have remarked, saw Henderson at Falkland, and modern opponents of the King deny (as the aforesaid Mr. Panton does) that he was there. Here they clash with ‘*The Verie Manner*’ &c. issued at the time by Gowrie’s defenders. It avers that the Master, and his two men, did not intend to return from Falkland to Perth. They meant to sleep at Falkland on the night of the Fifth, and meet Gowrie, next day, August 6, ‘at the waterside,’ and cross with him to the south coast of the Firth of Forth, thence riding on (as other friendly accounts allege) to Dirleton, near North Berwick. ‘And Andrew Henderson’s confessions testified this.’ As published, they do nothing of the sort. The Master ‘took his lodging in Falkland for this night.’ Hearing that James was to hunt, the Master breakfasted, and went to look for him. After a conversation with James, he bade Henderson ride back to Perth, and tell Gowrie that, ‘*for what occasion he knew not,*’ the King was coming. Now after they all arrived at Perth, the Master told Gowrie’s caterer, Craigengelt, that the King had come, ‘because Robert Abercrombie, that false knave, had brought the King there, to make his Majesty take order for his debt.’ ^[83] This fact was stated by Craigengelt himself, under examination. If Ruthven spoke the truth, he did know the motive, or pretext, of the King’s coming, which the apologist

denies. But Ruthven was not speaking the truth; he told Craigengelt, as we saw, that he had been 'on an errand not far off.'

As to the debt, James owed Gowrie a large sum, with accumulated interest, for expenses incurred by Gowrie's father, when Lord Treasurer of Scotland (1583–1584). James, in June 1600, as we shall see, gave Gowrie a year's respite from the pursuit of his father's creditors, hoping to pay him in the meanwhile. Whether this exemption would not have defended Gowrie from Robert Abercromby; whether James would act as debt collector for Robert Abercromby (a burghess of Edinburgh, the King's saddler), the reader may decide. But the Master gave to Craigengelt this reason for James's unexpected arrival, though his contemporary apologist says, as to James's motive for coming to Perth, that the Master '*knew nothing*.'

Henderson having cantered off with his message, James rode to Perth (nothing is said by the apologist of the four hours spent in hunting), 'accompanied by sixty horsemen, of whom thirty came a little before him.' No trace of either the sixty or the thirty appears anywhere in the evidence. No witness alludes to the arrival of any of the King's party in front of him. On hearing from Henderson of the King's approach, says the Vindication, Gowrie, who was dining, ordered a new meal to be prepared. All the other evidence shows that Henderson came back to Perth long before Gowrie dined, and that nevertheless Gowrie made no preparations at all. Gowrie, with four others, then met the King, on the Inch of Perth says the apologist. James kissed him when they met, the kiss of Judas, we are to understand. He entered the house, and all the keys were given to James's retainers. The porter, as we saw, really had the keys, and Gowrie opened the garden gate with one of them. The apologist is mendacious.

Dinner was soon over. James sent the Master to bid Ramsay and Erskine 'follow him to his chamber, where his Majesty, Sir Thomas Erskine, John Ramsay, Dr. Herries, and Mr. Wilson, being convened, slew the Master, and threw him down the stair, how, and for what cause they [know best] themselves.' Of course it is absolutely certain that the Master did not bring the other three men to James, in the chamber where the Master was first wounded. Undeniably Herries, Ramsay, and Erskine were not brought by the Master, at James's command, to this room. They did not enter it till after the cries of 'Treason' were yelled by James from the window of the

turret. A servant of James's, says the apologist, now brought the news that the King had ridden away. Cranstoun, Gowrie's man, really did this, as he admitted. Gowrie, the author goes on, hearing of James's departure, called for his horse, and went out into the street. There he stood 'abiding his horse.' Now Cranstoun, as he confessed, had told Gowrie that his horse was at Scone, two miles away. By keeping his horses there, Gowrie made it impossible for him to accompany the Royal retinue as they went on their useless errand (p. 21, *supra*). In the street Gowrie 'hears his Majesty call on him out at the chamber window, "My Lord of Gowrie, traitors has murdered your brother already, and ye suffer me to be murdered also!"'

Nobody else heard this, and, if Gowrie heard it, how inept it was in him to go about asking 'What is the matter?' He was occupied thus while Lennox, Mar, and the others were rushing up the great staircase to rescue the King. James, according to the Ruthven apologist, had told Gowrie what the matter was, his brother was slain, and slain by Erskine, who, while the Earl asked 'What is the matter?' was trying to collar that distracted nobleman. The Master had brought Erskine to the King, says the apologist, Erskine had slain the Master, yet, simultaneously, he tried to seize Gowrie in the street. Erskine was in two places at once. The apology is indeed 'a valuable acquisition.' Gowrie and Cranstoun, and they alone, the apologist avers, were now permitted by James's servants to enter the house. We know that many of James's men were really battering at the locked door, and we know that others of Gowrie's people, besides Cranstoun, entered the house, and were wounded in the scuffle. Cranstoun himself says nothing of any opposition to their entry to the house, after Gowrie drew his two swords.

Cranstoun, according to the apologist, first entered the chamber, alone, and was wounded, and drawn back by Gowrie—which Cranstoun, in his own statement, denies. After his wounds he fled, he says, seeing no more of Gowrie. Then, according to the apologist, Gowrie himself at last entered the chamber; the King's friends attacked him, but he was too cunning of fence for them. They therefore parleyed, and promised to let him see the King (who was in the turret). Gowrie dropped his points, Ramsay stabbed him, he died committing his soul to God, and declaring that he was a true subject.

This narrative, we are told by its author, is partly derived from the King's men, partly from the confessions of Cranstoun, Craigengelt, and Baron (accused of having been in the chamber-fight, and active in the tumult). All these three were tried and hanged. The apologist adds that James's companions will swear to whatever he pleases. This was unjust; Ramsay would not venture to recognise the man of whom he caught a glimpse in the turret, and nobody pretended to have seen Henderson at Falkland, though the presence of Henderson at Falkland and in the chamber was an essential point. But, among the King's crew of perjurers, not a man swore to either fact.

What follows relates to Gowrie's character; 'he had paid all his father's debts,' which most assuredly he had not done. As to the causes of his taking off, they are explained by the apologist, but belong to a later part of the inquiry.

Such was the contemporary Vindication of Gowrie, sent to Carey, at Berwick, for English reading, and forwarded by Carey to Cecil. The narrative is manifestly false, on the points which we have noted. It is ingeniously asserted by the vindicator that *a servant of James* brought the report that he had ridden away. It is not added that the false report was really brought by Cranstoun, and twice confirmed by Gowrie, once after he had gone to make inquiry upstairs. Again, the apologist never even hints at the locked door of the gallery chamber, whereat Mar, Lennox, and the rest so long and so vainly battered. Who locked that door, and why? The subject is entirely omitted by the apologist. On the other hand, the apologist never alludes to the Murrays, who were in the town. Other writers soon after the events, and in our own day, allege that James had arranged his plot so as to coincide with the presence of the Murrays in Perth. What they did to serve him we have heard. John Murray was wounded by a Ruthven partisan after the Earl and Master were dead. Some Murrays jostled Gowrie, before he rushed to his death. Young Tullibardine helped to pacify the populace. That is all. Nothing more is attributed to the Murrays, and the contemporary apologist did not try to make capital out of them.

Though the narrative of the contemporary apologist for the Ruthvens appears absolutely to lack evidence for its assertions, it reveals, on analysis,

a consistent theory of the King's plot. It may not be verifiable; in fact it cannot be true, but there is a theory, a system, which we do not find in most contemporary, or in more recent arguments. James, by the theory, is intent on the destruction of the Ruthvens. His plan was to bring the Master to Falkland, and induce the world to believe that it was the Master who brought *him* to Perth. The Master refuses several invitations; at last, on his way to Dirleton, he goes to Falkland, taking with him Andrew Ruthven and Andrew Henderson. The old apologist asserts, what modern vindicators deny, that Henderson was at Falkland.

Then the Master sends Henderson first, Andrew Ruthven later, to warn Gowrie that, for some unknown reason, the King is coming. To conceal his bloody project (though the apologist does not mention the circumstance), James next passes four hours in hunting. *To omit this certain fact is necessary for the apologist's purpose.* The King sends thirty horsemen in front of him, and follows with thirty more. After dinner he leaves the hall with the Master, but sends him back for Erskine, Wilson, and Ramsay. James having secured their help, and next lured the Master into a turret, the minions kill Ruthven and throw his body downstairs; one of them, simultaneously, is in the street. James has previously arranged that one of his servants shall give out that the King has ridden away. This he does announce at the nick of time (though Gowrie's servant did it), so that Gowrie shall go towards the stables (where he expects to find his horse, though he knows it is at Scone), thus coming within earshot of the turret window. Thence James shouts to Gowrie that traitors are murdering him, and have murdered the Master. Now this news would bring, not only Gowrie, but all the Royal retinue, to his Majesty's assistance. But, as not knowing the topography of the house, the retinue, James must have calculated, will run up the main stairs, to rescue the King. Their arrival would be inconvenient to the King (as the nobles would find that James has only friends with him, not traitors), so the King has had the door locked (we guess, though we are not told this by the apologist) to keep out Lennox, Mar, and the rest. Gowrie, however, has to be admitted, and killed, and Gowrie, knowing the house, will come, the King calculates, by the dark stair, and the unlocked door. Therefore James's friends, in the street, will let him and Cranstoun enter the house; these two alone, and no others with them. They, knowing the narrow staircase, go up that way, naturally. As

naturally, Gowrie lets Cranstoun face the danger of four hostile swords, alone. Waiting till Cranstoun is disabled, Gowrie then confronts, alone, the same murderous blades, is disarmed by a *ruse*, and is murdered.

This explanation has a method, a system. Unfortunately it is contradicted by all the evidence now to be obtained, from whatever source it comes, retainers of Gowrie, companions of James, or burgesses of Perth. We must suppose that Gowrie, with his small force of himself and Cranstoun, both fencers from the foreign schools, would allow that force to be cut off in detail, one by one. We must suppose that Erskine was where he certainly was not, in two places at once, and that Ramsay and Herries and he, unseen, left the hall and joined the King, on a message brought by the Master, unmarked by any witness. We must suppose that the King's witnesses, who professed ignorance on essential points, perjured themselves on others, in batches. But, if we grant that Mar, Lennox, and the rest—gentlemen, servants, retainers and menials of the Ruthvens, and citizens of Perth—were abandoned perjurers on some points, while scrupulously honourable on others equally essential, the narrative of the Ruthven apologist has a method, a consistency, which we do not find in modern systems unfavourable to the King.

For example, the modern theories easily show how James trapped the Master. He had only to lure him into a room, and cry 'Treason.' Then, even if untutored in his part, some hot-headed young man like Ramsay would stab Ruthven. But to deal with Gowrie was a more difficult task. He would be out in the open, surrounded by men like Lennox and Mar, great nobles, and his near kinsmen. They would attest the innocence of the Earl. They must therefore be separated from him, lured away to attack the locked door, while Gowrie would stand in the street asking 'What is the matter?' though James had told him, and detained by the Murrays till they saw fit to let him and Cranstoun go within the gate, alone. Then, knowing the topography, Gowrie and Cranstoun would necessarily make for the murder-chamber, by the dark stair, and perish. The Royal wit never conceived a subtler plot, it is much cleverer than that invented by Mr. G. P. R. James, in his novel, 'Gowrie.' Nothing is wrong with the system of the apologist, except that the facts are false, and the idea a trifle too subtle, while, instead of boldly saying that the King had the gallery chamber locked against his friends, the apologist never hints at that circumstance.

We have to help the contemporary vindicator out, by adding the detail of the locked door (which he did not see how to account for and therefore omitted), and by explaining that the King had it locked himself, that Lennox, Mar, and the rest might not know the real state of the case, and that Gowrie might be trapped through taking the other way, by the narrow staircase.

An author so conspicuously mendacious as he who wrote the Apology for English consumption is unworthy of belief on any point. It does not follow that Henderson was really at Falkland because the apologist says that he was. But it would appear that this vindicator could not well deny the circumstance, and that, to work it conveniently into his fable, he had to omit the King's hunting, and to contradict the Hays and Moncrieff by making Henderson arrive at Perth after twelve instead of about ten o'clock.

The value of the Apology, so long overlooked, is to show how very poor a case was the best that the vindicator of the Ruthvens was able to produce. But no doubt it was good enough for people who wished to believe. ^[93]

VIII. THE THEORY OF AN ACCIDENTAL BRAWL

So far, the King's narrative is least out of keeping with probability.

But had James been insulted, menaced, and driven to a personal struggle, as he declared? Is the fact not that, finding himself alone with Ruthven, and an armed man (or no armed man, if you believe that none was there), James lost his nerve, and cried 'Treason!' in mere panic? The rest followed from the hot blood of the three courtiers, and the story of James was invented, after the deaths of the Gowries, to conceal the truth, and to rob by forfeiture the family of Ruthven. But James had certainly told Lennox the story of Ruthven and the pot of gold, before they reached Perth. If he came with innocent intent, he had not concocted that story as an excuse for coming.

We really must be consistent. Mr. Barbé, a recent Ruthven apologist, says that the theory of an accidental origin of 'the struggle between James and Ruthven may possibly contain a fairly accurate conjecture.' ^[94] But Mr. Barbé also argues that James had invented the pot of gold story before he left Falkland; that, if James was guilty, 'the pretext had been framed'—the myth of the treasure had been concocted—'long before their meeting in Falkland, and was held in readiness to use whenever circumstances required.' If so, then there is no room at all for the opinion that the uproar in the turret was accidental, but Mr. Barbé's meaning is that James thus forced a quarrel on Ruthven. For there was no captive with a pot of gold, nor can accident have caused the tragedy, if Ruthven lured James to Falkland with the false tale of the golden hoard. That tale, confided by James to Lennox on the ride to Perth, was either an invention of the King's—in which case James is the crafty conspirator whom Mr. Bruce, in 1602, did not believe him to be (as shall be shown);—or it is true that Ruthven brought James to Perth by the feigned story—in which case Ruthven is a conspirator. I reject, for reasons already given, the suggestion that Lennox

perjured himself, when he swore that James told him about Ruthven's narrative as to the captive and his hoard. For these reasons alone, there is no room for the hypothesis of accident: either James or Ruthven was a deliberate traitor. If James invented the pot of gold, he is the plotter: if Ruthven did, Ruthven is guilty. There is no *via media*, no room for the theory of accident.

The *via media*, the hypothesis of accident, was suggested by Sir William Bowes, who wrote out his theory, in a letter to Sir John Stanhope, from Bradley, on September 2, 1600. Bowes had been English ambassador in Scotland, probably with the usual commission to side with the King's enemies, and especially (much as Elizabeth loathed her own Puritans) with the party of the Kirk. His coach had been used for the kidnapping of an English gentleman then with James, while the Governor of Berwick supplied a yacht, in case it seemed better to carry off the victim by sea (1599). Consequently Bowes was unpopular, and needed, and got, a guard of forty horsemen for his protection. He was no friend, as may be imagined, of the King.

Bowes had met Preston, whom James sent to Elizabeth with his version of the Gowrie affair. Bowes's theory of it all was this: James, the Master, 'and one other attending' (the man of the turret) were alone in a chamber of Gowrie House. Speech arose about the late Earl of Gowrie, Ruthven's father, whether by occasion of his portrait on the wall, or otherwise. 'The King angrily said he was a traitor, whereat the youth showing a grieved and expostulatory countenance, and haplie Scotlike words, the King, seeing himself alone and without weapon, cried Treason!' The Master placed his hand on James's mouth, and knelt to deprecate his anger, but Ramsay stabbed him as he knelt, and Gowrie was slain, Preston said, after Ramsay had made him drop his guard by crying that the King was murdered. The tale of the conspiracy was invented by James to cover the true state of the case. [96]

This Bowes only puts forth as a working hypothesis. It breaks down on the King's narrative to Lennox about Ruthven's captive and hoard. It breaks down on 'one other attending'—the man in the turret—whatever else he may have been, he was no harmless attendant. It breaks down on the locked door between the King, and Lennox and Mar, which Bowes omits.

It is ruined by Gowrie's repeated false assurances that the King had ridden away, which Bowes ignores.

The third hypothesis, the *via media*, is impossible. There was a deliberate plot on one side or the other. To make the theory of Bowes quite clear, his letter is appended to this section. [\[97\]](#)

IX. CONTEMPORARY CLERICAL CRITICISM

The most resolute sceptics as to the guilt of the Ruthvens were the Edinburgh preachers. They were in constant opposition to the King, and the young Gowrie was their favourite nobleman. As to what occurred when the news of the tragedy reached Edinburgh, early on July 6, we have the narrative of Mr. Robert Bruce, then the leader of the Presbyterians. His own version is printed in the first volume of the Bannatyne Club Miscellany, and is embodied, with modifications, and without acknowledgment (as references to such sources were usually omitted at that period), in Calderwood's History.

It is thus better to follow Mr. Bruce's own account, as far as it goes.

The preachers heard the 'bruit,' or rumour of the tragedy, by nine o'clock on the morning of August 6. By ten o'clock arrived a letter from James to the Privy Council: the preachers were called first 'before the Council of the town,' and the King's epistle was read to them. '*It bore that his Majesty was delivered out of a peril*, and therefore that we should be commanded to go to our Kirks, convene our people, ring bells, and give God praises.' While the preachers were answering, the *Privy Council* sent for the Provost and some of the *Town Council*.

The preachers then went to deliberate in the East Kirk, and decided 'that we could not enter into the particular defence of' (the existence of?) 'the treason, seeing that the King was silent of the treason in his own letter, and the reports of courtiers varied among themselves.'

This is not easily intelligible. The letter from Falkland of which Nicholson gives an account on August 6, was exceedingly 'particular as to the treason.' It is my impression, based mainly on the Burgh Records quoted

by Pitcairn, that the letter with full particulars cited by Nicholson, was written, more or less officially, by the notary, David Moysie, who was at Falkland, and that the King's letter was brief, only requiring thanksgiving to be offered. Yet Nicholson says that the letter with details (written by the King he seems to think), was meant for the preachers as well as for the Privy Council (cf. p. 38, note).

The preachers, in any case, were now brought before the Privy Council and desired, by Montrose, the Chancellor, to go to church, and thank God for the King's 'miraculous delivery from that vile treason.' They replied that 'they could not be certain of the treason,' but would speak of delivery 'from a great danger.' Or they would wait, and, when quite sure of the treason, would blaze it abroad.

'They' (the Council) 'said it should be sufficient to read his Majesty's letter.'

This appears to mean that the preachers would content the Lords by merely reading James's letter aloud to the public.

'We answered that we could not read his letter' (aloud to the people?) 'and doubt of the truth of it. It would be better to say generally, "if the *report* be true."'

The preachers would have contented the Lords by merely reading James's letter aloud to their congregations. But this they declined to do; they wished, in the pulpit, to evade the Royal *letter*, and merely to talk, conditionally, of the possible truth of the *report*, or 'bruit.' This appears to have been a *verbal* narrative brought by Graham of Balgonie, which seemed to vary from the long letter probably penned by Moysie. At this moment the Rev. David Lindsay, who had been at Falkland, and had heard James's story from his own mouth, arrived. He, therefore, was sent to tell the tale publicly, at the Cross. The Council reported to James that the six Edinburgh preachers 'would in no ways praise God for his delivery.' In fact, they would only do so in general terms.

On August 12, James took the preachers to task. Bruce explained that they could thank, and on Sunday had thanked God for the King's delivery, but could go no further into detail, 'in respect we had no certainty.' 'Had you

not my letter?’ asked the King. Bruce replied that the letter spoke only ‘of a danger in general.’ Yet the letter reported by Nicholson was ‘full and particular,’ but that letter the preachers seem to have regarded as unofficial. ‘Could not my Council inform you of the particulars?’ asked the King. The President (Fyvie, later Chancellor Dunfermline) said that they had assured the preachers of the certainty of the treason. On this Bruce replied that they had only a report, brought orally by Balgonie, and a letter by Moysie, an Edinburgh notary then at Falkland, and that these testimonies ‘fought so together that no man could have any certainty.’ The Secretary (Elphinstone, later Lord Balmerino) denied the discrepancies.

James now asked what was the preachers’ present opinion? They had heard the King himself, the Council, and Mar. Bruce replied that, as a minister, he was not fully persuaded. Four of the preachers adhered to their scepticism. Two, Hewat and Robertson, now professed conviction. The other four were forbidden to preach, under pain of death, and forbidden to come within ten miles of Edinburgh. They offered terms, but these were refused. The reason of James’s ferocity was that the devout regarded the preachers as the mouthpieces of God, and so, if *they* doubted his word, the King’s character would, to the godly, seem no better than that of a mendacious murderer.

From a modern point of view, the ministers, if doubtful, had a perfect right to be silent, and one of them, Hall, justly objected that he ought to wait for the verdict in the civil trial of the dead Ruthvens. We shall meet this Hall, and Hewatt (one of the two ministers who professed belief), in very strange circumstances later (p. 217). Here it is enough to have explained the King’s motives for severity.

In September the recalcitrants came before the King at Stirling. All professed to be convinced (one, after inquiries in Fife), except Bruce. We learn what happened next from a letter of his to his wife. He had heard from one who had been at Craigengelt’s execution (August 23), that Craigengelt had then confessed that Henderson had told him how he was placed by Gowrie in the turret. ^[103] Bruce had sent to verify this. Moreover he would believe, if Henderson were hanged, and adhered to his deposition to the last: a pretty experiment! The Comptroller asked, ‘Will you believe a condemned man better than the King and Council?’ Mr.

Bruce admitted that such was his theory of the Grammar of Assent. 'If Henderson die penitently I will trust him.' Later, as we shall see, this pleasing experiment was tried in another case, but, though the witness died penitently, and clinging to his final deposition, not one of the godly sceptics was convinced.

'But Henderson saved the King's life,' replied the Comptroller to Mr. Bruce.

'As to that I cannot tell,' said Mr. Bruce, and added that, if Henderson took the dagger from Ruthven, he deserved to die for not sheathing it in Ruthven's breast.

Henderson later, we know, withdrew his talk of his seizure of the dagger, which James had never admitted. James now said that he knew not what became of the dagger.

'Suppose,' said the Comptroller, 'Henderson goes back from that deposition?'

'Then his testimony is the worse,' said Mr. Bruce.

'Then it were better to keep him alive,' said the Comptroller; but Mr. Bruce insisted that Henderson would serve James best by dying penitently. James said that Bruce made him out a murderer. 'If I would have taken their lives, I had causes enough' (his meaning is unknown), 'I need not have hazarded myself so.' By the 'causes,' can James have meant Gowrie's attempts to entangle him in negotiations with the Pope? ^[104] These were alleged by Mr. Galloway, in a sermon preached on August 11, in the open air, before the King and the populace of Edinburgh (see *infra*, p. 128).

Mar wondered that Bruce would not trust men who (like himself) heard the King cry, and saw the hand at his throat. Mr. Bruce said that Mar might believe, 'as he were there to hear and see.'

He was left to inform himself, but Calderwood says, that the story about Craigenfelt's dying confession was untrue. Bruce had frankly given the lie to the King and Mar, though he remarked that he had never heard Mar and Lennox tell the tale 'out of their own mouths.' Mar later (September 24) most solemnly assured Mr. Bruce by letter, that the treason, 'in respect of

that I saw,' was a certain fact. This he professed 'before God in heaven.' Meanwhile Mr. Hall was restored to his Edinburgh pulpit, and Mr. Bruce, after a visit to *Restalrig*, a place close to Edinburgh and Leith, went into banishment. ^[105a] If he stayed with the Laird of Restalrig, he had, as will presently appear, a strange choice in friends (pp. 148–167).

A later letter of Bruce's now takes up the tale. In 1601, Bruce was in London, when Mar was there as James's envoy. They met, and Bruce said he was content to abide by the verdict in the Gowrie trial of November 1600. What he boggled at, henceforward, was a public apology for his disbelief, an acceptance, from the pulpit, of the King's veracity, as to the events. In London, Bruce had found that the Puritans, as to the guilt of Essex (which was flagrant), were in the same position as himself, regarding the guilt of Gowrie. ^[105b] But they bowed to the law, and so would he —'for the present.'

The Puritans in England would not *preach* that they were persuaded of the guilt of Essex, nor would Bruce preach his persuasion of the guilt of Gowrie, 'from my knowledge and from my persuasion.' He assured Mar 'that it was not possible for any man to be fully persuaded, or to take on their conscience, but so many as saw and heard.' However Bruce is self-contradictory. He *would* be persuaded, if Henderson swung for it, adhering to his statement. Such were Mr. Bruce's theories of evidence. He added that he was not fully persuaded that there was any hell to go to, yet probably he scrupled not to preach 'tidings of damnation.' He wanted to be more certain of Gowrie's guilt, than he was that there is hell-fire. 'Spiteful taunts' followed, Mar's repartee to the argument about hell being obvious. Bruce must have asserted the existence of hell, from the pulpit: though not 'fully persuaded' of hell. So why not assert the King's innocence?

Bruce returned later to Scotland, and met the King in April 1602. Now, he said, according to Calderwood, that he was 'resolved,' that is, convinced. What convinced him? Mar's oath. 'How could *he* swear?' asked James; 'he neither saw nor heard'—that is, what passed between James, the man in the turret, and the Master. 'I cannot tell you how he could swear, but indeed he swore very deeply,' said Bruce, and reported the oath, which must have been a fine example. James took Bruce's preference of Mar's oath to his own word very calmly. Bruce was troubled about the exact state of affairs

between James and the Master. ‘Doubt ye of that?’ said the King, ‘then ye could not but count me a murderer.’ ‘It followeth not, if it please you, Sir,’ said Mr. Robert, ‘*for ye might have had some secret cause.*’ [\[107a\]](#)

Strange ethics! A man may slay another, without incurring the guilt of murder, if he has ‘a secret cause.’ Bruce probably referred to the tattle about a love intrigue between Gowrie, or Ruthven, and the King’s wife. Even now, James kept his temper. He offered his whole story to Bruce for cross-examination. ‘Mr. Robert uttered his doubt where he found occasion. The King heard him gently, and with a constant countenance, which Mr. Robert admired.’ But Mr. Robert would not *preach* his belief: would not apologise from the pulpit. ‘I give it but a doubtsome trust,’ he said.

Again, on June 24, 1602, James invited cross-examination. Bruce asked how he could possibly know the direction of his Majesty’s intention when he ordered Ramsay to strike the Master. ‘I will give you leave to pose me’ (interrogate me), said James. [\[107b\]](#)

‘Had you a purpose to slay my Lord?’—that is, Gowrie.

‘As I shall answer to God, I knew not that my Lord was slain, till I saw him in his last agony, and was very sorry, yea, prayed in my heart for the same.’

‘What say ye then concerning Mr. Alexander?’

‘I grant I was art and part in Mr. Alexander’s slaughter, for it was in my own defence.’

‘Why brought you not him to justice, seeing you should have God before your eyes?’

‘I had neither God nor the Devil, man, before my eyes, but my own defence.’

‘Here the King began to fret,’ and no wonder. He frankly said that ‘he was one time minded to have spared Mr. Alexander, but being moved for the time, the motion’ (passion) ‘prevailed.’ He swore, in answer to a question, that, in the morning, he loved the Master ‘as his brother.’

Bruce was now convinced that James left Falkland innocent of evil purpose, but, as he was in a passion and revengeful, while struggling with the Master, 'he could not be innocent before God.'

Here we leave Mr. Bruce. He signed a declaration of belief in James's narrative; public apologies in the pulpit he would not make. He was banished to Inverness, and was often annoyed and 'put at,' James reckoning him a firebrand.

The result, on the showing of the severe and hostile Calderwood, is that, in Bruce's opinion, in June 1602, James was guiltless of a plot against the Ruthvens. The King's crime was, not that strangely complicated project of a double murder, to be inferred from the Ruthven apology, but words spoken in the heat of blood. Betrayed, captured, taunted, insulted, struggling with a subject whom he had treated kindly, James cried to Ramsay 'Strike low!' He knew not the nature and extent of the conspiracy against him, he knew not what knocking that was at the door of the chamber, and he told Ramsay to strike; we have no assurance that the wounds were deadly.

This is how the matter now appeared to Mr. Bruce. The King swore very freely to the truth of his tale, and that influenced Bruce, but the King's candour as to what passed in his own mind, when he bade Ramsay strike Ruthven, is more convincing, to a modern critic, than his oaths. For some reason, Bruce's real point, that he was satisfied of the King's innocence of a plot, but not satisfied as regards his yielding to passion when attacked, is ignored by the advocates of the Ruthvens. Mr. Barbé observes: 'What slight success there ever was remained on Bruce's side, for, in one conference, he drew from the King the confession that he might have saved Ruthven's life, and brought him to justice.' That confession shows unexpected candour in James, but does not in the slightest degree implicate him in a conspiracy, and of a conspiracy even the rigid Bruce now acquitted the King. Mr. Pitcairn, at first a strong King's man, in an appendix to his third volume credits Bruce with the best of the argument. This he does, illogically, because the King never ceased to persecute Bruce, whom he thought a firebrand. However wicked this conduct of James may have been, it in no way affects the argument as to his guilt in the conspiracy. Of *that* Mr. Bruce acquitted the King. Calderwood's words (vi. 156) are 'Mr.

Robert, by reason of his oaths, thought him innocent of any purpose that day in the morning to slay them. Yet because he confessed he had not God or justice before his eyes, but was in a heat and mind to revenge, he could not be innocent before God, and had great cause to repent, and to crave mercy for Christ's sake.' The thing is perfectly clear. Bruce acquitted James of the infamous plot against the Ruthvens. ^[110] What, then, was the position of the Ruthvens, if the King was not the conspirator? Obviously they were guilty, whether James, at a given moment, was carried away by passion or not.

X. POPULAR CRITICISM OF THE DAY

Calderwood has preserved for us the objections taken by sceptics to the King's narrative. ^[111] First, the improbability of a *murderous* conspiracy, by youths so full of promise and Presbyterianism as Gowrie and his brother. To Gowrie's previous performances we return later. The objection against a scheme of murder hardly applies to a plan for kidnapping a King who was severe against the Kirk.

The story of the pot of gold, and the King's desire to inspect it and the captive who bore it, personally, and the folly of thinking that one pot of gold could suffice to disturb the peace of the country, are next adversely criticised. We have already replied to the criticism (p. 40). The story was well adapted to entrap James VI.

The improbabilities of Ruthven's pleas for haste need not detain us: the King did not think them probable.

Next it was asked 'Why did James go alone upstairs with Ruthven?'

He may have had wine enough to beget valour, or, as he said, he may have believed that he was being followed by Erskine. The two reasons may well have combined.

'Why did not Gowrie provide better cheer, if forewarned?' (by Henderson?) it was asked.

To give the impression, we reply, that he was taken by surprise, and that the King came uninvited and unexpected.

'Why did Ruthven aim a dagger at James, and then hold parley?'

Because he wanted to frighten the King into being 'at his will.'

‘How could Ruthven trust the King, with the armed man alone in the turret?’

What else could he do? He locked them in, and was, through the failure of the man, in a quandary which made clear reflection necessary—and impossible.

‘It was strange that the man had not been trained in his task.’

If Oliphant is correctly reported, he had been trained, but ‘fainted.’

‘Why bind the King with a garter?’

In helpless pursuit of the forlorn idea of capturing him.

‘Why execute the enterprise when the courtiers were passing the window?’

Ruthven could not have known that they were coming at that moment; it was Gowrie’s ill-timed falsehoods, to the effect that the King had ridden away, which brought them there. Gowrie had not allowed for Henderson’s failure.

‘How could the King struggle successfully with the stalwart Master?’

He fought for his life, and Ruthven probably even then did not wish to injure him bodily.

‘Why was not the Master made prisoner?’

James answered this question when ‘posed’ by Mr. Bruce. His blood was up, and he said ‘Strike!’

‘The Earl likewise might, after he was stricken, have been preserved alive.’

Perhaps—by miracle; he died instantly.

The discrepancies as to the dagger and the opening of the window we have already treated, also the locking and unlocking, or leaving unlocked, of the chamber door, giving on the dark staircase, after Ruthven’s last hurried entrance (p. 69).

There follow arguments, to be later considered, about the relations between James and the Earl previous to the tragedy, and a statement, with no authority cited, that James had written to Gowrie's uncle, to meet him at Perth on August 5, implying that James had made up his mind to be there, and did not go on Ruthven's sudden invitation.

'The Earl and Cranstoun were alone with the four in the fatal chamber. The others who were wounded there went up after Gowrie's death.'

It may be so, but the bulk of the evidence is on the other side.

'It is reported' that Henderson was eating an egg in the kitchen, and went into the town when the fray arose.

It is also denied, on oath, by Gowrie's cook, who added that he was 'content to be hanged,' if it could be proved. [\[114\]](#)

The Ruthven apologist (MS.) says that Henderson was waiting on the Lords who dined in the hall, and was *there* when *the King's servant* brought the news that the King had ridden away.

'The Master's sword, after his death, was found rusted tight in his scabbard.'

The Master must have been a very untidy gallant. No authority is cited for the story.

The Murrays (who were well rewarded) were in Perth, 'whether of set purpose let the reader judge.'

By all means let the reader judge.

The King knew Henderson (so the anonymous Goodman of Pitmillie said), but did not recognise the man in the turret. It was reported that Patrick Galloway, the king's chaplain, induced Henderson to pretend to be the man in the turret.

As to the good man of Pitmillie, Calderwood did not even know his name. This is mere gossip.

Again, Calderwood, who offers these criticisms, does not ask why, of all concerned, Henderson was the only man that fled who had not been seen in connection with the fray and the tumult. If he was not the man of the turret, and if Andrew Ruthven, who also had ridden to Falkland, did not abscond, why did Henderson?

As to the man in the turret, if not a retainer of Ruthven, he was a minion of James, or there was no man at all. If there was no man at all, could James be so absurd as to invent him, on the off chance that somebody, anybody, would turn up, and claim to have been the man? That is, frankly, incredible. But if James managed to insert a man into the turret, he was not so silly as not to have his man ready to produce in evidence. Yet Henderson could not be produced, he had fled, and certainly had not come in by August 12, when he was proclaimed.

That James had introduced and suborned Henderson and that Henderson fled to give tone and colour to his narrative, is not among the most probable of conjectures. I do not find that this desperate hypothesis was put forward at the time. It could not be, for apologists averred (1) that Henderson was eating an egg in the kitchen: (2) that he was waiting on the gentlemen in the hall, at the moment when, by the desperate hypothesis, he was, by some machination of James, in the turret: (3) there is a third myth, a Perth tradition, that Henderson had been at Scone all day, and first heard the tragic news, when all was over, as, on his return, he crossed the bridge over Tay. As it is incredible that there was no man in the turret at all, and that James took the outside chance that somebody, anybody, would claim to be the man; the assailants of the King must offer a working hypothesis of this important actor in the drama. My own fancy can suggest none. Was he in four places at once, in the kitchen, in the hall, on the bridge, and in the turret? If he was in the kitchen, in the hall, or on the bridge, why did he instantly abscond? If *James* put him in the turret, why did he fly?

The King's word, I repeat, was the word that no man could rely on. But, among competing improbabilities, the story which was written on the night of August 5, and to which he adhered under Bruce's cross-examination, is infinitely the least improbable. The Master of Gray, an abominable character, not in Scotland when the events occurred, reported, *not* from

Scotland, that Lennox had said that, if put on his oath, 'he could not say whether the practice proceeded from Gowrie or the King.' (Sept 30, 1600)



The Master of Gray wrote from Chillingham, on the English side of the Border, where he was playing the spy for Cecil. Often he played the double spy, for England and for Rome. Lennox may well have been puzzled, he may have said so, but the report rests on the evidence of one who did not hear his words, who wished to flatter the scepticism of James's English enemies, and whose character (though on one point he is unjustly accused) reeks with infamy.

That of James does not precisely 'smell sweet and blossom in the dust.' But if the question arises, whether a man of James's position, age, and temperament, or whether a young man, with the antecedents which we are about to describe, was the more likely to embark on a complicated and dangerous plot—in James's case involving two murders at inestimable personal risk—it is not unnatural to think that the young man is the more likely to 'have the wyte of it.'

XI. THE KING AND THE RUTHVENS

Having criticised the contemporary criticism of the Gowrie affair, we must look back, and examine the nature of Gowrie's ancestral and personal relations with James before the day of calamity. There were grounds enough for hatred between the King and the Earl, whether such hatred existed or not, in a kind of hereditary feud, and in political differences. As against James's grandmother, Mary of Guise, the grandfather of Gowrie, Lord Ruthven, had early joined the Reformers, who opposed her in arms. Later, in 1566, it was Gowrie's grandfather who took the leading part in the murder of Riccio. He fled to England, and there died soon after his exploit, beholding, it was said, a vision of angels. His son, Gowrie's father (also one of the Riccio murderers), when Mary was imprisoned in Loch Leven (June 1567) was in charge of her, but was removed, 'as he began to show great favour to her, and gave her intelligence.' ^[118] Mary herself, through the narrative of Nau, her secretary, declares that Ruthven (then a married man) persecuted her by his lust. He aided Lindsay in extorting her abdication at Loch Leven. Such was his record as regards Mary: James too had little reason to love him.

The early reign of James in Scotland was a series of Court revolutions, all of the same sort. James was always either, unwillingly, under nobles who were allies of Elizabeth, and who used the Kirk as their instrument, or under vicious favourites who delivered him from these influences. When Morton fell in 1581, the King was under D'Aubigny (Lennox), a false Protestant and secret Catholic intriguer, and Arran (Captain James Stewart), a free lance, and, in religion, an Indifferent. Lennox entangled James in relations with the Guises and Catholic Powers; Gowrie, and the Protestant nobles, being threatened by Arran and Lennox, captured James, in an insulting manner, at Gowrie's castle of Ruthven. He came as a guest, for hunting; he remained a prisoner. (1582.) The Kirk approved and triumphed: James waited and dissembled, while Gowrie was at the head of the Government.

In June 1583, James, by a sudden flight to St. Andrews Castle, where his friends surrounded him, shook himself free of Gowrie, who, however, secured a pardon for his share in James's capture, in the 'Raid of Ruthven' of 1582. Lennox being dead, the masterful and unscrupulous Arran now again ruled the King, and a new Lennox came from France, the Duke of Lennox who was present at the tragedy of August 5, 1600.

The Lords who had lost power by James's escape to St. Andrews now conspired anew. Angus, Mar, and others were to march on Stirling, Gowrie was waiting at Dundee. (April 1584) Arran knew of the plot, and sent Colonel Stewart to arrest Gowrie. After holding his house against Stewart's men, the Earl was taken and carried to Edinburgh. The other Lords, his allies, failed and fled. Gowrie was brought to trial. He had a pardon for the Raid of Ruthven, he had done nothing ostensible in the recent rising, which followed his capture at Dundee. Nevertheless he was tried, condemned, executed, and forfeited. There exists a manuscript of the date, which, at least, shows what Gowrie's friends thought of the method by which his conviction was procured. Arran and Sir Robert Melville, it is said, visited him in prison, and advised him to make his peace with James. How was that to be done? Gowrie entreated for the kind offices of Melville and Arran. They advised him to write to the King confessing that he had been in several conspiracies against his person which he could reveal in a private interview. 'I should confess an untruth,' said Gowrie, 'and frame my own indictment.'

The letter, the others urged, being general, would move the King's curiosity: he would grant an interview, at which Gowrie might say that the letter was only an expedient to procure a chance of stating his own case.

Gowrie, naturally, rejected so perilous a practice.

'You *must* confess the foreknowledge of these things,' said Arran, 'or you must die.'

Gowrie replied that, if assured of his life, he would take the advice. Arran gave his word of honour that Gowrie should be safe. He wrote the letter, he received no answer, but was sent to Stirling. He was tried, nothing was proved against him, and Arran produced his letter before the Court. Gowrie

was called, confessed to his handwriting, and told the tale of Arran's treachery, which he repeated to the people from the scaffold.

This is, briefly, the statement of a newsletter to England, written, as usual, against the Government, and in the Protestant interest. ^[121a] A manuscript in the British Museum gives a somewhat different version. ^[121b] One charge against Gowrie, we learn, was that of treasonable intercommuning with Hume of Godscroft, an envoy of the Earl of Angus, who, before Gowrie's arrest, was arranging a conspiracy. This charge was perfectly true. Godscroft, in his *History of the Douglasses* (ii. 317–318), describes the circumstances, and mentions the very gallery whose door resisted Lennox and Mar on August 5, 1600. Godscroft rode from the Earl of Angus to Gowrie in his house at Perth. 'Looking very pitifully upon his gallery, where we were walking at that time, which he had but newly built and decored with pictures, he brake out into these words, having first fetched a deep sigh. "*Cousin*" says he, "*is there no remedy? Et impius haec tam culta novalia miles habebit? Barbarus has segetes?*" Whereupon Godscroft was persuaded of his sincerity, and at his return persuaded the Earl of Angus thereof also.' So the plot went on, Gowrie pretending that he meant to leave the country, says his accomplice, Godscroft, while both the Court and the conspirators were uncertain as to his trimming intentions. He trimmed too long; he was taken, the plot exploded and failed. Gowrie was thus within the danger of the law, for treasonably concealing foreknowledge of the conspiracy.

According to the British Museum MS., Gowrie now told the jury that he was being accused on the strength of his own letter, treacherously extorted under promise of life, by Montrose, Doune, Maitland, Melville, Colonel Stewart, and the Captain of Dumbarton, *not* by Arran. In Gowrie's letter of confession, to the King, as printed by Spottiswoode, he does not mention Godscroft, but another intriguer, Erskine. However, in this letter he certainly confesses his concern with the conspiracy. But, says the MS., the nobles charged by Gowrie with having betrayed him under promise of life denied the accusations on oath. Gowrie himself, according to another copy of the MS., denied knowing Hume of Godscroft; if he did, he spoke untruly, *teste* Godscroft.

However matters really stood, the Earl's friends, at all events, believed that he had been most cruelly and shamefully betrayed to the death, and, as the King was now eighteen, they would not hold him guiltless.

These were not the only wrongs of the Ruthvens. While the power of Arran lasted (and it was, on the whole, welcome to James, though he had moments of revolt), the family of Ruthven was persecuted. The widow of Gowrie was a daughter (see Appendix A) of Henry Stewart, Lord Methven, who, as a young man, had married Margaret, sister of Henry VIII, widow of James IV, and divorced from the Earl of Angus. As this lady, our Gowrie's mother, knelt to implore the pity of James in the street after her Lord's death, Arran pushed her aside, and threw her down. He received the Earl's forfeited estate and castle of Dirleton, near North Berwick.

In October 1585, Arran fell, in his turn; Angus, Mar, and others drove him into retirement. James acquiesced; his relations with the house of Mar remained most friendly. The house of Ruthven was now restored to its lands and dignities, in 1586, the new Earl being James, who died in early youth. He was succeeded by his brother, the Gowrie of our tragedy, who was born about 1577. He had many sisters; the eldest, Mary, married the Earl of Atholl, a Stewart, in January 1580. Lady Gowrie was thus mother-in-law of the Earl of Atholl, who died at Gowrie House in August 1594. Her grand-daughter, Dorothea (daughter of Atholl and Mary Ruthven, sister of our Gowrie), in 1604 married that young Tullibardine who was in Perth at the tragedy of August 5, 1600. Lady Atholl is said to have opposed the marriage. Another sister of Gowrie, Sophia, married (before 1600, she was dead by that time) the Duke of Lennox who was at the slaughter of the Ruthvens. Another sister, Beatrix, was Maid of Honour to James's Queen, and later married Hume of Cowdenknowes; hence come the Earls of Home. Gowrie had two younger brothers, Patrick and William, who fled to England from his castle of Dirleton, the day after the tragedy, and were forfeited and persecuted by James; Patrick was long imprisoned in the Tower.

The new Earl, John, the victim of 1600, does not come into public notice till 1592, when he was elected Provost of Perth. He went to Edinburgh University; his governor was the respected Mr. Rollock. Here a curious fact occurs. On August 12, 1593, young Gowrie read his thesis for his Master's

degree. Three weeks earlier, on July 24, the wild Francis Stewart, Earl of Bothwell, had captured, in Holyrood, his King, who was half dressed and untrussed. James at the time was suspected of favouring the Catholic Earls of the North, Huntly, Errol, and a new unpresbyterian Angus. The King was on ill terms with the Kirk; England had secretly abetted Bothwell; the clan of Stewart, including Lennox, lent aid and countenance, *but Bothwell's success was due to Gowrie's mother*, the widow of the decapitated Earl, and to his sister, Lady Atholl. Bothwell entered Lady Gowrie's house, adjoining the palace, spent the night there, stole into Holyrood by a passage-way left open by Lady Atholl, and appeared before the King, sword in hand, when his Majesty was half dressed. Meanwhile our Gowrie, reading for his thesis, may not have been uninterested in the plot of his mother and sister. This was, in a way, the second successful Ruthven plot to seize the King; the first was the Raid of Ruthven. The new success was not enduring. James shook off Bothwell in September 1593, and, in October, Gowrie's brother-in-law Atholl, with our Gowrie himself, entered into alliance with Bothwell against King James, and offered their services to Queen Elizabeth.

James moved out against Atholl, Gowrie, and the Master of Montrose, who were at Castle Doune, intending to join hands with Bothwell, and seize the King. But Bothwell found the plan impracticable: Atholl fled; Gowrie and the Master of Montrose were pursued and taken. No harm was done to them: their excuses were accepted, but young Gowrie and Atholl continued to conspire. In April, 1594, Atholl, signing for himself and Gowrie, and Bothwell, signing for his associates, wrote a manifesto to the Kirk. They were in arms, they said, for Protestant purposes, and wished commissioners from among the preachers to attend them, and watch their proceedings.

[126] Bothwell then took action, he made a demonstration in arms against Edinburgh, but the forces of Atholl and Gowrie did not arrive and Bothwell retreated. Atholl was threatened for this affair, but pardoned by the King, and died in August.

In the same month Gowrie informed the Town Council of Perth that he was going to study abroad. They retained him in the position of Provost. He went, with his tutor, Mr. Rhynd, to Padua, an university where Protestantism was protected by the toleration of the Republic of Venice, and where there was an Anglo-Scottish 'Nation' among the students. In 'The Return from Parnassus,' a satirical play of 1601, we find Gullio, the admirer

of Shakespeare, professing to have studied at Padua. Gowrie is said to have been elected Rector, but I cannot find his name in the lists. He does appear in the roll of Scottish scholars, some of them characterised (unlike the English scholars) by personal marks. Most have scars on the face or hand; Archibald Douglas has a scar on the brow from left to right. James Lindsay, of Gowrie's year (1596–1597), has also a scar on his brow. Next him is Andrew Keith, with a scar on his right hand, and then *Dominus Ioannes Ruthuen, Scotus, cum signo albo in mento*, 'with a white mark on his chin.' Then we have his luckless tutor, Mr. Rhynd, who was tortured, *Scotus cum ledigine super facie*. Robert Ker of Newbattle ('Kerrus de Heubattel') is another of Gowrie's college companions. All were students of law. Magic was not compulsory at Padua, though Gowrie was said to have studied that art. [127a]

Concerning Gowrie's behaviour at Padua but a single circumstance is known. Probably through one of his fellow-students, Douglas, Ker, Keith, Lindsay or another, the report reached Scotland that the young Earl had left in Padua 'a strange relique,' an emblematic figure emblazoned; and had made, on the subject, a singular remark. The emblematic figure represented 'a blackamoor reaching at a crown with a sword, in a stretched posture:' the remark of Gowrie, 'the Earl's own *mot*,' was to the effect that the emblem displayed, *in umbra*, or foreshadowed, what was to be done *in facto*. This emblem was secured at Padua, in 1609, by Sir Robert Douglas, who had heard of it in Scotland, and it was sent to King James. [127b] If such ideas were in Gowrie's mind, he showed no signs of them in an early correspondence with the King. In 1595, James wrote 'a most loving letter' to Gowrie; the Earl replied in a tone of gratitude. At the same time Gowrie wrote to a preacher in Perth, extolling the conduct of an English fanatic, who had thrown down and trampled on the Host, at Rome. He hoped, he said, when he returned to Scotland, 'to amend whatever is amiss for lack of my presence.' [128a] Nevertheless, on December 25, 1598, Nicholson informed Cecil that Gowrie had been converted to Catholicism. [128b] In the Venice despatches and Vatican transcripts I find no corroboration. Gowrie appears to have visited Rome; the Ruthven apologist declares that he was there 'in danger for his religion.' Galloway, on August 11, 1600, in presence of the King and the people of Edinburgh, vowed that Gowrie, since his return from Italy, had laboured to make James 'revolt from

Religion, at least in inward sincerity, to entertain purpose with the Pope, and he himself promised to furnish intelligence.'

If so, Gowrie was, indeed, 'a deep dissimulate hypocrite.'

Galloway's informant must have been the King. If Gowrie did or said anything to colour the story, it may have been for the purpose of discovering, by pretending to approve of them, these intrigues with Rome, of which James was constantly being accused.

A new complexity is added here, by a list of Scottish Catholic nobles, ready to join an invading Spanish force, which the Earl of Bothwell handed in to Philip III. of Spain, at a date not absolutely certain. At a time conjectured at by Major Hume, as 1600, Bothwell laid before the Spanish ministry a scheme for an invasion of Scotland. He made another more elaborate proposal at a date which, to all seeming, was July 1601. In the appended list of Scottish Catholic nobles appear the names of the Earl of Gowrie, and of 'Baron Rastellerse,' that is, Logan of Restalrig. But, in 1601, there was no Earl of Gowrie; the title was extinct, the lands were forfeited, and Gowrie's natural heir, William Ruthven, his brother, was a poor student at Cambridge. Could Bothwell refer to him, who was no Catholic? Can he have handed in (in 1601) an earlier list of 1600, without deleting the name of the dead Gowrie? As to Gowrie's real creed, Bothwell must have known the truth, through Home, a reluctant convert to Presbyterianism, who went from Paris to Brussels to meet Bothwell, leaving Gowrie in Paris, just before Home and Gowrie openly, and, as it was said, Bothwell secretly, returned to Scotland in April 1600. Was the Gowrie conspiracy a Bothwellian plot? [\[129a\]](#)

We know little more about Gowrie, after his letters of 1595, till, on August 18, 1599, Colville reports to Cecil that the party of the Kirk (who were now without a leader among the greater nobles) intend to summon home the Earl. [\[129b\]](#) He is said to have stayed for three months at Geneva with Beza, the famous reformer, who was devoted to him. He was in Paris, in February and March 1600. The English ambassador, Neville, recommended Gowrie to Cecil, as 'a man of whom there may be exceeding good use made.' Elizabeth and Cecil were then on the worst terms with James. At Paris, Gowrie would meet Lord Home, who, as we have said and

shall prove in a later connection, had an interview with the exiled Bothwell, still wandering, plotting and threatening descents on Scotland (p. 206).

On April 3, Gowrie was in London. ^[130a] He was very well received; ‘a cabinet of plate,’ it is said, was given to him by Elizabeth; what else passed we do not know. In May Gowrie returned to Scotland, and rode into Edinburgh among a cavalcade of his friends. According to Sir John Carey, writing to Cecil, from Berwick, on May 29, James displayed jealousy of Gowrie, ‘giving him many jests and pretty taunts,’ on his reception by Elizabeth, and ‘marvelling that the ministers met him not.’ ^[130b] Calderwood adds a rumour that James, talking of Gowrie’s entry to Edinburgh, said, ‘there were more with his father when he went to the scaffold.’ Again, as the Earl leaned on the King’s chair at breakfast, James talked of dogs and hawks, and made an allusion to the death of Riccio, in which Gowrie’s father and grandfather took part.

These are rumours; it is certain that the King (June 20) gave Gowrie a year’s respite from pursuit of his creditors, to whom he was in debt for moneys owed to him by the Crown, expenditure by the late Earl of Gowrie when in power (1583). ^[131a] It is also certain that Gowrie opposed the King’s demands for money, in a convention of June 21. ^[131b] But so did Lord President Fyvie, who never ceased to be James’s trusted minister, and later, Chancellor, under the title of Earl of Dunfermline. Calderwood reports that, after Gowrie’s speech, Sir David Murray said, ‘Yonder is an unhappy man; they are but seeking occasion of his death, which now he has given.’ This is absurd: Fyvie and the Laird of Easter Wemyss opposed the King as stoutly, and no harm followed to them; Fyvie rising steadily (and he had opposed the King yet more sturdily before) to the highest official position.

Calderwood adds a silly tale of Dr. Herries. Beatrix Ruthven laughed at his lame leg; he looked in her palm, and predicted a great disaster. The same anecdote, with, of course, another subject, is told of Gowrie’s own prediction that a certain man would come to be hanged, which was fulfilled. Gowrie had been at Perth, before the convention at Holyrood of June 21. To Perth he returned; thence, some time in July (about the 20th), ^[131c] he went to his castle of Strabran, in Atholl, to hunt. Whether his brother the Master remained with him continuously till the Earl’s return to

Perth on Saturday, August 2, I know not how to ascertain. If there is anything genuine in the plot-letters produced eight years later, the Master once or twice visited Edinburgh in July, but that may have been before going to Strabran.

Concerning the Master, a romantic story of unknown source, but certainly never alluded to in the surviving gossip of the day, was published, late in the eighteenth century, by Lord Hailes. 'A report is handed down that Lord Gowrie's brother received from the Queen a ribbon which she had got from the King, that *Mr. Alexander* went into the King's garden at Falkland on a sultry hot day, and lay down in a shade, and fell asleep. His breast being open, the King passed that way and discovered part of the ribbon about his neck below his cravat, upon which he made quick haste into the palace, which was observed by one of the Queen's ladies who passed the same way. She instantly took the ribbon from his neck, went a near way to the Queen's closet, where she found her Majesty at her toilet, whom she requested to lay the ribbon in a drawer.' James entered, and asked to be shown the ribbon. The Queen produced it, and James retired, muttering, 'Devil tak' me, but like is an ill mark.'

Legend does not say when, or in what year this occurred. But the fancy of authors has identified the Queen's lady with Beatrix Ruthven, and has added that the Master, in disgrace (though undetected), retired with Gowrie to Strabane, or Strabran. History has no concern with such fables. It is certain, however, or at least contemporary letters aver, that Queen Anne of Denmark was grieved and angered by the slaying of the Gowries. On October 21, 1600, Carey, writing to Cecil from Woodrington, mentions this, and the tattle to the effect that, as the Queen is about to have a child (Charles I.), 'she shall be kept as prisoner ever after.' Was the Master supposed to be father of the Queen's child? Carey goes on, 'There is a letter found with a bracelet in it, sent from the Queen to the Earl of Gowrie, to persuade him to leave his country life and come to Court, assuring him that he should enjoy any contents that Court could afford.' ^[133] Can some amorous promise underlie this, as in the case of Mr. Pickwick's letter to Mrs. Bardell, about the warming-pan? 'This letter the King hath,' says Carey. Was it with Gowrie, not the Master, that the Queen was in love? She was very fond of Beatrix Ruthven, and would disbelieve in the guilt of her brothers; hence these tears and that anger of the Queen.

But James also, says Calderwood, was as anxious as Carey declares that the Queen was, to bring Gowrie to Falkland. 'When the Earl was in Strabran, fifteen days before the fact, the King wrote sundry letters to the Earl, desiring him to come and hunt with him in the wood of Falkland; which letters were found in my Lord's pocket, at his death, as is reported, but were destroyed.' [134a]

So James was not jealous; both he and the Queen were inviting Gowrie to their country house, the Queen adding the gift of a bracelet. She may have worked it herself, like the bracelet which Queen Mary is said to have sent to Bothwell.

All this is the idlest gossip. But it is certain that, on one occasion, at the end of July, 'close letters' were sent from the Court at Edinburgh to Atholl and Gowrie; and, later, to Inchaffray and the Master, the first three are in Bothwell's list of Catholics ready to meet the Spanish invaders. The fact of the letters appears from the Treasurer's accounts, where the money paid to the boy who carried the letters is recorded, without dates of the days of the month. The boy got 33 shillings, Scots, for the journey from Edinburgh to the Earls of Gowrie and Atholl; 24 for the other two, which he carried from Falkland. Craigengelt, in his deposition, 'denies that during my Lord's being in Strabran, neither yet in Perth, after his coming from Strabran, he knew any man or page to come from Court to my Lord, or that he commanded to give them any meat or drink.' [134b]

No conclusion as to James's guilt can be drawn, either from the fact that he wrote to Atholl, Inchaffray, the Master, and Gowrie at the end of July, or from the circumstance that Craigengelt professed to know nothing about any messenger. James might write to ask the Earl to hunt, we cannot guess what he had to say, at the same time, to Atholl or Inchaffray or the Master. He may even have written about the affair of the Abbey of Scone, if it is true that the Master wished to get it from his brother. We really cannot infer that, as the Ruthvens would not come and be killed, when invited, at Falkland, James went to kill them at Perth. Even if he summoned the Master for August 5, intending to make it appear that the Master had asked him to come to Perth, the Master need not have arrived before seven in the morning, when the King went and hunted for four hours. What conceivable

reason had the Master, if innocent, for leaving Perth at 4 A.M. and visiting his sovereign at seven in the morning?

As to the coming of the Gowries to Perth from Strabran or Strabane before the tragedy, we only know what Craigengelt stated. His language is not lucid.

‘Depones that, my Lords being in Strabrand, Alexander Ruthven’ (a kinsman) ‘came from Dunkeld to my Lord. And that upon Friday (August 1) my Lord commanded Captain Ruthven to ride, and tell my Lady’ (Gowrie’s mother), ‘that he was to come, and Captain Ruthven met my Lord at the ferry-boat, and rode back to Dunkeld with my Lord, where he’ (Gowrie) ‘having supped, returned to his bed at Trochene, the deponer being in his company.’

Where, at the end of July, was Lady Gowrie? Was she within a day’s ride of her sons? Was she at Perth? We know that she was at Dirleton Castle, near North Berwick, on August 6. Had she left the neighbourhood of Perth between the 1st and 5th of August? Captain Ruthven seems to have ridden to Lady Gowrie, and back again to Dunkeld with Gowrie. If so (and I can make no other sense of it), she was in Perthshire on August 1, and went at once to Dirleton. Did she keep out of the way of the performances of August 5?

It is curious that no apologist for Gowrie, as far as I have observed, makes any remark on this perplexing affair of ‘my Lady.’ We know that she had once already set a successful trap for the King. He had not punished her; he took two of her daughters, Barbara and Beatrix, into his household; and restored to Gowrie his inheritance of the lands of Scone, which, as we know, had been held by his father. He had written a loving letter to Gowrie at Padua, after the young man had for many months been conspiring against him with his most dangerous enemy, the wild Earl of Bothwell.

On the morning of the fatal August 5, Gowrie went to sermon. What else he did, we learn from John Moncrieff, who was the Earl’s cautioner, or guarantee, for a large sum due by him to one Robert Jolly. ^[137] He was also brother of Hew Moncrieff, who fled after having been with Gowrie in arms, against Herries, Ramsay, and Erskine. Both Moncrieffs, says John, were puzzled when they found that the Master had ridden from Perth so early in

the morning. Gowrie, says Moncrieff, did not attend the Town Council meeting after church; he excused himself on account of private affairs. He also sent away George Hay who was with him on business when Henderson arrived from Falkland, saying that he had other engagements. For the same reason, he, at first, declined to do a piece of business with Moncrieff, who dined with him and two other gentlemen. 'He made him to misknow all things,' that is affected to take no notice, when Andrew Ruthven came in, and 'rounded to him' (whispered to him) about the King's approach. Then the Master entered, and Gowrie went out to meet the King.

The rest we know, as far as evidence exists.



We now have all the essential facts which rest on fairly good evidence, and we ask, did the Ruthvens lay a plot for the King, or did the King weave a web to catch the Ruthvens? Looking first at character and probable motives, we dismiss the gossip about the amorous Queen and the jealous King. The tatlers did not know whether to select Gowrie or the Master as the object of the Queen's passion, or whether to allege that she had a polyandrous affection for both at once. The letters of the age hint at no such amour till after the tragedy, when tales of the *liaison* of Anne of

Denmark with the elder or younger Ruthven, or both, arose as a myth to account for the events. The Queen, no doubt, was deeply grieved in a womanly way for the sake of her two maidens, Beatrix and Barbara Ruthven. Her Majesty, also in a womanly way, had a running feud with Mar and the whole house of Erskine. To Mar, certainly one of the few men of honour as well as of rank in Scotland, James had entrusted his son, Prince Henry; the care of the heir to the Crown was a kind of hereditary charge of the Erskines. The Queen had already, in her resentment at not having the custody of her son, engaged in one dangerous plot against Mar; she made another quarrel on this point at the time (1603) when the King succeeded to the crown of England. Now Mar was present at the Gowrie tragedy, and his cousin, Sir Thomas Erskine, took part in the deeds. Hating the Erskines, devoted to the Ruthven ladies, and always feebly in opposition to her husband, the Queen, no doubt, paraded her grief, her scepticism, and her resentment. This was quite in keeping with her character, and this conduct lent colour to the myth that she loved Gowrie, or the Master, or both, *par amours*. The subject is good for a ballad or a novel, but history has nothing to make with the legend on which Mr. G. P. R. James based a romance, and Mr. Pinkerton a theory.

Leaving fable for fact, what motives had James for killing both the Ruthvens? He had dropped the hereditary feud, and had taken no measures against the young Earl to punish his conspiracies with Bothwell in 1593–1594. Of Gowrie, on his return to Scotland in May, he may have entertained some jealousy. The Earl had been for months in Paris, caressed by the English ambassador, and probably, as we have seen, in touch with the exiled and ceaselessly conspiring Bothwell. In London the Earl had been well received by Elizabeth, and by Lord Willoughby, who, a year earlier, as Governor of Berwick, had insulted James by kidnapping, close to Edinburgh, an English gentleman, Ashfield, on a visit to the King's Court. Guevara, a cousin of Lord Willoughby, lured Ashfield into the coach of the English envoy Bowes, and drove him to the frontier. Lord Willoughby had a swift yacht lying off Leith, in case it was thought better to abduct Ashfield by sea. This is an example of English insolence to the Scottish King—also of English kidnapping—and Lord Willoughby, the manager, had made friends with Gowrie in England.

Thus James, who was then on the worst terms, short of open war, with England, may have suspected and disliked the Earl, who had once already put himself at the service of Elizabeth, and might do so again. In the April of 1600, rumours of a conspiracy by Archibald Douglas, the infamous traitor; Douglas of Spot, one of Morton's brood, and John Colville—who, with Bothwell and, later, independently, had caught James, had tried to catch him, and proposed to Essex to catch him again,—were afloat. Colville was in Paris at the same time as Gowrie; Bothwell was reported to have come secretly to Scotland in April or May, and this combination of facts or rumours may have aroused the King's mistrust. Again, the Kirk was restive; the preachers, in need of a leader, were said by Colville to have summoned Gowrie home. ^[140a] Moreover there were persons about James—for example, Colonel Stewart—who had reason to dread the Earl's vengeance for his father. The Ruthven Apologist mentions this fact, and the predilection of the Kirk for Gowrie, among the motives for destroying him.

Once more there are hints, very vague, that, in 1593, Bothwell aimed at changing the dynasty. ^[140b] The fable that Gowrie was a maternal grandson of Margaret Tudor, widow of James IV, by Henry Stewart, Lord Methven, her third husband, and that Gowrie was thus a candidate for the succession to the English throne, perhaps also for the hand of Arabella Stuart, may conceivably have existed. (Compare Appendix A.) Again, Gowrie had sided with the burgesses and minor barons, as against the nobles, by refusing a grant of money to James, in the convention of June 1600, and James owed money to Gowrie, as he did to most people. But we have already seen that an exemption had been granted to Gowrie for a year from pursuit of creditors, as far, that is, as regarded his *father's* debts (80,000*l.* Scots), (June 20, 1600). The College of Justice refused to grant any new legal summonses of creditors against Gowrie, and suspended all that were extant.

Mr. Barbé accuses the King of 'utter and unblushing disregard for common truth and common honesty.' Be this as it may, the exemption granted to Gowrie was not regarded by his father's creditors as extending to his mother, after his dishonoured death. On November 1, 1600, Lady Gowrie implored Elphinstone, the Secretary, to bring her suit for relief before the King. The security for these debts was on her 'conjunct fee lands,' and creditors, because, I suppose, the Gowrie estates were about to be forfeited,

pressed Lady Gowrie, who, of course, had no exemption. We know nothing as to the success of Lady Gowrie's petition, but we have seen that her daughters married very well. I presume that Gowrie, not his mother, had previously paid interest on the debts, 'he had already paid many sums of money.' James had already restored to Gowrie the valuable lands of Scone. [142]

However, taking things as the King's adversaries regard them, the cumulative effect of these several grudges (and of the mystery of Gowrie's Catholicism) would urge James to lay his very subtle plot. He would secretly call young Ruthven to Falkland by six in the morning of August 5, he would make it appear that Ruthven had invited *him* to Perth, he would lure the youth to a turret, managing to be locked in with him and an armed man; he would post Ramsay below the turret window, and warn him to run up the dark staircase at the King's cry of treason. By the locked door he would exclude Lennox and Mar, while his minions would first delay Gowrie's approach, by the narrow stairs, and then permit him to enter with only one companion, Cranstoun. He would cause a report of his own departure to be circulated, exactly at the right moment to bring Gowrie under the turret window, and within reach of his cries. This plot requires the minutest punctuality, everything must occur at the right moment, and all would have been defeated had Gowrie told the truth about the King's departure, or even asked 'Where is the King's horse?' Or Gowrie might have stood in the streets of Perth, and summoned his burgesses in arms. The King and the courtiers, with their dead man, would have been beleaguered, without provisions, in Gowrie's house. Was James the man, on the strength of the grudges which we have carefully enumerated, to risk himself, unarmed, in this situation? As to how he managed to have the door locked, so as to exclude the majority of his suite, who can conjecture? How, again, did he induce Gowrie to aver, and that after making inquiry, that he *had* ridden homewards?

I cannot believe that any sane man or monarch, from the motives specified, would or could have laid, and that successfully, the plot attributed to the King.

Turning to Gowrie, we find that his grudges against James may have been deep and many. If revengeful, he had the treacherous method of his father's

conviction, and the insults to his mother, to punish. For a boy of seventeen he had already attempted a good deal, in 1593–1594. His mother had set him an example of King-catching, and it looks as if his mother had been near him in Perth, while he was at Strabane. If ambitious, and devoted to Elizabeth and England (as he had been), Gowrie had motives for a new Raid of Ruthven, the unceasing desire of the English Government. He might, if successful, head a new administration resting on the support of England and the Kirk. Such a change was due in the natural course of things. Or, quite the reverse, if a secret Catholic he might hand the King over to Bothwell.

Thus Gowrie may well have wished to revenge his father; his mother had once already helped to betray James to an attack of the most insulting nature; he himself was strong for the Kirk, over which James was playing the despot; *or*, he desired toleration for Catholics; he had been well received in England, where all such plots—their name was legion—had always been fostered; he was very young, and he risked everything. Only his method was new—that of strict secrecy. He had previously spoken to Mr. Cowper, minister of Perth, in a general way, about the failure of plots for lack of deep secrecy, and through the admission of too many confederates. Cowper told this to Spottiswoode, at Falkland. Mr. Rhynd, Gowrie's tutor, told Cowper and the Comptroller, 'unrequired' (not under torture, nor in answer to a question under examination), that Gowrie, when abroad, several times said that 'he was not a wise man that, having the execution of a high and dangerous purpose, communicated the same to any but himself.'

As to this secrecy, we must remember that Gowrie was very young; that in Italy he may have heard or read of romantic and crafty plots; and may long have dreamed (as Robert Oliphant's reported allegation declared) of some such scheme as that in which he failed. We must remember, too, that James's own account at least suggests a plan quite feasible. To bring James to Gowrie House, early in the day, when the townsmen were at kirk, to bring him with only three or four attendants, then to isolate him and carry him off, was far from impossible; they might hurry him, disguised, to Dirleton, a castle garrisoned and provisioned, according to Carey, who reports the version of Gowrie's friends. A Scottish judge, Gibson (the ancestor of Sir Thomas Gibson-Carmichael), was later carried from Leith Sands across the Border, with perfect success. A fault of the plan was that,

once undertaken, it could not be dropped, even though James came late and well attended. Ruthven could not tell the King that his story about a captive and a pot of gold was false. To do that would have subjected him to a charge of treason. He could have only one motive for thus deceiving his Majesty. Thus the plot *had* to go on, even under circumstances very unfavourable. There was no place for repentance.

Thus considered, the conspiracy looks like the plot of a romance, not without meritorious points, but painfully amateurish.

As proof of Gowrie's guilt, the evidence, I think, distinctly proves that he intentionally concealed from those about him the ride of his brother, Henderson, and Andrew Ruthven to Perth; that he concealed his knowledge, derived from Henderson, of the King's approach; and that Ruthven concealed from Craigengelt, on his return, his long ride to Falkland, saying that he had been on 'an errand not far off.' Moncrieff swore that Henderson gave him a similar answer. Asked by Moncrieff where he had been, he said 'he had been two or three miles above the town.' Henderson corroborated Moncrieff's evidence on this point. There can have been no innocent motive for all this secrecy. It would have been natural for Gowrie to order luncheon for the King to be prepared, as soon as Henderson arrived.

Finally, the Earl's assertions that James had ridden away, assertions repeated after he had gone upstairs to inquire and make sure, are absolutely incompatible with innocence. They could have only one motive, to induce the courtiers to ride off and leave the King in his hands.

What was to happen next? Who can guess at the plot of such a plotter? It is perhaps least improbable that the King was to be conveyed secretly, by sea or across Fife, to Dirleton in the first place. Gowrie may have had an understanding with Guevara at Berwick. James himself told Nicholson that a large English ship had hovered off the coast, refusing communication with the shore. Bothwell, again, now desperate, may have lately been nearer home than was known; finally, Fastcastle, the isolated eyrie on its perpendicular rock above the Northern Sea, may have been at Gowrie's disposal. I am disinclined to conjecture, being only certain that a young man with Gowrie's past—'Italianate,' and of dubious religion—was more apt to form a wild and daring plot than was his canny senior, the King of

Scots. But that a plot of some kind Gowrie had laid, I am convinced by his secrecy, and by his falsehoods as to the King's departure. Among the traps for the King contrived by Bothwell and Colville, and reported by Colville to his English paymasters, were schemes quite as wild as that which Gowrie probably entertained. The King once in the pious hands of so godly a man as Gowrie, the party of the Kirk, or the party of the Church, would have come in and made themselves useful. [\[147\]](#)

XII. LOGAN OF RESTALRIG

We now arrive at an extraordinary sequel of the Gowrie mystery: a sequel in which some critics have seen final and documentary proof of the guilt of the Ruthvens. Others have remarked only a squalid intrigue, whereby James's ministers threw additional disgrace on their master. That they succeeded in disgracing themselves, we shall make only too apparent, but if the evidence which they handled proves nothing against the Ruthvens, it does not on that account invalidate the inferences which we have drawn as to their conspiracy. We come to the story of the Laird and the country writer.

That we may know the Laird better, a brief description of his home may be introduced. Within a mile and a half of the east end of Princes Street, Edinburgh, lies, on the left of the railway to the south, a squalid suburb. You drive or walk on a dirty road, north-eastwards, through unambitious shops, factories, tall chimneys, flaming advertisements, and houses for artisans. The road climbs a hill, and you begin to find, on each side of you, walls of ancient construction, and traces of great old doorways, now condemned. On the left are ploughed fields, and even clumps of trees with blackened trunks. Grimy are the stacks of corn in the farmyard to the left, at the crest of the hill. On the right, a gateway gives on a short avenue which leads to a substantial modern house. Having reached this point in my pilgrimage, I met a gentleman who occupies the house, and asked if I might be permitted to view the site. The other, with much courtesy, took me up to the house, of which only the portion in view from the road was modern. Facing the west all was of the old Scottish château style, with gables, narrow windows, and a strange bulky chimney on the north, bulging out of the wall. The west side of the house stood on the very brink of a steep precipice, beneath which lay what is now but a large deep waterhole, but, at the period of the Gowrie conspiracy, was a loch fringed with water weeds, and a haunt of wild fowl. By this loch, Restalrig Loch, the witch more than

three centuries ago met the ghost of Tam Reid, who fell in Pinkie fight, and by the ghost was initiated into the magic which brought her to the stake.

I scrambled over a low wall with a deep drop, and descended the cliff so as to get a view of the ancient château that faces the setting sun. Beyond the loch was a muddy field, then rows on rows of ugly advertisements, then lines of 'smoky dwarf houses,' and, above these, clear against a sky of March was the leonine profile of Arthur's Seat. Steam rose and trailed from the shrieking southward trains between the loch and the mountain, old and new were oddly met, for the château was the home of an ancient race, the Logans of Restalrig, ancestors of that last Laird with whom our story has to do. Their rich lands stretched far and wide; their huge dovecot stands, sturdy as a little pyramid, in a field to the north, towards the firth. They had privileges over Leith Harbour which must have been very valuable: they were of Royal descent, through a marriage of a Logan with a daughter of Robert II. But their glory was in their ancestor, Sir Robert Logan, who fell where the good Lord James of Douglas died, charging the Saracens on a field of Spain, and following the heart of Bruce. So Barbour sings, and to be named by Barbour, for a deed and a death so chivalrous, is honour enough.





The Logans flourished in their eyrie above the Loch of Restalrig, and intermarried with the best houses, Sinclairs, Ogilvys, Homes, and Ramsays of Dalhousie. It may be that some of them sleep under the muddy floor of St. Triduana's Chapel, in the village of Restalrig, at the foot of the hill on the eastern side of their old château. This village, surrounded by factories, is apparently just what it used to be in the days of James VI. The low thick-walled houses with fore-stairs, retain their ancient, high-pitched, red-tiled roofs, with dormer windows, and turn their tall narrow gables to the irregular street. 'A mile frae Embro town,' you find yourself going back three hundred years in time. On the right hand of the road, walking eastward, what looks like a huge green mound is visible above a high ancient wall. This is all that is left of St. Triduana's Chapel, and she was a saint who came from Achaia with St. Regulus, the mythical founder of St. Andrews. She died at Restalrig on October 8, 510, and may have converted the Celts, who then dwelt in a crannog in the loch; at all events we hear that, in a very dry summer, the timbers of a crannog were found in the sandy deposit of the lake margin. The chapel (or chapter-house?), very dirty and disgracefully neglected, has probably a crypt under it, and certainly possesses a beautiful groined roof, springing from a single short pillar in the centre. The windows are blocked up with stones, the exterior is a mere mound of grass like a sepulchral tumulus. On the floor lies, broken, the gravestone of a Lady Restalrig who died in 1526. Outside is a patched-up church; the General Assembly of 1560 decreed that the church should be

destroyed as ‘a monument of idolatry’ (it was a collegiate church, with a dean, and prebendaries), and in 1571 the wrought stones were used to build a new gate inside the Netherbow Port. The whole edifice was not destroyed, but was patched up, in 1836, into a Presbyterian place of worship. This old village and kirk made up ‘Restalrig Town,’ a place occupied by the English during the siege of Leith in 1560. So much of history may be found in this odd corner, where the sexton of the kirk speaks to the visitor about ‘the Great Logan,’ meaning that Laird who now comes into the sequel of the Gowrie mystery.

For some thirty years before the date of which we are speaking, a Robert Logan had been laird of Restalrig, and of the estate of Flemington, in Berwickshire, where his residence was the house of Gunnisgreen, near Eyemouth, on the Berwickshire coast. He must have been a young boy when, in 1560, the English forces besieging Leith (then held by the French for Mary of Guise) pitched their camp at Restalrig.

In 1573, Kirkcaldy of Grange and Maitland of Lethington gallantly held the last strength of the captive Mary Stuart, the Castle of Edinburgh. The fortress was to fall under the guns of the English allies of that Earl of Gowrie (then Lord Ruthven), who was the father of the Gowrie of our mystery.

On April 17, 1573, a compact was made between Lord Ruthven and Drury, the English general. One provision was (the rest do not here concern us) that Alexander, Lord Home; Lethington; and Robert Logan of Restalrig, if captured, ‘shall be reserved to be justified by the laws of Scotland,’ which means, hanged by the neck. But neither on that nor on any other occasion was our Logan hanged. ^[152] He somehow escaped death and forfeiture, when Kirkcaldy was gibbeted after the fall of the castle. In 1577, we find him, with Lord Lindsay and Mowbray of Barnbogle (now Dalmeny) surety for Queen Mary’s half-brother, the Lord Robert Stewart, who vainly warned Darnley to escape from Kirk o’ Field. Lord Robert was then confined by the Regent Morton in Linlithgow, and Logan with the rest was surety in 10,000*l.* that he would not attempt to escape. Later, Logan was again surety that Lord Robert would return after visiting his dominions, the Orkney Islands. ^[153]

Logan, though something of a pirate, was clearly a man of substance and of a good house, which he strengthened by alliances. One of his wives, Elizabeth Macgill, was the daughter of the Laird of Cranstoun Riddell, and one of her family was a member of the Privy Council. From Elizabeth Logan was divorced; she was, apparently, the mother of his eldest son, Robert. By the marriage of an ancestor of Logan's with an heiress of the family of Hume, he acquired the fortress and lands of Fastcastle, near St. Abbs, on the Berwickshire coast. The castle, now in ruins, is the model of Wolfscrag in 'The Bride of Lammermoor.' Standing on the actual verge of a perpendicular cliff above the sea, whence it is said to have been approached by a staircase cut in the living rock, it was all but inaccessible, and was strongly fortified. Though commanded by the still higher cliff to the south, under which it nestled on its narrow plateau of rock, Fastcastle was then practically impregnable, and twenty men could have held it against all Scotland. Around it was, and is, a roadless waste of bent and dune, from which it was severed by a narrow rib of rock jutting seawards, the ridge being cut by a cavity which was spanned by a drawbridge. Master of this inaccessible eyrie, Logan was most serviceable to the plotters of these troubled times.

His religion was doubtful, his phraseology could glide into Presbyterian cant, but we know that he indifferently lent the shelter of his fastness to the Protestant firebrand, wild Frank Stewart, Earl of Bothwell (who, like Carey writing from Berwick to Cecil, reckons Logan among Catholics), or to George Ker, the Catholic intriguer with Spain. Logan loved a plot for its own sake, as well as for chances of booty and promotion. He was a hard drinker, and associate of rough yeomen and lairds like Ninian Chirnside of Whitsumlaws (Bothwell's emissary to the wizard, Richard Graham), yet a man of ancient family and high connections. He seems to have been intimate with the family of Sir John Cranstoun of Cranstoun. On one occasion he informs Archibald Douglas, the detested and infamous murderer and deeply dyed traitor, that 'John of Cranstoun is the one man now that bears you best good will.' (January 1587?)



In January 1600, the year of the Gowrie plot, we find Sir John Cranstoun in trouble for harbouring an outlawed Mr. Thomas Cranstoun, who was, with Douglas, the Laird of Spot, one of Bothwell's allies in all his most desperate raids on the person of King James. In 1592, Mr. Thomas Cranstoun was forfeited, he was informed against for 'new conspiracies against his Majesty's life and estate,' and, in January 1600, Sir John Cranstoun was sheltering this dangerous and desperate Bothwellian outlaw, as was his son-in law, Mr. William Cranstoun. [\[155a\]](#)

Now the Mr. Thomas Cranstoun who was hanged for his part in the Gowrie affair, was brother of Sir John Cranstoun of Cranstoun, the ally of that other Mr. Thomas Cranstoun who was so deep in Bothwell's wild raids on the King's person. In the spring of 1600 (as we have said, but must here repeat) there were reports that Bothwell had secretly returned to Scotland, and, on April 20, 1600, just before the date of Gowrie's arrival in Edinburgh from London, Nicholson reports suspected plots of Archibald Douglas, of John Colville, a ruined Bothwellian, and a spy, and of the Laird of Spot. [\[155b\]](#) This Colville had recently hinted to Essex that he could do a serviceable enterprise. 'As for the service I mean to do, if matters go to the worst, it shall be such, God willing—if I lose not my life in doing thereof—as no other can do with a million of gold, and yet I shall not exceed the bonds of humanity,' that is, he will not *murder* the King. 'But for conscience sake

and worldly honesty, I must first be absolved of my natural allegiance.’
(April 27, 1598; again, October 20, 1598.) ^[156]

The point for us to mark is that all these conspirators and violent men, Bothwell (in exile or secretly in Scotland), Colville (in 1600 an exile in Paris), the Laird of Spot, the Cranstouns, the infamous Archibald Douglas, with Richard Douglas his nephew, and Logan of Restalrig, were united, if not by real friendship, at least, as Thucydides says, by ‘partnership in desperate enterprises’ and by 1600 were active in a subterranean way. If it is fair to say, *noscitur a sociis*, ‘a man is known by the company he keeps,’ Logan of Restalrig bears the mark of the secret conspirator. He had relations with persons more distinguished than his Chirnsides and Whittingham Douglasses, though they were of near kin to the Earl of Morton. His mother, a daughter of Lord Gray, married Lord Home, after the death of Logan’s father. The Laird of Restalrig was thus a half-brother of the new Lord Home, a Warden of the Border, and also was first cousin of the beautiful, accomplished, and infamous Master of Gray, the double spy of England and of Rome.

Logan, too, like the Master, had diplomatic ambitions. In 1586 (July 29) we find him corresponding with the infamous Archibald Douglas, one of Darnley’s murderers, whom James had sent, in the crisis of his mother’s fate, as his ambassador to Elizabeth. In 1586, Logan, with two other Logans, was on the packed jury which acquitted Douglas of Darnley’s murder. Logan was a retainer of Bothwell, that meteor-like adventurer and king-catcher, and he asks Douglas to try to procure him employment (of course as a spy) from Walsingham, the English statesman. ^[157]

In October of the same year, we find the Master of Gray writing to Douglas, thus: ‘Of late I was forced, at Restalrig’s suit, to pawn some of my plate, and the best jewel I had, to get him money for his marriage’—his second marriage, apparently. By December 1586 we find Logan riding to London, as part of the suite of the Master of Gray, who was to plead with Elizabeth for Mary’s life. He was the Master’s most intimate confidant, and, as such, in February-March 1587, proposed to sell all his secrets to Walsingham! Nevertheless, when Gray was driven into exile, later in 1587, Logan was one of his ‘cautioners,’ or sureties. He had been of the party of Gowrie’s father, during that nobleman’s brief tenure of power in 1582, 1583, and,

when Gowrie fell, Logan was ordered to hand his eyrie of Fastcastle over, at six hours' notice, to the officers of the King. Through the stormy years of Bothwell's repeated raids on James (1592–1594) Logan had been his partisan, and had been denounced a rebel. Later he appears in trouble for highway robbery committed by his retainers. Among the diversions of this country gentleman was flat burglary. In December 1593, 'when nights are lang and mirk,' the Laird helped himself to the plate-chest of William Nesbit of Newton. 'Under silence of night he took spuillzie of certain gold and silver to the value of three thousand merks Scots.' The executors of Nesbit did not bring their action till after Logan died, in July 1606, 'in respect the said clandestine deed and fact came not to our knowledge, nor light as to who had committed the same,' till just before the action was brought.

In 1599, when conspiracies were in the air, Logan was bound over not to put Fastcastle in the hands of his Majesty's enemies and rebels. ^[158]

This brief sketch of a turbulent life is derived from Logan's own letters to Archibald Douglas, now among the Cecil Papers at Hatfield; from the 'Papers relating to the Master of Gray,' in which we find Logan, under a cypher name, betraying the Master, his cousin and ally, and from the Register of the Privy Council of Scotland, in which all that dead world, from the King to the crofter, may be traced, often in circumstances peculiarly private.

At that time, civil processes of 'horning,' 'putting to the horn,' or outlawry, were the common resort of creditors against procrastinating debtors. Many of the most respectable persons, gentlemen and ladies, appear in these suits; Robert Abercromby sues a lady of rank for 150*l.* Scots. He is the burghess of Edinburgh, the King's saddler, who, as the Master of Ruthven told Craigengelt, had brought the King from Falkland to Perth, 'to take order for his debt.' Now the singular thing is that we never find Logan of Restalrig recorded as under 'horning' for debt, whereas, considering his character, we might expect him never to be free from 'the horn.' On the other hand, we know him to have been a lender, not a borrower. He was *sui profusus*. On January 1, 1599, Cecil had been making inquiries as to Logan, from Lord Willoughby commanding at Berwick. Cecil always had his eyes on Border Scots, likely to be useful in troubling King James. Willoughby replies,

‘There is sutch a laird of Lesterigge as you write of, a vain lose man, a greate favourer of thefes reputed, yet a man of a good clan, as they here tearme it, and a gud fellow.’ [\[159\]](#)

Such was Logan of Restalrig, ‘Old Rugged and Dangerous.’ In 1601, May 30, we find him appearing as surety for Philip Mowbray, one of the Mowbrays of Barnbogle, whose sister stood by Queen Mary at the scaffold, and whose brother Francis was with the bold Buccleuch, when he swam ‘that wan water’ of Esk, and rescued Kinmont Willie from Carlisle Castle. This Francis Mowbray and his brother Philip were (1601–1603) mixed up with Cecil in some inscrutable spy-work, and intrigues for the murder of King James. The Mowbrays were old friends of Logan: they had been engaged in privateering enterprises together, but could produce no letters of marque! In 1603, Francis Mowbray, abandoned and extradited by Cecil, was killed in an attempt to escape from Edinburgh Castle. He had been accused, by an Italian fencing-master, of a conspiracy to kill James. Cecil had, of course, by this time made peace and alliance with James, who was on the point of ascending the English throne, and he gave up Francis. Mowbray challenged the Italian fencing-master to judicial combat; the Italian came down to fight him, the lists were actually pitched at Holyrood, when (January 31, 1603) Francis preferred to try the chance of flight; the rope of knotted sheet to which he trusted broke, and he was dashed to pieces on the Castle rocks. [\[160a\]](#)

Since 1592, Mowbray had been corresponding with Logan’s friend, Archibald Douglas, and offering his services to Cecil. To Cecil, in September 1600, he was again applying, regarding Elizabeth as his debtor. In 1600, he was in touch with Henry Locke, who had been Cecil’s go-between in his darkest intrigues against James, and his agent with Bothwell, Atholl, and the Gowrie slain on August 5, 1600. But, in the autumn of 1602, Cecil had become the secret ally of James, and gave up poor Francis, a broken tool of his and of Elizabeth’s. [\[160b\]](#)

We have now learned a good deal about Logan’s habitual associates, and we have merely glanced at a few of the numberless plots against James which were encouraged by the English Government. If James was nervously apprehensive of treason, he had good cause. But of Logan at the moment of the Gowrie Plot, we know nothing from public documents. We do know,

however, on evidence which has previously been in part unpublished, in part unobserved, that from August 1600 onwards, Logan was oddly excited and restless. Though not in debt—or at least though no record of his ‘horning’ exists—he took to selling his lands, Restalrig, Flemington, Gunnisgreen, Fastcastle. ^[161] After 1600 he sold them all; he wallowed in drink; he made his wife wretched; with his eldest son he was on ill terms; he wandered to London, and to France in 1605, and he returned to die (of plague, it seems) in the Canongate, a landless but a monied man, in July 1606.

Why did Logan sell all his lands, investing in shipping property? The natural inference, at the time, was that he had been engaged in ‘some ill turn,’ some mysterious conspiracy, and people probably (certainly, if we believe the evidence to follow) thought that he had been an accomplice in the Gowrie affair.

He died, and his children by his first wives dissociated themselves from his executorship. The bulk of it was the unpaid part of the purchase money for his lands, sold by him to Balmerino, and Dunbar, James’s trusted ministers, who owed some 33,000 marks to the estate.

Logan had a ‘doer,’ or law agent, a country writer, or notary, named Sprot, who dwelt at Eyemouth, a hungry creature, who did not even own a horse. When Logan rode to Edinburgh, Sprot walked thither to join him. Yet the two were boon companions; Sprot was always loitering and watching at Gunnisgreen, always a guest at the great Christmas festivals, given by the Laird to his rough neighbours. The death of Logan was a disaster to Sprot, and to all the parasites of the Laird.

Logan died, we saw, in July 1606. In April, 1608, Sprot was arrested by a legal official, named Watty Doig. He had been blabbing in his cups, it is said, about the Gowrie affair; certainly most compromising documents, apparently in Logan’s hand, and with his signature, were found on Sprot’s person. They still bear the worn softened look of papers carried for long in the pockets. ^[162] Sprot was examined, and confessed that he knew beforehand of the Gowrie conspiracy, and that the documents in his possession were written by Logan to Gowrie and other plotters. He was tortured and in part recanted; Logan, he said, had *not* written the guilty

letters: he himself had forged them. This was all before July 5, 1608, while Mr. Robert Oliphant lay in prison, in London, on the same charge of guilty foreknowledge. Early in July 1608, the Earl of Dunbar came from London to Edinburgh, to deal with the affairs of the Kirk. He took Sprot out of his dungeon, gave him a more wholesome chamber, secluded him from gentlemen who came and threatened him (or so he said) if he made revelations, and Dunbar provided him with medical attendance. The wounds inflicted in ‘the boot’ were healed.

For six weeks Sprot was frequently examined, before members of the Privy Council and others, without torture. What he said the public did not know, nor, till now, have historians been better informed. Throughout, after July 5, 1608, he persisted in declaring Logan’s complicity in the Gowrie conspiracy, and his own foreknowledge. He was tried, solely on the evidence of guilty foreknowledge alleged in his own confessions, and of extracts, *given by him from memory only*, of a letter from Gowrie to Logan (*not* one of those which he claimed to have forged), and another of Logan to Gowrie, both of July 1600. On August 12, Sprot was hanged at Edinburgh. He repeated his confession of guilt from every corner of the scaffold. He uttered a long religious speech of contrition. Once, he said, he had been nearly drowned: but God preserved him for this great day of confession and repentance. But ‘no unbeliever in the guilt of Gowrie,’ says Calderwood, ‘was one whit the more convinced.’ Of course not, nor would the death of Henderson—which they clamoured for—have convinced them. They said, falsely, that Sprot was really condemned as a forger, and, having to die, took oath to his guilt in the Gowrie conspiracy, in consideration of promises of help to his wife and family. ^[164]

Nearly a year later, in June 1609, the exhumed remains of Logan were brought into court (a regular practice in the case of dead traitors), and were tried for treason. Five letters by Logan, of July 1600, were now produced. Three were from Logan to conspirators unnamed and unknown. One was to a retainer and messenger of his, Laird Bower, who had died in January 1606. These letters were declared, by several honourable witnesses, to be in Logan’s very unusual handwriting and orthography: they were compared with many genuine letters of his, and no difference was found. The Parliamentary Committee, ‘The Lords of the Articles,’ previously sceptical, were convinced by the five letters, the evidence to handwriting, the energy

of the Earl of Dunbar, and the eloquence of the King's Advocate. Logan's children were all forfeited, and Dunbar saved the money which he owed to Logan's estate. This trial is not alluded to, either by Calderwood or Archbishop Spottiswoode, in their histories. The five letters produced in the trial of Logan exist, and have been accepted as authentic by Mr. Tytler and Mr. Hill Burton, but not by writers who favour the Ruthvens. We print all five letters in Appendix C.

Meanwhile what had Sprot really said, under private examination, between July 5 and August 12, 1608, when he was executed?

This question is to be answered, from the hitherto unpublished records, in the following chapters. But, in common charity, the reader must be warned that the exposition is inevitably puzzling and complex. Sprot, under examination, lied often, lied variously, and, perhaps, lied to the last. Moreover much, indeed everything, depends here on exact dates, and Sprot's are loose, as was natural in the circumstances, the events of which he spoke being so remote in time.

Consequently the results of criticism of his confession may here be stated with brevity. The persevering student, the reader interested in odd pictures of domestic life, and in strange human characters may read on at his own peril. But the actual grains of fact, extracted from tons of falsehood, may be set down in very few words.

The genuine and hitherto unknown confessions of Sprot add no absolute certainty as to the existence of a Gowrie conspiracy. His words, when uncorroborated, can have no weight with a jury. He confessed that *all* the alleged Logan papers which, up to two days before his death, were in possession of the Privy Council, were forgeries by himself. But, on August 10, he announced that he had possessed one *genuine* letter of Logan to Gowrie (dated July 29, 1600). That letter (our Letter IV) or a forged copy was then found in his repositories. Expert evidence, however, decides that this document, like all the others, is in a specious imitation of Logan's hand, but that it has other characteristics of Sprot's own hand, and was penned by Sprot himself. Why he kept it back so long, why he declared that it alone was genuine, we do not know. That it *is* genuine, *in substance*, and was copied by Sprot from a real letter of Logan's in an imitation of Logan's

hand, and that, if so, it proves Logan's accession to the conspiracy, is my own private opinion. But that opinion is based on mere literary considerations, on what is called 'internal evidence,' and is, therefore, purely a matter of subjective impression, like one's idea of the possible share of Shakespeare in a play mainly by Fletcher or another. Evidence of this kind is not historical evidence. It follows that the whole affair of Sprot, and of the alleged Logan letters, adds nothing certain to the reasons for believing that there was a Gowrie conspiracy. As far as Sprot and his documents are concerned, we know that all, as they stand, are pure fictitious counterfeits by that unhappy man, while, as to whether one letter (IV) and perhaps another (I) are genuine *in substance*, every reader must form his own opinion, on literary grounds, and no opinion is of much value. Such is a brief summary of the facts. But the tenacious inquirer who can follow us through the tangled mazes of Sprot's private confessions, will perhaps agree with me that they contain distinguishable grains of fact, raising a strong surmise that Logan was really involved with Gowrie in a plot. Yet this, again, is a subjective impression, which may vary with each reader.

XIII. THE SECRETS OF SPROT

The final and deepest mystery of the mysterious Gowrie affair rises, like a mist from a marsh, out of these facts concerning Sprot. When he was convicted, and hanged, persisting in his confessions, on August 12, 1608, no letters by Gowrie, or any other conspirator, were produced in Court. Extracts, however, of a letter from Gowrie to Logan, and of one from Logan to Gowrie, were quoted in Sprot's formal Indictment. They were also quoted in an official publication, an account of Sprot's case, prepared by Sir William Hart, the Chief Justice, and issued in 1608. Both these documents (to which we return) are given by Mr. Pitcairn, in the second volume of his 'Criminal Trials.' But later, when the dead Logan was tried in 1609, five of his alleged plot letters (never *publicly* mentioned in Sprot's trial) were produced by the prosecution, and not one of these was identical with the letter of Logan cited in the Indictment of Sprot, and in the official account of his trial. There were strong resemblances between Logan's letter, quoted but not produced, in 1608, and a letter of Logan's produced, and attested to be in his handwriting, in 1609. But there were also remarkable variations.

Of these undeniable facts most modern historians who were convinced of the guilt of the Ruthvens take no notice; though the inexplicable discrepancies between the Logan letters *quoted* in 1608, and the letters *produced* as his in 1609, had always been matters of comment and criticism.

As to the letters of 1609, Mr. Tytler wrote, 'their import cannot be mistaken; *their authenticity has never been questioned*; they still exist . . . ' Now assuredly the letters exist. The five alleged originals were found by Mr. Pitcairn, among the Warrants of Parliament, in the General Register House, in Edinburgh, and were published by him, but without their endorsements, in his 'Criminal Trials' in Scotland. (1832). ^[169] Copies of the letters are also 'bookit,' or engrossed, in the Records of Parliament. These 'bookit'

transcripts were made carelessly, and the old copyist was puzzled by the handwriting and orthography of the alleged originals before him. The controversy about the genuineness of the five letters took new shapes after Mr. Pitcairn discovered those apparently in Logan's hand, and printed them in 1832. Mr. Hill Burton accepts them with no hint of doubt, and if Mr. Tytler was the most learned and impartial, Mr. Hill Burton was the most sceptical of our historians. Yet on this point of authenticity these historians were too hasty. The authenticity of the letters (except one, No. IV) was denied by the very man, Sprot, in whose possession most of them were originally found. ^[170] The evidence of his denial has been extant ever since Calderwood wrote, who tells us, clearly on the authority of an older and anonymous History in MS. (now in the Advocates' Library), that Sprot, when first taken (April 13–19, 1608), accused Logan of writing the letters, but withdrew the charge under torture, and finally, when kindly treated by Lord Dunbar, and healed of his wounds, declared that he himself had forged all the Logan letters (save one). Yet Logan was, to Sprot's certain knowledge (so Sprot persistently declared), involved in the Gowrie conspiracy.

Now assuredly this appeared to be an incredible assertion of Calderwood, or of his MS. source. He was a stern Presbyterian, an enemy of the King (who banished him), and an intimate friend of the Cranstoun family, who, in 1600, were closely connected with conspirators of their name. Thus prejudiced, Calderwood was believed by Mr. Pitcairn to have made an untrue or confused statement. Logan is in a plot; Sprot knows it, and yet Sprot forges letters to prove Logan's guilt, and these letters, found in Sprot's possession, prove his own guilty knowledge. There seems no sense in such behaviour. It might have been guessed that Sprot knew of Logan's guilt, but had no documentary evidence of it, and therefore forged evidence for the purpose of extorting blackmail from Logan. But, by 1608, when Sprot was arrested with some of the documents in his pocket, Logan had been dead for nearly two years.

The guess, that Sprot knew of Logan's treason, but forged the proof of it, for purposes of blackmailing him, was not made by historians. The guess was getting 'warm,' as children say in their game, was very near the truth, but it was not put forward by criticism. Historians, in fact, knew that Logan would not have stood an attempt at extortion. He was not that kind of man.

In 1594, he made a contract with Napier of Merchistoun, the inventor of Logarithms. Tradition declared that there was a hoard of gold in 'the place of Fastcastle.' Napier was to discover it (probably by the Divining Rod), and Logan was to give him a third of the profits. But Napier, knowing his man, inserted a clause in the deed, to the effect that, after finding the gold, *he was to be allowed a free exit from Fastcastle*. Whether he found the hoard or not, we do not know. But, two years later, in letting a portion of his property, Napier introduced the condition that his tenant should never sublet it to any person of the name of Logan! If he found the gold he probably was not allowed to carry off his third share. Logan being a resolute character of this kind, Sprot, a cowering creature, would not forge letters to blackmail him. He would have been invited to dine at Fastcastle. The cliffs are steep, the sea is deep, and tells no tales.

Thus where was Sprot's motive for forging letters in Logan's hand, and incriminating the Laird of Restalrig, and for carrying them about in his pocket in 1608? But where was his motive for confessing when taken and examined that he *did* forge the letters, if his confession was untrue, while swearing, to his certain destruction, that he had a guilty foreknowledge of the Gowrie conspiracy? He *might* conciliate Government and get pardoned as King's evidence, by producing what he called genuine Logan letters, and thus proving the conspiracy, and clearing the King's character; but this he did not do. He swore to the last that Logan and he were both guilty (so Calderwood's authority rightly reported), but that the plot letters were forged by himself, to what end Calderwood did not say. All this appeared midsummer madness. Calderwood, it was argued, must be in error.

A theory was suggested that Sprot really knew nothing of the Gowrie mystery; that he had bragged falsely of his knowledge, in his cups; that the Government pounced on him, made him forge the letters of Logan to clear the King's character by proving a conspiracy, and then hanged him, still confessing his guilt. But Mr. Mark Napier, a learned antiquary, replied (in a long Appendix to the third volume of the History by the contemporary Spottiswoode) to this not very probable conjecture by showing that, when they tried Sprot, Government produced no letters at all, only an alleged account by Sprot of two letters unproduced. Therefore, in August 1608, Mr. Napier argued, Government had no letters; if they had possessed them, they would infallibly have produced them. That seemed sound reasoning. In

1608 Government had no plot letters; therefore, the five produced in the trial of the dead Logan were forged for the Government, by somebody, between August 1608 and June 1609. Mr. Napier refused to accept Calderwood's wild tale that Sprot, while confessing Logan's guilt and his own, also confessed to having forged Logan's letters.

Yet Calderwood's version (or rather that of his anonymous authority in MS.) was literally accurate. Sprot, in *private* examinations (July 5, August 11, 1608), confessed to having forged all the letters but one, the important one, Letter IV, Logan to Gowrie. This confession the Government burked.

The actual circumstances have remained unknown and are only to be found in the official, but *suppressed*, reports of Sprot's private examinations, now in the muniment room of the Earl of Haddington. These papers enable us partly to unravel a coil which, without them, no ingenuity could disentangle. Sir Thomas Hamilton, the King's Advocate, popularly styled 'Tam o' the Cowgate,' from his house in that old 'street of palaces,' was the ancestor of Lord Haddington, who inherits his papers. Sir Thomas was an eminent financier, lawyer, statesman, and historical collector and inquirer, who later became Lord Binning, and finally Earl of Haddington. As King's Advocate he held, and preserved, the depositions, letters, and other documents, used in the private examinations of Sprot, on and after July 5, 1608. The records of Sprot's examinations between April 19 and July 5, 1600, are not known to be extant.

Sir Thomas's collection consists of summonses, or drafts of summonses, for treason, against the dead Logan (1609). There is also a holograph letter of confession (July 5, 1608) from Sprot to the Earl of Dunbar. There are the records of the *private* examinations of Sprot (July 5-August 11, 1600) and of other persons whom he more or less implicated. There are copies by Sprot, in his 'course,' that is, current, handwriting, of two of the five letters in Logan's hand (or in an imitation of it). These are letters I and IV, produced at the posthumous trial of Logan in June 1609. Finally, there are letters in Logan's hand (or in an imitation of it), addressed to James Bower and to one Ninian Chirnside, with allusions to the plot, and there is a long memorandum of matters of business, also containing hints about the conspiracy, in Logan's hand, or in an imitation thereof, addressed to John Bell, and James Bower.

Of these compromising papers, one, a letter to Chirnside, was found by the Rev. Mr. Anderson (in 1902) torn into thirteen pieces (whereof one is missing), wrapped up in a sheet of foolscap of the period. Mr. Anderson has placed the pieces together, and copied the letter. Of all these documents, only five letters (those published by Mr. Pitcairn) were 'libelled,' or founded on, and produced by the Government in the posthumous trial of Logan (1609). Not one was produced before the jury who tried Sprot on August 12, 1608. He was condemned, we said, merely on his own confession. In his 'dittay,' or impeachment, and in the official account of the affair, published in 1608, were cited fragments of two letters *quoted from memory by Sprot under private examination*. These quotations from memory differ, we saw, in many places from any of the five letters produced in the trial of 1609, a fact which has aroused natural suspicions. This is the true explanation of the discrepancies between the plot letter cited in Sprot's impeachment, and in the Government pamphlet on his case; and the similar, though not identical, letter produced in 1609. The indictment and the tract published by Government contain merely Sprot's recollections of the epistle from Logan to Gowrie. The letter (IV) produced in 1609 is the genuine letter of Logan, or so Sprot seems, falsely, to swear. *This* document did not come into the hands of Government till after the Indictment, containing Sprot's quotation of the letter from memory, was written, or, if it did, was kept back.

All this has presently to be proved in detail.

As the Government (a fact unknown to our historians) possessed all the alleged Logan letters and papers *before* Sprot was hanged, and as, at his trial, they concealed this circumstance even from Archbishop Spottiswoode (who was present at Sprot's public trial by jury), a great deal of perplexity has been caused, and many ingenious but erroneous conjectures have been invented. The Indictment or 'dittay' against Sprot, on August 12, 1608, is a public document, but not an honest one. It contains the following among other averments. We are told that Sprot, in July 1600, at Fastcastle, saw and read the beginning of a letter from Logan to Gowrie (Letter IV). Logan therein expresses delight at receiving a letter of Gowrie's: he is anxious to avenge 'the Macchiavelian massacre of our dearest friends' (the Earl decapitated in 1584). He advises Gowrie to be circumspect, 'and be earnest

with your brother, that he be not rash in any speeches touching the purpose of Padua.’



This letter, *as thus cited*, is not among the five later produced in 1609; it is a blurred reminiscence of parts of two of them. The reason of these discrepancies is that the letter is quoted in the Indictment, *not* from the document itself (which apparently reach the prosecution after the Indictment was framed), but from a version given from memory by Sprot, in one of his private examinations. Next, Sprot is told in his Indictment that, some time later, Logan asked Bower to find this letter, which Gowrie, for the sake of secrecy, had returned to Bower to be delivered to Logan. We know that this was the practice of intriguers. After the December riot at Edinburgh in 1596, the Rev. Robert Bruce, writing to ask Lord Hamilton to head the party of the Kirk, is said to request him to return his own letter by the bearer. Gowrie and Logan practised the same method. The indictment goes on to say that Bower, being unable to read, asked Sprot to search for Logan’s letter to Gowrie, among his papers, that Sprot found it, ‘abstracted’ it (stole it), retained it, and ‘read it divers times,’ a *false quotation of the MS. confession*. Sprot really said that he kept the stolen letter (IV) ‘till’ he had framed on it, as a model, three forged letters. It contained a long passage of which the ‘substance’ is quoted. This passage as printed in Sprot’s Indictment is not to be found textually, in any of the five letters later produced. It is, we repeat, merely the version given from memory, by

Sprot, at one of his last private examinations, before the letter itself came into the hands of Government. In either form, the letter meant high treason.

Such is the evidence of the Indictment against Sprot, of August 12, 1608. In the light of Sprot's real confessions, hitherto lying in the Haddington muniment room, we know the Indictment to be a false and garbled document. Next, on the part of Government, we have always had a published statement by Sir William Hart, the King's Justice, with an introduction by Dr. George Abbot, later Archbishop of Canterbury, who was in Edinburgh, and present when Sprot was hanged. This tract was published by Bradewood, London, in 1608, and is reprinted by Pitcairn.

After a verbose, pious, and pedantic diatribe, Abbot comes to the point. Sprot was arrested in April 1608, first on the strength 'of some words that fell from himself,' and, next, '*of some papers found upon him.*' What papers? They are never mentioned in the Indictment of Sprot. They are never alluded to in the sequel of Abbot's pamphlet, containing the official account, by Sir William Hart, of Sprot's Trial and Examinations. In mentioning 'some papers found upon' Sprot, Dr. Abbot 'let the cat out of the bag,' but writers like Mr. Napier, and other sceptics of his way of thinking, deny that any of the compromising letters were found at all.

No letters, we say, are mentioned by Sir William Hart, in Abbot's tract (1608), *as having been produced*. Archbishop Spottiswoode, who was present at Sprot's public trial (August 12, 1608), thought the man one of those insane self-accusers who are common enough, and observes that he did not 'show the letter'—that of Logan to Gowrie (IV). This remark of Spottiswoode, an Archbishop, a converted Presbyterian, a courtier, and an advocate for the King, has been a source of joy to all Ruthven apologists. 'Spottiswoode saw through the farce,' they say; 'there was no letter at all, and, courtier and recreant as he was, Spottiswoode had the honesty to say so in his History.'

To this there used to be no reply. But now we know the actual and discreditable truth. The Government was, in fact, engaged in a shameful scheme to which Archbishops were better not admitted. They meant to use this letter (IV) on a later occasion, but they also meant to use some of the other letters which Sprot (unknown to Spottiswoode) had confessed to be

forgeries. The archiepiscopal conscience might revolt at such an infamy, Spottiswoode might tell the King, so the Scottish Government did not then allow the Archbishop, or the public, to know that they had any Logan letters. No letter at all came into open and public Court in 1608. Hart cites a short one, from Gowrie to Logan. Gowrie hopes to see Logan, or, at least, to send a trusty messenger, 'anent the purpose you know. But rather would I wish yourself to come, not only for that errand, but for some other thing that I have to advise with you.' There is no date of place or day. This letter, harmless enough, was never produced in Court, and Mr. Barbé supposes that it was a concoction of Hart's. This is an unlucky conjecture. The Haddington MSS. prove that Sprot really recited Gowrie's letter, or professed to do so, from memory, in one of his private examinations. The prosecution never pretended to possess or produce Gowrie's letter.

Next, Hart cites, as *Logan's answer to Gowrie's first letter* (which it was not), the passages already quoted by the prosecution in Sprot's Indictment, passages out of a letter of Logan's given by Sprot from memory only. Hart goes on to describe, as if on Sprot's testimony, certain movements of the Laird's after he received Gowrie's reply to his own answer to Gowrie. Logan's letter (as given in 1609) is dated July 29, and it is argued that his movements, after receiving Gowrie's reply, are inconsistent with any share in the plot which failed on August 5. Even if it were so, the fact is unimportant, for Sprot was really speaking of movements at a date much earlier than July 29; he later gave a separate account of what Logan was doing at the time of the outbreak of the plot, an account *not* quoted by Hart, who fraudulently or accidentally confused the dates. And next we find it as good as explicitly stated, by Hart, that this letter of Logan's to Gowrie was never produced in open Court. 'Being demanded where this above written letter, written by Restalrig to the Earl of Gowrie, which was returned again by James Bower, is now? Deponeth . . . that he (Sprot) left the above written letter in his chest, among his writings, when he was taken and brought away, and that it is closed and folded within a piece of paper,' so Hart declares in Abbot's tract. He falsified the real facts. He could not give the question as originally put to Sprot, for that involved the publication of the fact that all the letters but one were forged. The question in the authentic *private* report ran thus: 'Demanded where is that letter which

Restalrig wrote to the Earl of Gowrie, *whereupon the said George Sprot wrote and forged the missives produced?* (August 10).

The real letter of Logan to Gowrie, the only genuine letter (if in any sense genuine), had not on August 10 been produced. The others were in the hands of the Government. Hart, in his tract, veils these circumstances. The Government meant to put the letters to their own uses, on a later occasion, at the trial of the dead Logan.

Meanwhile we must keep one fact steadily in mind. When Sprot confessed to having forged treasonable letters in Logan's handwriting (as Calderwood correctly reports that he did confess), he *did not include among them Letter IV* (Logan to Gowrie July 29, 1600). *That* letter was never heard of by Sprot's examiners till August 10, and never came into the hands of his examiners till late on August 11, or early on August 12, the day when Sprot was hanged. Spottiswoode was never made aware that the letter had been produced. Why Sprot reserved this piece of evidence so long, why, under the shadow of the gibbet, he at last produced it, we shall later attempt to explain, though with but little confidence in any explanation.

Meanwhile, at Sprot's public trial in 1608, the Government were the conspirators. They burked the fact that they possessed plot-letters alleged to be by Logan. They burked the fact that Sprot confessed all these, with one or, perhaps, two exceptions, to be forgeries by himself. What they quoted, as letters of Logan and Gowrie, were merely descriptions of such letters given by Sprot from memory of their contents.

XIV. THE LAIRD AND THE NOTARY

We have now to track Sprot through the labyrinth of his confessions and evasions, as attested by the authentic reports of his private examinations between July 5 and the day of his death. It will be observed that, while insisting on his own guilt, and on that of Logan, he produced no documentary evidence, no genuine letter attributed by him to Logan, nothing but his own confessed forgeries, till the cord was almost round his neck—if he did then.

In his confessions he paints with sordid and squalid realism, the life of a debauched laird, tortured by terror, and rushing from his fears to forgetfulness in wine, travel, and pleasure; and to strange desperate dreams of flight. As a ‘human document’ the confessions of Sprot are unique, for that period.

On July 5, 1608, Sprot, in prison, wrote, in his own ordinary hand, the tale of how he knew of Logan’s guilt: the letter was conveyed to the Earl of Dunbar, who, with Dunfermline, governed Scotland, under the absent King. The prisoner gave many sources of his knowledge, but the real source, if any (Letter IV), he reserved till he was certain of death (August 10). Sprot ‘knew perfectly,’ he said, on July 5, that one letter from Gowrie and one from his brother, Alexander Ruthven, reached Logan, at Fastcastle and at Gunnisgreen, a house hard by Eyemouth, where Sprot was a notary, and held cottage land. ^[183] Bower carried Logan’s answers, and ‘long afterwards’ showed Sprot ‘the first of Gowrie’s letters’ (the harmless one about desiring an interview) and also a note of Logan’s to Bower himself, ‘which is amongst the rest of the letters produced.’ It is No. II, but in this confession of July 5, Sprot appears to say that Gowrie’s innocent letter to Logan, asking for an interview, was the source of his forgeries. ‘I framed them all to the true meaning and purpose of the letter that Bower let me see, to make the matter more clear by these arguments and circumstances, for

the cause which I have already' (before July 5) 'shewn to the Lords'—that is, for purposes of extorting money from Logan's executors.

This statement was untrue. The brief letter to Logan from Gowrie was not the model of Sprot's forgeries; as he later confessed he had another model, in a letter of Logan to Gowrie, which he held back till the last day of his life. But in this confession of July 5, Sprot admits that he saw, not only Gowrie's letter to Logan of July 6 (?) 1600 (a letter never produced), but also a 'direction' or letter from Logan to his retainer, Bower, dated 'The Canongate, July 18, 1600.' This is our Letter II. Had it been genuine, then, taken with Gowrie's letter to Logan, it must have aroused Sprot's suspicions. But this Letter II, about which Sprot told discrepant tales, is certainly not genuine. It is dated, as we said, 'The Canongate, July 18, 1600.' Its purport is to inform Bower, then at Brockholes, near Eyemouth, that Logan had received a *new* letter from Gowrie, concerning certain proposals already made orally to him by the Master of Ruthven. Logan hoped to get the lands of Dirleton for his share in the enterprise. He ends 'keep all things very secret, that my Lord, my brother' (Lord Home) 'get no knowledge of our purposes, for I' (would) 'rather be *eirdit quick*,' that is, buried alive (p. 205).

Now we shall show, later, the source whence Sprot probably borrowed this phrase as to Lord Home, and being *eirdit quick*, which he has introduced into his forged letter. Moreover, the dates are impossible. The first of the five letters purports to be from Logan to an unnamed conspirator, addressed as 'Right Honourable Sir.' It is not certain whether this letter was in the hands of the prosecution before the day preceding Sprot's execution, nor is it certain whether it is ever alluded to by Sprot under examination. But it is dated from Fastcastle on July 18, and tells the unknown conspirator that Logan has just heard from Gowrie. It follows that Logan had heard from Gowrie on July 18 at Fastcastle, that he thence rode to Edinburgh, and from Edinburgh wrote his letter (II) to Bower, bidding Bower hasten to Edinburgh, to consult. This is absurd. Logan would have summoned Bower from Fastcastle, much nearer Bower's home than Edinburgh. Again, in Letter I, Logan informs the unknown man that he is to answer Gowrie 'within ten days at furthest.' That being so, he does not need Bower in such a hurry, unless it be to carry the letter to the Unknown. But, in that case, he would have summoned Bower from Fastcastle, he would not have ridden to

Edinburgh and summoned him thence. Once more, Sprot later confessed, as we shall see, that this letter to Bower was dictated to himself by Logan, and that the copy produced, apparently in Logan's hand, was forged by him from the letter as dictated to him. He thus contradicted his earlier statement that Letter II was shown to him by Bower. He never says that he was in Edinburgh with Logan on July 18. Besides, it is not conceivable that, by dictating Letter II to Sprot, Logan would have voluntarily put himself in the power of the notary.

This is a fair example of Sprot's apparently purposeless lying. His real interest throughout was to persuade the Government that he was giving them genuine Logan letters. This, however, he denied, with truth, yet he lied variously about the nature of his confessed forgeries.

Sprot was so false, that Government might conceive his very confession of having forged the letters to be untrue. The skill in handwriting of that age could not detect them for impostures; Government might deem that he had stolen genuine letters from Bower; letters which might legitimately be produced as evidence. Indeed this charitable view is perhaps confirmed by the extraordinary fact, to be later proved, that three Edinburgh ministers, Mr. Hall, Mr. Hewat, and Mr. Galloway, with Mr. Lumisden, minister of Duddingston, were present on occasions when Sprot confessed to having forged the letters. Yet these four preachers said nothing, as far as we hear, when the letters, confessedly forged, were produced as evidence, in 1609, to ruin Logan's innocent child. Did the preachers think the letters genuine in spite of the confession that they were forged? We shall see later, in any case, that the *contents* of the three letters to the Unknown, and a torn letter, when compared with Letter IV, demonstrate that Sprot's final confession to having forged them on the model of IV is true; indeed the fact ought to have been discovered, on internal evidence, even by critics unaware of his confessions.

We now pursue Sprot's written deposition of July 5. He gives, as grounds of his knowledge of Logan's guilt, certain conversations among Logan's intimates, yeomen or 'bonnet lairds,' or servants, from which he inferred that Logan was engaged in treason. Again, just before Logan's death in July 1606, he was delirious, and raved of forfeiture. But Logan had been engaged in various treasons, so his ravings need not refer to the Gowrie

affair. He had been on Bothwell's enterprises, and had privy dealings with 'Percy,' probably Thomas Percy, who, in 1602, secretly visited Hume of Manderston, a kinsman of Logan. That intrigue was certainly connected merely with James's succession to the English crown. But one of Logan's retainers, when this affair of Percy was spoken of among them, said, according to Sprot, that the Laird had been engaged in treason 'nearer home.'

Sprot then writes that 'about the time of the conspiracy,' Logan, with Matthew Logan, rode to Dundee, where they enjoyed a three days' drinking bout, and never had the Laird such a surfeit of wine. But this jaunt could not be part of the Gowrie plot, and probably occurred after its failure. Later, Sprot gave a different version of Logan's conduct immediately before and after Gowrie's death. Once more, after Logan's death, one Wallace asked Sprot to be silent, if ever he had heard of 'the Laird's conspiracy.' Sprot ended by confessing contritely that he had forged all the letters (except Letter IV) 'to the true meaning and purpose of the letter that Bower let me see,' a passage already quoted, and a falsehood.

What was the 'cause' for which Sprot forged? It was a purpose to blackmail, not Logan, but Logan's heirs or executors, one of whom was Lord Home. If Sprot wanted to get anything out of *them*, he could terrify them by threatening to show the forged Logan letters, as genuine, to the Government, so securing the ruin of Logan's heirs by forfeiture. He did not do this himself, but he gave forged letters, for money, to men who were in debt to the dead Logan's estate, and who might use the letters to extort remission of what they owed.

On July 15, Sprot was examined before Dunfermline, Dunbar, Hart, the King's Advocate (Sir Thomas Hamilton), and other gentlemen. He said that, about July 6, 1600, Logan received a letter from Gowrie, which, two days later, Bower showed to him at Fastcastle. This is the harmless Gowrie letter, which Sprot now quoted from memory, as it is printed in Hart's official account.

Now begins a new puzzle, caused by Sprot's dates. Of these we can only give a conjectural version, for the sake of argument. Logan received a letter from Gowrie about July 6, 1600. He returned a reply, by Bower, but when

did Bower start with the reply? Let us say on July 9. Bower returned, says Sprot, 'within five days,' with 'a new letter' from Gowrie. That would bring us to July 14, but in Letters I and II, dated July 18, Logan is informing his unknown correspondent, and Bower, of the receipt of 'a new letter' from Gowrie. Why inform Bower of this, if Bower was the bearer of the new letter? But the 'new letter' mentioned in Letters I and II was brought by a retainer of Gowrie. In any case, supposing by way of conjecture that Bower returned from Gowrie about July 15, he spent the night, says Sprot, with Logan at Gunnisgreen, and next day (July 16) rode to Edinburgh with Bower, Boig of Lochend, and Matthew Logan. In Edinburgh he remained 'a certain short space,' say four days, which would bring us to July 20. Needless to say that this does not fit Letter II, Logan to Bower, July 18, and Letter I, Logan to the Unknown, Fastcastle, July 18.

After Logan's return from Edinburgh (which, according to Sprot, seems to be of about July 20) Sprot heard Logan and Bower discuss some scheme by which Logan should get Gowrie's estate of Dirleton, without payment. Bower said nothing could be done till Logan rode west himself. He discouraged the whole affair, but Logan said, in the hearing of several persons, that he would hazard his life with Gowrie. Lady Restalrig blamed Bower for making Logan try to sell the lands of Fastcastle (they were not sold till 1602), of which Bower protested his innocence. This was *after* Logan's return from Edinburgh (say July 20; that is, say five days after Logan's return, say July 25). Bower and Logan had a long conference in the open air. Sprot was lounging and spying about beside the river; a sea-fisher had taken a basket of blenneys, or 'green-banes.' Logan called to Sprot to bring him the fish, and they all supped. Before supper, however, Sprot walked about with Bower, and tried to 'pump' him as to what was going forward. Bower said that 'the Laird should get Dirleton without either gold or silver, but he feared it should be as dear to him. They had another pie in hand than the selling of land.' Bower then asked Sprot not to meddle, for he feared that 'in a few days the Laird would be either landless or lifeless.'

Certainly this is a vivid description; Bower and Logan were sitting on a bench 'at the byre end;' Sprot, come on the chance of a supper, was peeping and watching; Peter Mason, the angler, at the river side, 'near the stepping stones,' had his basket of blenneys on his honest back, his rod or net in his

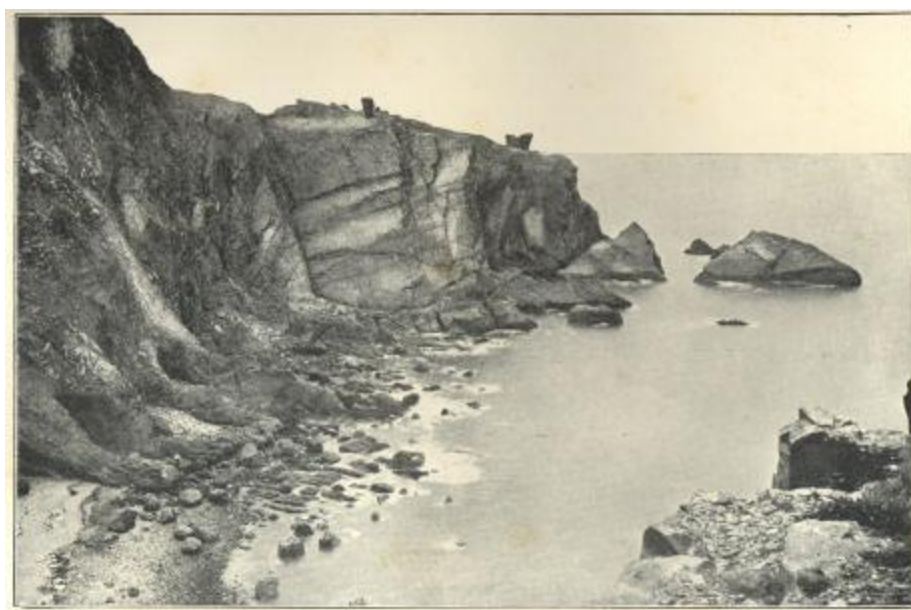
hand; the Laird was calling for the fish, was taking a drink, and, we hope, offering a drink to Mason. Then followed the lounge and the talk with Bower before supper, all in the late afternoon of a July day, the yellow light sleeping on the northern sea below. Vivid this is, and plausible, but is it true?

We have reached the approximate date of July 25 (though, of course, after an interval of eight years, Sprot's memory of dates must be vague). Next day (July 26) Logan, with Bower and others, rode to Nine Wells (where David Hume the philosopher was born), thence, the same night, back to Gunnisgreen, next night, July 27, to Fastcastle, and thence to Edinburgh. This brings us (allowing freely for error of memory) to about July 27, 'the hinder end of July,' says Sprot. If we make allowance for a vagueness of four or five days, this does not fit in badly. Logan's letter to Gowrie (No. IV), which Sprot finally said that he used as a model for his forgeries, is dated 'Gunnisgreen, July 29.' 'At the beginning of August,' says Sprot (clearly there are four or five days lost in the reckoning), Logan and Bower, with Matthew Logan and Willie Crockett, rode to Edinburgh, '*and there stayed three days*, and the Laird, with Matthew Logan, came home, and Bower came to his own house of the Brockholes, where he stayed four days,' and then was sent for by Logan, 'and the Laird was very sad and sorry,' obviously because of the failure of the plot on August 5.

How do these dates fit into the narrative? Logan was at Gunnisgreen (his letter (IV) proves it) on July 29. (Later we show another error of Sprot's on this point.) He writes that he is sending Bower as bearer of his letter to Gowrie. If Bower left Edinburgh on July 30, he could deliver the letter to Gowrie, at Perth, on August 2, and be back in Edinburgh (whither Logan now went) on August 5, and Logan could leave Edinburgh on August 6, after hearing of the deaths of his fellow-conspirators. We must not press Sprot too hard as to dates so remote in time. We may grant that Bower, bearing Logan's letter of July 29, rode with Logan and the others to Edinburgh; that at Edinburgh Logan awaited his return, with a reply; that he thence learned that August 5 was the day for the enterprise, and that, early on August 6, he heard of its failure, and rode sadly home: all this being granted for the sake of argument.

Had the news of August 6 been that the King had mysteriously disappeared, we may conceive that Logan would have hurried to Dirleton, met the Ruthvens there, with their prisoner, and sailed with them to Fastcastle. Or he might have made direct to Fastcastle, and welcomed them there. His reason for being at Restalrig or in the Canongate was to get the earliest news from Perth, brought across Fife, and from Bruntisland to Leith.

Whether correct or not, this scheme, allowing for lapse of memory as to dates, is feasible. Who can, remote from any documents, remember the dates of occurrences all through a month now distant by eight years? There were no daily newspapers, no ready means of ascertaining a date. Queen Mary's accusers, in their chronological account of her movements about the time of Darnley's death, are often out in their dates. In legal documents of the period the date of the day of the month of an event is often left blank. This occurs in the confirmation of Logan's own will. 'He died --- July, 1606.' When lawyers with plenty of leisure for inquiry were thus at a loss for dates of days of the month (having since the Reformation no Saints' days to go by), Sprot, in prison, might easily go wrong in his chronology.



In any case, taking Letter IV provisionally as genuine in substance, we note that, on July 29, Logan did not yet know the date fixed for Gowrie's enterprise. He suggested 'the beginning of harvest,' and, by August 5, harvest had begun. One of the Perth witnesses was reaping in the 'Morton haugh,' when he heard the town bell call the citizens to arms. But Gowrie

must have acted in great haste, Logan not knowing, till, say, August 2 or 3, the date of a plot that exploded on August 5.

Gowrie may have thought, as Lord Maxwell said when arranging his escape from Edinburgh Castle, ‘Sic interprysis are nocht effectuat with deliberationis and advisments, bot with suddane resolutionis.’

It is very important, we must freely admit, as an argument against the theory of carrying James to Logan’s impregnable keep of Fastcastle, that only one question, in our papers, is asked as to the provisioning of Fastcastle, and *that* merely as to the supply of drink! Possibly this had been ascertained in Sprot’s earlier and unrecorded examinations (April 19-July 5). One poor hogshead of wine (a trifle to Logan) had been sent in that summer; so Matthew Logan deponed. As Logan had often used Fastcastle before, for treasonable purposes, he was not (it may be supposed) likely to leave it without provisions. Moreover these could be brought by sea, from Dirleton, where Carey (August 11) says that Gowrie had stored ‘all his provision.’ Moreover Government did not wish to prove intent to *kidnap* the King. That was commonly regarded as a harmless constitutional practice, not justifying the slaughter of the Ruthvens. From the first, Government insisted that *murder* was intended. In the Latin indictment of the dead Logan this is again dwelt on; Fastcastle is only to be the safe haven of the murderers. This is a misreading of Letter IV, where Fastcastle is merely spoken of as to be used for a meeting, and ‘the concluding of our plot.’

Thus it cannot be concealed that, on July 29 (granting Letter IV to have a basis), the plot, as far as Logan knew, was ‘in the air.’ If Fastcastle was to be used by the conspirators, it must have been taken in the rough, on the chance that it was provided, or that Gowrie could bring his own supplies from Dirleton by sea. This extreme vagueness undeniably throws great doubt on Logan’s part in the plot; Letter IV, if genuine, being the source of our perplexity. But, if it is not genuine, that is, *in substance*, there is only rumour, later to be discussed, to hint that Logan was in any way connected with Gowrie.

We left Bower and Logan conversing dolefully some days after the failure of the plot. At this point the perhaps insuperable difficulty arises, why did

they not, as soon as they returned from Edinburgh, destroy every inch of paper connected with the conspiracy? One letter at least (Logan's to Gowrie, July 29) was not burned, according to Sprot, but was later stolen by himself from Bower; though he reserved *this* confession to the last day of his life but two. We might have expected Logan to take the letter from Bower as soon as they met, and to burn or, for that matter, swallow it if no fire was convenient! Yet, according to Sprot, in his final confession, Logan let Bower keep the damning paper for months. If this be true, we can only say *quos Deus vult perdere prius dementat*. People do keep damning letters, constant experience proves the fact.

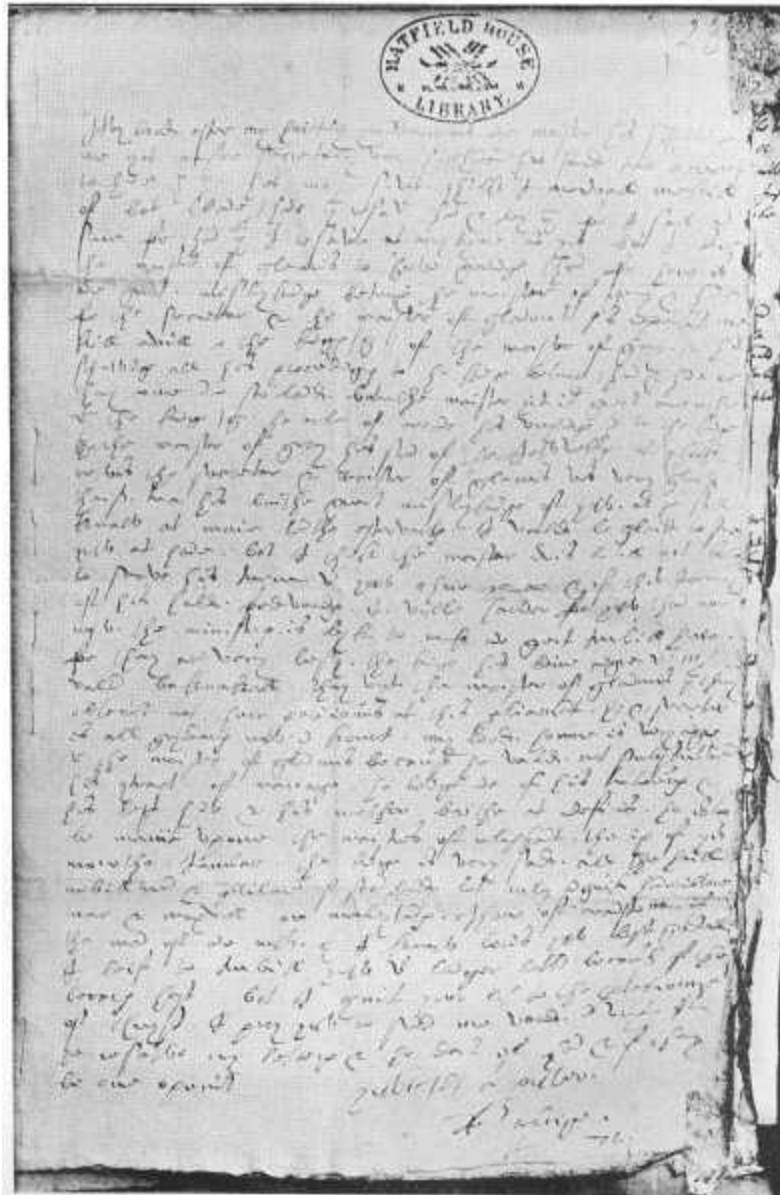
After Bower had met Logan in his melancholy mood, he rode away, and remained absent for four days, on what errand Sprot did not know, and during the next fortnight, while Scotland was ringing with the Gowrie tragedy, Sprot saw nothing of Logan.

Next, Logan went to church at Coldinghame, on a Sunday, and met Bower: next day they dined together at Gunnisgreen. Bower was gloomy. Logan said, 'Be it as it will, I must take my fortune, and I will tell you, Laird Bower, the scaffold is the best death that a man can die.' Logan, if he said this, must have been drunk; he very often was.

It was at this point, in answer to a question, that Sprot confessed that Logan's letter to Bower (No. II) was a forgery by himself. The actual letter, Sprot said, was dictated by Logan to him, and he made a counterfeit copy in imitation of Logan's handwriting. We have stated the difficulties involved in this obvious falsehood. Sprot was trying every ruse to conceal his alleged source and model, Letter IV.

Sprot was next asked about a certain memorandum by Logan directed to Bower and to one John Bell, in 1605. This document was actually found in Sprot's 'pocquet' when he was arrested, and it contained certain very compromising items. Sprot replied that he forged the memorandum, in the autumn of 1606, when he forged the other letters. He copied most of it from an actual but innocent note of Logan's on business matters, and added the compromising items out of his own invention. He made three copies of this forgery, one was produced; he gave another to a man named Heddilstone or Heddilshaw, a dweller in Berwick, in September 1607; the

third, 'in course hand,' he gave to another client, 'the goodman of Rentoun,' Hume. One was to be used to terrorise Logan's executors, to whom Heddilstane, but not Rentoun, was in debt. Sprot's words are important. 'He omitted nothing that was in the original' (Logan's memorandum on business matters), 'but *eikit*' (added) 'two articles to his copy, the one concerning Ninian Chirnside' (as to a dangerous plot-letter lost by Bower), 'the other, where the Laird ordered Bower to tear his missive letters. *He grants that he wrote another copy with his course hand, copied from his copy*, and gave it to the goodman of Rentoun,' while the copy given to Heddilstane 'was of his counterfeited writing,' an imitation of Logan's hand.



Perhaps Sprot had two methods and scales of blackmail. For one, he invented damning facts, and wrote them out in imitation of Logan's writing. The other species was cheaper: a copy in his 'course hand' of his more elaborate forgeries in Logan's hand. Now the two copies of Letters I and IV, which, at the end of his life, as we shall see, Sprot attested by signed endorsements, were in his 'course hand.' He had them ready for customers, when he was arrested in April 1608, and they were doubtless found in his 'kist' on the day before his death, with the alleged original of Letter IV. Up to August 11, at a certain hour, Government had neither the alleged original,

nor Sprot's 'course hand copy' of Letter IV, otherwise he would not have needed to quote IV from memory, as he did on that occasion.

Among these minor forgeries, to be used in blackmailing operations, was a letter nominally from Logan to one Ninian or Ringan Chirnside. This man was a member of the family of Chirnside of Easter Chirnside; his own estate was Whitsumlaws. All these Chirnsides and Humes of Berwickshire were a turbulent and lawless gang, true borderers. Ninian is addressed, by Logan, as 'brother;' they were most intimate friends. It was Ninian who (as the endorsement shows) produced our Letter V, on April 19; he had purchased it, for the usual ends, from Sprot, being a great debtor (as Logan's will proves) to his estate.

To track these men through the background of history is to have a notion of the Day of Judgment. Old forgotten iniquities and adventures leap to light. Chirnside, like Logan and the Douglasses of Whittingham, and John Colville, and the Laird of Spot, had followed the fortunes of wild Frank Stewart, Earl of Bothwell, and nephew of the Bothwell of Queen Mary. Frank Bothwell was driven into his perilous courses by a charge of practising witchcraft against the King's life. Absurd as this sounds, Bothwell had probably tried it for what it was worth. When he was ruined, pursued, driven, child of the Kirk as he seemed, into the Catholic faction, his old accomplice, Colville, took a solemn farewell of him. 'By me your lordship was cleared of the odious imputation of witchcraft . . . but God only knows how far I hazarded my conscience in making black white, and darkness light for your sake' (September 12, 1594). ^[198]

After Bothwell, when he trapped the King by aid of Lady Gowrie (July 1593), recovered power for a while, he defended himself on this charge of witchcraft. He *had* consulted and employed the wizard, Richard Graham, who now accused him of attempting the King's life by sorcery. But he had only employed Graham to heal the Earl of Angus, himself dying of witchcraft. Bothwell was charged with employing a retainer, *Ninian* Chirnside, to arrange more than twenty-one meetings with the wizard Graham; the result being the procurement of a poison, 'adder skins, toad skins, and the hippomanes in the brain of a young foal,' to ooze the juices on the King, 'a poison of such vehemency as should have presently cut him off.' Isobel Gowdie, accused of witchcraft in 1622, confessed to having

employed a similar charm. ^[199a] All this Bothwell, instructed by Colville, denied, but admitted that he had sent Ninian Chirnside twice to the wizard, all in the interests of the dying Earl of Angus. ^[199b]

This Chirnside, then, was a borderer prone to desperate enterprises and darkling rides, and midnight meetings with the wizard Graham in lonely shepherds' cottages, as was alleged. He could also sink to blackmailing the orphan child of his 'brother,' Logan of Restalrig.

To go on with Sprot's confessions; he had forged, he said, receipts from Logan to the man named Edward or Ned Heddilstane for some of the money which Heddilstane owed him. For these forgeries his client paid him well, if not willingly. Sprot frequently blackmailed Ned, 'whenever he want siller.'

It must be granted that Sprot was a liar so complex, and a forger so skilled (for the time, that is), that nothing which he said or produced can be reckoned, as such, as evidence. On the other hand, his power of describing or inventing scenes, real or fictitious, was of high artistic merit, so that he appears occasionally either to deviate into truth, or to have been a realistic novelist born centuries too early. Why then, it may be asked, do we doubt that Sprot may have forged, without a genuine model, Letter IV? The answer will appear in due time. Letter IV, as Sprot confessed, is certainly the model of all the letters which he forged, whether those produced or those suppressed. He was afraid to wander from his model, which he repeated in Letters I (?), III, V, and in the unproduced letters, including one which we have found in twelve torn fragments, with the signature missing.

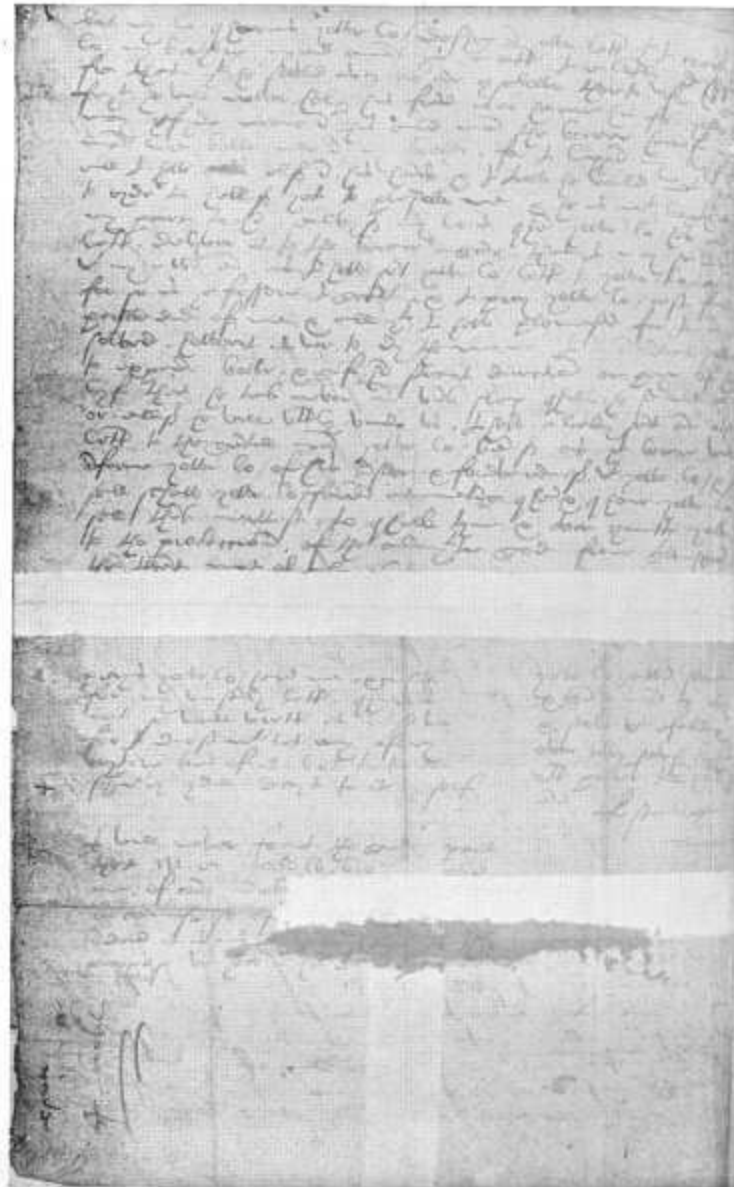
XV. THE FINAL CONFESSIONS OF THE NOTARY

On July 16, Sprot was again examined. Spottiswoode, Archbishop of Glasgow, the historian, was present, on this occasion only, with Dunfermline, Dunbar, Sir Thomas Hamilton, Hart, and other nobles and officials. None of them signs the record, which, in this case only, is merely attested by the signature of Primrose, the Clerk of Council, one of Lord Rosebery's family. In this session Sprot said nothing about forging the letters. The Archbishop was not to know.

Asked if he had any more reminiscences, Sprot said that, in November 1602, Fastcastle having been sold, Logan asked Bower 'for God's sake' to bring him any of the letters about the Gowrie affair which he might have in keeping. Bower said that he had no dangerous papers except one letter from Alexander Ruthven, and another from 'Mr. Andro Clerk.' This Clerk was a Jesuit, who chiefly dealt between Spain and the Scotch Catholics. He was involved in the affair called 'The Spanish Blanks' (1593), and visited the rebel Catholic peers of the North, Angus, Errol, and Huntly. ^[202] Logan, like Bothwell, was ready to intrigue either with the Kirk or the Jesuits, and he seems to have had some personal acquaintance with Father Andrew.

Bower left Logan, to look for these letters at his own house at Brockholes, and Logan passed a night of sleepless anxiety. One of the mysteries of the case is that Logan entrusted Bower, who could not read, with all his papers. If one of them was needed, Bower had to employ a person who could read to find it: probably he used, as a rule, the help of his better educated son, Valentine. After Logan's restless night, Bower returned with the two letters, Ruthven's and Clerk's, which Logan 'burned in the fire.'

(Let it be remembered that Sprot has not yet introduced Letter IV into his depositions, though that was by far the most important.)



After burning Clerk's and Ruthven's letters, Logan dictated to Sprot a letter to John Baillie of Littlegill, informing him of the fact. Bower rode off with the letter, and Logan bade Sprot be silent about all these things, for he had learned, from Bower, that Sprot knew a good deal. Here the amateur of the art of fiction asks, why did Sprot drag in Mr. John Baillie of Littlegill? If Logan, as Sprot swore, informed Baillie about the burned letters, then Baillie had a guilty knowledge of the conspiracy. Poor Baillie was instantly 'put in ward' under the charge of the Earl of Dunfermline. But, on the day after Sprot was hanged, namely on August 13, Baillie was set free, on bail of 10,000 marks to appear before the Privy Council if called upon. Three of

Sprot's other victims, Maul, Crockett, and William Galloway, were set free on their personal recognisances, but Mossman and Matthew Logan were kept in prison, and Chirnside was not out of danger of the law for several years, as we learn from the Privy Council Register. Nothing was ever proved against any of these men. After the posthumous trial of Logan (June 1609) the King bade the Council discharge John Baillie from his bail, 'as we rest now fully persuaded that there was no just cause of imputation against the said John.' So the Register of the Privy Council informs us.

[203] Thus, if Sprot told the truth about all these men, no corroborative facts were discovered, while the only proofs of his charges against Logan were the papers which, with one exception, he confessed to be forgeries, executed by himself, for purposes of extortion.

To go on with his confessions: The Christmas of 1602 arrived, and 'The Laird keepit ane great Yule at Gunnisgreen.' On the third day of the feast, Logan openly said to Bower, at table, 'I shall sleep better this night than that night when I sent you for the letters' (in November), 'for now I am sure that none of these matters will ever come to further light, if you be true.' Bower answered, 'I protest before God I shall be counted the most damnable traitor in the world, if any man on earth know, for I have buried them.'

After supper, Bower and Logan called Sprot out on to the open hill-side. Logan said that Bower confessed to having shown Sprot a letter of Gowrie's. What, he asked, did Sprot think of the matter? Sprot, with protestations of loyalty, said that he thought that Logan had been in the Gowrie conspiracy. Logan then asked for an oath of secrecy, promising 'to be the best sight you ever saw,' and taking out 12*l.* (Scots) bade Sprot buy corn for his children. Asked who were present at the scene of the supper, Sprot named eight yeomen. 'The lady' (Lady Restalrig) 'was also present at table that night, and at her rising she said, "The Devil delight in such a feast, that will make all the children weep hereafter," and this she spoke, as she went past the end of the table. And, after entering the other chamber, she wept a while, 'and we saw her going up and down the chamber weeping.'

A fortnight later, Lady Restalrig blamed Bower for the selling of Fastcastle. Bower appealed to Logan; it was Logan's fault, not his. 'One of two

things,' said Bower, 'must make you sell your lands; either you think your children are bastards, or you have planned some treason.' The children were not those of Lady Restalrig, but by former marriages. Logan replied, 'If I had all the land between the Orient and the Occident, I would sell the same, and, if I could not get money for it, I would give it to good fellows.' On another occasion Logan said to Bower, 'I am for no land, I told you before and will tell you again. You have not learned the art of memory.'

In fact, Logan did sell, not only Fastcastle, but Flemington and Restalrig. We know how the Scot then clung to his acres. Why did Logan sell all? It does not appear, as we have shown, that he was in debt. If he had been, his creditors would have had him 'put to the horn,' proclaimed a recalcitrant debtor, and the record thereof would be found in the Privy Council Register. But there is no such matter. Sprot supposed that Logan wished to turn his estates into money, to be ready for flight, if the truth ever came out. The haste to sell all his lands is certainly a suspicious point against Logan. He kept on giving Sprot money (hush money, and for forgeries to defraud others, sometimes) and taking Sprot's oath of secrecy.

A remarkable anecdote follows; remarkable on this account. In the letter (II) which Logan is said by Sprot to have written to Bower (July 18, 1600) occurs the phrase, 'Keep all things very secret, that my lord my brother get no knowledge of our purposes, *for I rather be eirdit quik*'—would rather be buried alive (p. 184). This 'my lord my brother' is obviously meant for Alexander, sixth Lord Home, whose father, the fifth lord, had married Agnes, sister of Patrick, sixth Lord Gray, and widow of Sir Robert Logan of Restalrig. By Sir Robert, Lady Restalrig had a son, the Logan of this affair; and, when, after Sir Robert's death, she married the fifth Lord Home, she had to him a son, Alexander, sixth Lord Home. Our Logan and the sixth Lord Home were, therefore, brothers uterine. [\[206a\]](#)

Now, if we accept as genuine (in substance) the one letter which Sprot declared to be really written by Logan (No. IV), Gowrie was anxious that Home, a person of great importance, Warden on the Border, should be initiated into the conspiracy. As Gowrie had been absent from Scotland, between August 1594 (when he, as a lad, was in league with the wild king-catcher, Francis Stewart of Bothwell), and May 1600, we ask, what did Gowrie know of Home, and why did he think him an useful recruit? The

answer is that (as we showed in another connection, p. 130) Gowrie was in Paris in February-April 1600, that Home was also in Paris at the same time (arriving in Scotland, at his house of Douglas, April 18, 1600), and that Home did not go to Court, on his return, owing to the King's displeasure because of his 'trysting with Bothwell' in Brussels. [206b]

Here then we have, in March 1600, Gowrie and Home, in Paris, and Bothwell, the King-catcher, meeting Home in Brussels. Therefore, when Letter IV represents Gowrie as anxious to bring Home, who had been consulting Bothwell, into his plot, nothing can be more natural. Gowrie himself conceivably met his old rebellious ally, Bothwell; he was certain to meet Home in Paris, and Home, owning Douglas Castle and Home Castle near the Border, would have been a most serviceable assistant. It must also be remembered that Home was, at heart, a Catholic, a recent and reluctant Protestant convert, 'compelled to come in,' by the Kirk. Bothwell was a Catholic; Gowrie, he declared, was another; Logan was a trafficker with Jesuits, and an 'idolater' in the matter of 'keeping great Yules.' Logan, however, if Letter IV is genuine, in substance, wrote that he 'utterly dissented' from Gowrie's opinion. He would not try his brother's, Home's, mind in the matter, or 'consent that he ever should be counsellor thereto, for, in good faith, he will never help his friend, nor harm his foe.'

Such being the relations (if we accept Letter IV as in substance genuine) between Gowrie, Home, and Logan, we can appreciate Sprot's anecdote, now to be given, concerning Lady Home. Logan, according to Sprot, said to him, in Edinburgh, early in 1602, 'Thou rememberest what my Lady Home said to me, when she would not suffer my lord to subscribe my contract for Fentoun, because I would not allow two thousand marks to be kept out of the security, and take her word for them? She said to me, *which was a great knell to my heart*, that since her coming to the town, she knew that I had been in some dealing with the Earl of Gowrie about Dirleton.' Now Dirleton, according to Sprot, was to have been Logan's payment from Gowrie, for his aid in the plot.

Logan then asked Sprot if he had blabbed to Lady Home, but Sprot replied that 'he had never spoken to her Ladyship but that same day, although he had read the contract' (as to Fentoun) 'before him and her in the abbey,' of Coldingham, probably. Logan then requested Sprot to keep out of Lady

Home's sight, lest she should ask questions, '*for I had rather be eirdit quick than either my Lord or she knew anything of it.*'

Now, in Letter II (July 18, 1600), from Logan to Bower, Logan, as we saw, is made to write, 'See that my Lord, my brother, gets no knowledge of our purposes, *for I (sic) rather be eirdit quik.*' The phrase recurs in another of the forged letters not produced in court.

It is thus a probable inference that Logan did use this expression to Sprot, in describing the conversation about Lady Home, and that Sprot inserted it into his forged Letter II (Logan to Bower). But, clever as Sprot was, he is scarcely likely to have invented the conversation of Logan with Lady Home, arising out of Logan's attempt to do some business with Lord Home about Fentoun. A difficulty, raised by Lady Home, led up to the lady's allusion to Dirleton, 'which was a great knell to my heart,' said Logan. This is one of the passages which indicate a basis of truth in the confessions of Sprot. Again, as Home and Gowrie were in Paris together, while Bothwell was in Brussels, in February 1600, and as Home certainly, and Gowrie conceivably, met Bothwell, it may well have been that Gowrie heard of Logan from Bothwell, the old ally of both, and marked him as a useful hand. Moreover, he could not but have heard of Logan's qualities and his keep, Fastcastle, in the troubles and conspiracies of 1592–1594. After making these depositions, Sprot attested them, with phrases of awful solemnity, 'were I presently within one hour to die.' He especially insisted that he had written, to Logan's dictation, the letter informing John Baillie of Littlegill that all Gowrie's papers were burned. As we saw, in November 1609, the King deliberately cleared Baillie of all suspicion. There could be no evidence. Bower, the messenger, was dead.

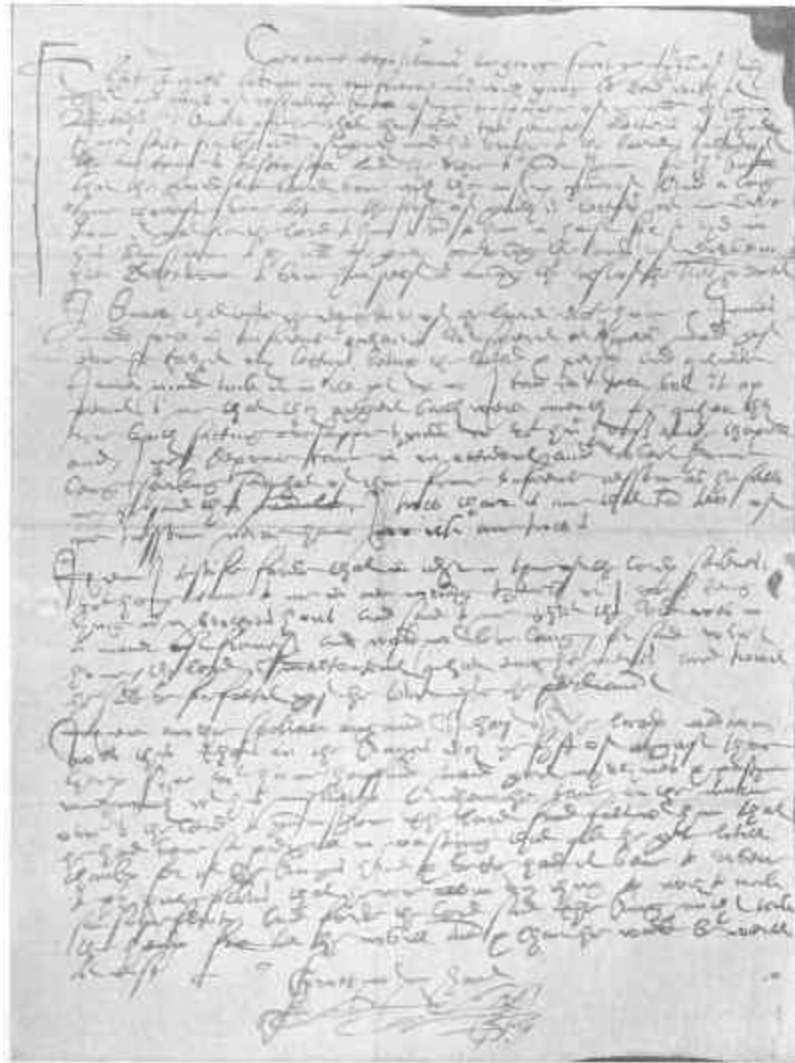
Baillie was now called. He denied on oath that he had ever received the letter from Logan. He had never seen Gowrie, 'except on the day he came first home, and rode up the street of Edinburgh.' Confronted with Baillie, 'Sprot abides by his deposition.'

Willie Crockett was then called. He had been at Logan's 'great Yule' in Gunnisgreen, where Logan, according to Sprot, made the imprudent speeches. Crockett had also been at Dundee with Logan, he said, but it was in the summer of 1603. He did not hear Logan's imprudent speech to

Bower, at the Yule supper. As to the weeping of Lady Restalrig, he had often seen her weep, and heard her declare that Logan would ruin his family. He only remembered, as to the Yule supper, a quarrel between Logan and Willie Home.

This was the only examination at which Archbishop Spottiswoode attended. Neither he nor any of the Lords (as we have said already) signed the record, which is attested only by James Primrose, Clerk of Council, signing at the foot of each page. Had the Lords 'quitted the diet'?

The next examination was held on July 22, Dunfermline, Dunbar, Sir Thomas Hamilton, the President of the Court of Session, and other officials, all laymen, being present. Sprot incidentally remarked that Logan visited London, in 1603, after King James ascended the English throne. Logan appears to have gone merely for pleasure; he had seen London before, in the winter of 1586. On his return he said that he would 'never bestow a groat on such vanities' as the celebration of the King's holiday, August 5, the anniversary of the Gowrie tragedy; adding 'when the King has cut off all the noblemen of the country he will live at ease.' But many citizens disliked the 5th of August holiday as much as Logan did.



In the autumn of 1605, Logan again visited London. In Sprot's account of his revels there, and his bad reception, we have either proof of Logan's guilt, if the tale be true, or high testimony to Sprot's powers as an artist in fiction. He says that Matthew Logan accompanied the Laird to town in September 1605, and in November was sent back with letters to Bower. Eight days later, Matthew took Sprot to Coldingham, to meet Bower, and get his answer to the letters. It was a Sunday; these devotees heard sermon, and then dined together at John Corsar's. After dinner Bower took Sprot apart, and showed him two letters. Would Sprot read to him the first few words, that he might know which letter he had to answer? The first letter shown (so Sprot writes on the margin of his recorded deposition) referred to the money owed to Logan, by the Earl of Dunbar, for Gunnisgreen and the lands of Remington. Logan had expected to get the purchase money from

Dunbar in London; he never got more than 18,000 out of 33,000 marks. Sprot wrote for Bower the answer to this business letter, and gave it to Matthew Logan to be sent to Logan in London. Matthew, being interrogated, denied that he sent any letter back to Logan, though he owned that Sprot wrote one; and he denied that Sprot and Bower had any conference at all on the occasion. But Sprot had asserted that the conference with Bower occurred after Matthew Logan left them at Corsar's house, where they dined, as Matthew admitted, after sermon. Matthew denied too much.

A curious conference it was. Bower asked Sprot to read to him the other of Logan's two letters, directed to himself. It ran, 'Laird Bower,—I wot not what I should say or think of this world! It is very hard to trust in any man, for apparently there is no constancy or faithfulness. For since I cam here they whom I thought to have been my most entire friends have uttered to me most injurie, and have given me the defiance, and say I am not worthy to live, "and if the King heard what has moved you to put away all your lands, and *debosch* yourself, you would not make such merryness, and play the companion in London, as you do so near his Majestie.'"

Logan went on to express his fear that Bower's rash speeches had roused these suspicions of 'the auld misterie ye ken of.' 'God forgive you, but I have had no rest since these speeches were upcast to me.' Bower was to take great care of this letter, 'for it is within three letters enclosed,' and is confided to Matthew Logan (who travelled by sea) as a trusty man.

Bower was much moved by this melancholy letter, and denied that he had been gossiping. He had twice, before Logan rode south, advised him to be very careful never even to mention the name of Gowrie.

Sprot said that he, too, was uneasy, for, if anything came out, he himself was in evil case. Logan visited France, as well as London, at this time; he returned home in the spring of 1606, but Bower expressed the belief that he would go on to Spain, 'to meet Bothwell and Father Andrew Clerk, and if he come home it will be rather to die in his own country than for any pleasure he has to live.' Bothwell and Father Andrew, of course, were both Catholic intriguers, among whom Bothwell reckoned Logan and Gowrie.

Now the letter to Bower here attributed to Logan, telling of the new ‘knell at his heart’ when he is rebuked and insulted as he plays the merry companion in London, and near the Court; his touching complaint of the falseness of the world (he himself being certainly the blackest of traitors), with the distress of Bower, do make up a very natural description. The ghost of his guilt haunts Logan, he cannot drown it in a red sea of burgundy: life has lost its flavour; if he returns, it will be with the true Scottish desire to die in his own country, though of his ancient family’s lands he has not kept an acre. Pleasant rich Restalrig, strong Fastcastle, jolly Gunnisgreen of the ‘great Yules,’ all are gone. Nothing is left.

Surely, if Sprot invented all this, he was a novelist born out of due time. Either he told truth, or, in fiction, he rivalled De Foe.

Matthew Logan, being called, contradicted Sprot, as we have already said. He himself had seen Bower when he brought him Logan’s letter from London, take his son, Valentine, apart, and knew that Valentine read a letter to him. ‘It was a meikle letter,’ Matthew said, and, if Sprot tell truth, it contained three enclosures. Bower may have stopped his son from reading the melancholy and compromising epistle, and kept it to be read by Sprot. Logan’s folly in writing at all was the madness that has ruined so many men and women.

Matthew could not remember having ridden to Edinburgh with Logan in July 1600, just before the Gowrie affair, as Sprot had declared that he did. We could scarcely expect him to remember that. He could remember nothing at all that was compromising, nothing of Logan’s rash speeches. As to the Yule feast at Gunnisgreen, he averred that Lady Restalrig only said, ‘The Devil delight in such a feast that makes discord, and makes the house ado’—that is, gives trouble. Asked if wine and beer were stored in Fastcastle, in 1600, he said, as has already been stated, that a hogshead of wine was therein. He himself, he said, had been ‘in the west,’ at the time of the Gowrie tragedy, and first heard of it at Falkirk.

On August 6, Sprot was interrogated again. Only lay lords were present: there were no clergymen nor lawyers. He denied that he had received any promise of life or reward. He asked to be confronted with Matthew Logan, and reported a conversation between them, held when Lord Dunbar took

possession of Gunnisgreen. Matthew then hoped to ride with the Laird to London (1605), but said, 'Alas, Geordie Sprot, what shall we all do now, now nothing is left? I was aye feared for it, for I know the Laird has done some evil turn, and he will not bide in the country, and woe's me therefor.'

Sprot asked what the 'evil turn' was. Matthew answered, 'I know well enough, but, as the proverb goes, "what lies not in my way breaks not my shins."'

Sprot added that, after Bower's death (January 1606), Logan wrote to him from London, not having heard the news of his decease. Lady Restalrig opened the letter and wrote a postscript 'Give this to Laird Bower, for I trow that he be ridden to Hell, as he ofttimes said to the Laird that he would do.' In Letter IV. Logan tells Gowrie that he believes Bower 'would ride to Hell's gate to pleasure him.'

Sprot was now asked about two letters. One of these (Logan to Chirnside) is endorsed, 'Production by Niniane Chirnesyde. XIII April 1608.'

Another is Letter V, endorsed 'produced by Ninian Chirnside,' a fact first noted by Mr. Anderson. Yet another is the letter in twelve torn pieces. Logan, in the first of these three letters, requests Chirnside to find a letter which Bower lost in Dunglas. The letter imperils Logan's life and lands. The date is September 23, and purports, falsely, to be written before Logan goes to London (1605). Sprot explained that he forged the letters, that Chirnside might blackmail Logan's executors, and make them forgive him the debts which (as Logan's will proves) he owed to the estate.

Here we cite the letter of the twelve fragments. It is, of course, a forgery by Sprot, to enable Chirnside to terrorise his creditors, Logan's executors. But, as it directly implicates Chirnside himself in the Gowrie conspiracy, probably he disliked it, and tore it up. Yet the artist could not part with his work; it still lies, now reconstructed, in the old folio sheet of paper. The reader will remark that, like Letters I (?), III, and V, this torn letter is a mere *pastiche* framed (as Sprot confessed) on ideas and expressions in Letter IV.

Letter found among the Haddington MSS. torn into thirteen pieces (one lost)—these have been placed in order, but at least one line of the piece is wanting.

Brother, according to my promise the last day ve met in the kannogate I have sent this berair to my lord with my answer of all thingis, and, I pray you ryde with him till his lordschip, and bevar that he speik with na other person bot his lordschipis self and M.A. his lordschipis brother, and specially let nocht his lordschipis pedagog [Mr. Rhynd] ken ony thing of the matter, bot forder him hame agane, becawse the purpos is parilouse, as ye knaw the danger. And yit for my ain part I protest befor God I sall keip trew condicion till his lordschip, and sall hasard albeit it var to the vary skafald, and bid his lordschip tak nane other opinion bot gude of the trustyness of this silly ald man [Bower] for I dar baldlie concredit my lyf and all other thing I have elliss in this varld onto his credit, and I trow he sall nocht frustrat my gude expectacion. Burn or send bak agane as I did vith you, so till meitting, and ever I rest, Yowre brother to power redy, Restalrige.

Beseik his lordschip bavar [beware] that my lord my brother [Lord Home] get na intelligense of thir townis as he lowfis all ovr veillis, for be God he vill be our greittest enemy. ^[217]

(A line or more wanting)

On the same day (August 6) Sprot withdrew a deposition (made before July 5) that the Unknown, for whom Letters I, III, V were meant, was the Laird of Kinfauns, Sir Harry Lindsay, who, in 1603, tried to shoot Patrick Eviot, one of the Gowrie fugitives. The Constable of Dundee (Sir James Scrymgeour) Sprot had also accused falsely. The Letters (I (?), III, V), he says, were ‘imagined by me.’

On August 8, three ministers, Patrick Galloway, John Hall, and Peter Hewatt, were present. The two former were now preachers of the courtly party, the third received a pension of 500 marks from the King, after the posthumous trial of Logan (1609), at which the five letters were produced, but this reward may have been a mere coincidence. The ministers Hall and Hewatt, in August 1600, had at first, as we saw, declined to accept James’s version of the affair at Gowrie House (pp. 99–103).

Sprot now confesses that he knows he is to die, deposes that no man has promised him life, and that he has stated nothing in hope of life. With tears he deplores that he has taken God's name in vain, in swearing to the truth of his depositions before that of July 5. His last five depositions under examination are 'true in all points and circumstances, and he will go to the death with the same.'

'Further the said George Sprot remembers that in the summertide of 1601, the Laird of Restalrig had indented with the Lord Willoughby, then Governor of Berwick, concerning my Lord's ship then built and lying at Berwick, whereof the Laird should have been equal partner with my Lord, and to take voyage with the said ship, either by the Laird himself, or some other person whom it pleased him to appoint . . . to pass to the Indies, the Canarys, and through the Straits, for such conditions as were set down in the indenture betwixt my Lord and him, which was framed by Sir John Guevara,' Willoughby's cousin, the kidnapper of Ashfield in 1599.

Now this ship of Lord Willoughby's, at all events, was a real ship; and here is a grain of fact in the narrative of Sprot. The ship was built by Lord Willoughby to protect English commerce from the piracies of the Dunkirkers. On March 28, 1601, he writes from Berwick to Cecil, 'The respect of my country and the pity of those hurt by such' (the Dunkirkers) 'persuaded me to build a ship, and moves me now to offer to serve her Majesty at as reasonable a rate as any ship of 140 tons, with sixteen pieces of artillery, and 100 men can be maintained with. . . . If this offer seem good to you and the Council, my ship shall presently be fitted, if not I purpose to dispose otherwise of her' (to Logan), 'being not able to maintain her.' ('Border Calendar,' ii. 738). On April 19, Willoughby wrote that he had pursued, with his ship, a pirate which had carried an English prize into the Forth. But he cannot, unaided, maintain the ship, even for one summer. On June 14, Willoughby 'took a great cold' in his ship, lying at the haven mouth, awaiting a wind, and died suddenly. On July 20, Carey says that his body has been placed, with all honourable rites, on board his ship.

It appears, then, that Willoughby, unable to maintain his ship, and not subsidised by Government, in the summer of 1601 admitted Logan to a half of the venture, carrying great expenses. Logan settled the business at Robert Jackson's house, in Bridge Street, Berwick, being accompanied by

Sprot, Bower, and Matthew Logan. Matthew said privately to Sprot, ‘Wae’s me that ever I should see this day, that the Laird should grow a seaman! I wot not what it means, for it is for no good, and I fear this shall be one of the sorrowful blocks that ever the Laird made. It is true that I have oft thought that the Laird would pass away, for he is minded to sell all that he has, and would to God that he had never been born, what should he do with such conditions, to go or to send to the sea? He might have lived well enough at home. I find he has ever been *carried*’ (excited), ‘and his mind has ever been set on passing out of the country this year past,’ that is since the Gowrie affair.

Now all this tale has much *vraisemblance*. The facts about Logan’s adventure with Willoughby, stopped by Willoughby’s death, were easily verifiable. Logan, at his death, owned a ship, rated at 500 marks (so we read in his inventory), but this can hardly have been the ship of Willoughby. He was restless, excited, selling land to supply a maritime enterprise.

At this time Lady Restalrig was deeply distressed, she wished Logan at the Indies, if only he would first settle Flemington on herself. ‘If it be God’s will, I desire never to have a child to him,’ she said. ‘I have a guess what this mystery means, woe’s me for his motherless children,’ that is, children of former marriages. Later, Lady Restalrig had a daughter, Anna, by Logan.

Matthew Logan, as usual, denied every word attributed to him by Sprot, except regrets for his own condition. Matthew could do no less to save his own life.

On August 9, before other witnesses, and the Rev. Messrs. Galloway, Hall, and Hewatt, Sprot solemnly confessed to having forged the letters in Logan’s hand (then in possession of his examiners). On August 10, the same clergymen and many Lords, and Hart, being present, Sprot came to the point at last. Where, he was asked, after a prayer offered, at his request, by Mr. Galloway, *was the letter of Logan to Gowrie, whereon, as model, the rest were forged?* Now he had not previously mentioned, as far as the reports go, a letter of Logan to Gowrie, as the model of his forgeries. He had mentioned, as his model, the brief harmless letter of Gowrie to Logan. On August 9, he had been very solemnly told that he was to die, and that he

would see the faces of the Lords of the Council no more. Probably, after they left him, he told, to a minister or a servant in the gaol, the fact that he had used, as his model, a letter from Logan to Gowrie. The result was that he did again see, on August 10, the Lords of the Council, who asked him 'where the letter now was.' This is Letter IV, the letter of Logan to Gowrie, of July 29, 1600. Sprot, in place of answering directly, cited from memory, and erroneously, the opening of the letter. He had read it, while it was still unfinished, in July 1600, at Fastcastle. Logan, who had been writing it, was called by Bower, went out, and thrust it between a bench and the wall: there Sprot found, read, and restored the unfinished epistle to its place. But the letter is dated 'from Gunnisgreen,' at the conclusion. Logan, according to Sprot, left Gunnisgreen one day at the end of July, 1600, or beginning of August, thence rode to Fastcastle, and thence, next day, to Edinburgh (p. 190).

Now Logan, in the letter (IV), says that he took two days to write it. One day would be at Fastcastle, when he was interrupted; the other, the day of dating, at Gunnisgreen. This, however, does not tally with Sprot's account (p. 190) of Logan's movements (Nine Wells, Gunnisgreen, Fastcastle, Edinburgh), if these are the days of writing Letter IV. Yet, if Sprot forged Letter IV, he knew where he dated it from; ^[221] if the Government had it forged, they knew, from Sprot's confession, that it should have been dated from Fastcastle. Perhaps we should not bear too heavily on this point. A man may mention the wrong name by inadvertence, or the clerk, by inadvertence, may write the wrong name. Mr. Mark Napier in his essay on this matter twice or thrice prints 'Logan' for 'Sprot,' or 'Sprot' for 'Logan.' ^[222] 'Fastcastle,' in Sprot's confession, may be a slip of tongue or pen for 'Gunnisgreen,' or he may have been confused among the movements to and from Gunnisgreen and Fastcastle. The present writer finds similar errors in the manuscript of this work.

Sprot next alleged that, three months after the Gowrie affair, Logan bade Bower hunt among his papers for this very letter. He had been at Berwick, with Lord Willoughby, and Bower told Sprot that he was 'taking order' with all who knew of his part in the Gowrie plot. Here is the old difficulty. Why was the letter kept for one moment after Bower brought it back? Why leave it with Bower for three months? At all events, as Bower could not read,

Sprot helped him to look for the letter, found it, and kept it ‘*till* he framed three new letters upon it,’ after which he does not say what he did with it.

Here Sprot cited, from memory, but not accurately, more of Letter IV. The existence of such errors is not remarkable. Sprot again swore to the truth of all his depositions since July 5. But if *this* story is true, how can it be true that Logan was at ease in his mind, after burning the letter from Alexander Ruthven, and another from Father Andrew Clerk, Jesuit, as Sprot previously swore? There was still Letter IV, lost, unburned, a haunting fear. It may be suggested that Sprot only kept this letter ‘*till*’ he had made his forgeries on its model, and then, in a later search, pretended to find and returned it, having first copied it out in Logan’s hand; that copy being our Letter IV. Sprot first would make a copy, in his ordinary hand, of the letter, then restore the original, and, after Logan’s death, copy his copy, in imitation of Logan’s hand, and frame I, III, V, and the torn letter on his copy of IV. Finally, Sprot said that ‘*he believes* this letter is in his chest among his writings, because he left it there when he was taken by Watty Doig and deposes that it is closed and folded within a piece of paper.’ Sprot said this on August 10. On August 12 he was hanged. Now was this letter, on which he forged three others, found ‘in his kist,’ before his death? That it was so found, we have direct evidence, though not from the best of sources.

In the year 1713, an aged nobleman, Lord Cromarty, published a defence of the King’s conduct in the Gowrie affair. Lord Cromarty, in 1713, was aged eighty-three. Born about 1630, he remembered the beginnings of the Civil War, and says that the Covenanters, about 1640–1645, made great political capital out of King James’s alleged guilt in the slaughter of the Ruthvens. Later, Lord Cromarty occupied, in the Restoration, the highest judicial offices, and, as Clerk Registrar, had access to public documents. He was an old courtier, he may have been forgetful, he may have been unscrupulous, but, as to the letter in Sprot’s kist, he writes ‘the letter was found there by the Sheriff Depute, who was ordered by Sir William Hart, Lord Justice of Scotland, to seize the said chest, and make search for this letter, which he found, and delivered to the King’s Advocate, Sir Thomas Hamilton.’ [224]

Now this Sir Thomas Hamilton was the ancestor of the Earl of Haddington, who inherits many of his papers. Among these we find a copy, in Sprot’s ‘course hand,’ or rapid current hand, of Letter IV, and another of Letter I,

but no such copies of II, III. and V. Each of these is endorsed by James Primrose, Clerk of Council, is endorsed by Sprot, in faded ink, and is *also* endorsed in Sprot's ordinary everyday hand, very firm and clear, thus:

'This is copyitt off the principal' (the original), 'lykeas the note writtin upon the bak is writtin by me, George Sprott.'

There is, in fact, another 'note on the back,' in ink more faded, on a dirty rubbed part of the paper.

Now certainly the last endorsation was written by Sprot either on August 11 or August 12, 1600. He had not the original or this copy by him on August 10, or on August 11 when examined, for on August 10 he could only give a version of Letter IV from memory, and erroneously, the version cited in his indictment. On August 11 he still had not the original or his copy, for he quoted from memory, what he believed to be a *postscript* to the original Letter IV, a passage which is really in the *text* of Letter IV. He could not have made this error if, at that hour of August 11, he had either the original of Letter IV, or his exact copy before him, nor would there have been any reason why he should quote from memory, if Government had the documents. Yet he re-endorsed his copies of Letters I and IV before his death. This endorsement is firm and clear, the text of the two copies is fainter and much of the paper more rubbed, as if from being kept in the pocket. The copies are older than the final endorsement on the copies. It follows that the Sheriff Depute found these two copies (I, IV) and the originals, in Sprot's kist, and brought them to Sprot's examiners after that hour of August 11, when he could only quote from memory. He then endorsed them formally, one of the last acts of his life.

The originals were also found, for it will not be argued that Government employed another forger to forge them from Sprot's copies in 'course hand.' We know that Sprot had a secondary species of blackmailing documents, these in current hand; one of them he gave to the Goodman of Rentoun. For this, or some other purpose, he had made the 'course hand' copies of Letters I and IV, which he endorsed just before his death, or perhaps he made them from the original, which he then destroyed or surreptitiously returned. When he was examined on August 11, the three preachers, Galloway, Hall, and Hewatt, and the minister of Duddingston,

Mr. Lumisden, were present. He was entreated not to perjure himself to the injury of innocent people, dead or alive, 'by making and forging of lies.' He renewed his protestations of truth, asked Mr. Galloway to pray for him, wept, and repeated his averments.

On August 12 Sprot was tried and hanged at Edinburgh. He renewed his protestations from every corner of the scaffold, in the most vigorous language. Abbot, who was present, declares that he thrice gave a loud clap with his hands while he swung, as a proof that he adhered in death to his last words. A similar story is told of Kirkcaldy of Grange, and I think in other cases. Nothing of the sort is in the first draft of the official account of his dying behaviour (a draft manifestly drawn up near the spot), nor in the official account itself.

Much value was set on dying confessions. When the preacher, Robert Bruce, refused to believe the King's account of the Gowrie tragedy, he said that one proof would satisfy him. Let Andrew Henderson, the man in the turret, be hanged. If he persisted in his confession on the scaffold, Mr. Bruce would believe. The King declined to make this abominable experiment. In Sprot's case his dying confession did not move the Kirk party. Calderwood hints that Mr. Galloway 'had the most speech to Sprot on the scaffold,' and so kept him true to a dying lie. ^[227a] He adds that Spottiswoode said to Galloway 'I am afraid this man make us all ashamed,' that is, by retracting his confessions. Mr. Patrick answered, 'Let alone, my Lord, I shall warrant him.' ^[227b] Had Andrew Henderson swung, constant to his confession, the Presbyterian sceptics would have found similar reasons for disbelief.

What are we to believe? Did Sprot go wherever he went with a blasphemous lie in his mouth? A motive for such vehemence of religious hypocrisy is difficult to find. Conceivably he had promise of benefits to his family. Conceivably he was an atheist, and 'took God in his own hand.' Conceivably his artistic temperament induced him to act his lie well, as he had a lie to act.

Yet all this is not satisfactory.

Let us take the unromantic view of common sense. It is this: Logan was a restless, disappointed intriguer and debauchee. He sold his lands, some to

acquire a partnership with Lord Willoughby in a vessel trading to America; this vessel, or another, is among his assets recorded in his inventory. All his lands he sold—not that he was in debt, he was a large lender—for purposes of profligacy. These proceedings gave rise to gossip. The Laird must be selling his lands to evade forfeiture. He *must* have been engaged in the Gowrie mystery. Then Logan dies (July 1606). Bower is also dead (January 1606). It occurs to Sprot that there is money in all this, and, having lost Logan's business, the hungry Sprot needs money. He therefore makes a pact with some of Logan's debtors. He, for pay, will clear them of their debts to Logan's executors, whom he will enable them to blackmail. Logan's descendants by two marriages were finally his heirs, with Anna, a minor, daughter of his last wife, who had hoped to have no children by him, the free-spoken Lady Restalrig, *née* Ker (Marion). They, of course, were robbed, by Logan's forfeiture, of 33,000 marks, owed to Logan by Dunbar and Balmerino. Meanwhile, just after Logan's death, in autumn 1606, Sprot forges Letters I, II, III, IV, V, and the torn letter, with two compromising letters to Bower, two to Ninian Chirnside, and an 'eik,' or addition, of compromising items to a memorandum on business, which, in September 1605, Logan gave to Bower and John Bell before he started for London and Paris. All these documents, the plot-letters, I, II, III, IV, V, and the rest (which lie before me), are mere instruments of blackmail, intended to terrorise the guardians of the Logans.

So far, all is clear. But, in April 1608, Sprot has blabbed and is arrested. The forgeries are found among his papers, or given up by Chirnside. Sprot confesses to the plot, to Logan's share of it, and to the authenticity of the letters and papers. He is then tortured, recants his confession, and avows the forgery of the papers. The Government is disappointed. In July, Dunbar comes down from town, treats Sprot leniently, and gives him medical attendance. Sprot now confesses to his genuine knowledge of the plot, but unflinchingly maintains that all the papers so far produced are forgeries, based on facts.

Why does he do this? He has a better chance of pardon, if he returns to the statement that they are genuine. If they are, the Government, which he must propitiate, has a far stronger hand, for the forgeries then defied detection. However, for no conceivable reason, unless it be either conscience or the vanity of the artist, Sprot now insists on claiming the

letters as his own handiwork. On this point he was inaccessible to temptation, if temptation was offered. If he lies as to Letter II having been dictated by Logan, he lies by way of relapse into the habit of a lifetime, and so on other points. He keeps back all mention of Letter IV, till the last ember of hope of life is extinct.

It has not been hitherto known, either that Sprot kept back Letter IV till almost his dying day, or that he then, at last, revealed it. Lord Cromarty's averment that it was found in Sprot's kist was disbelieved. It is true, however, and now we ask, why did Sprot keep back Letter IV to the last, and why, having so long concealed it, did he say where it was, after all hope of life was over?

The answer can only be conjectural. Some might guess thus: till Letter IV was confessed to and found, Government had not received from Sprot one scrap of documentary evidence that could be used against Logan's heirs. Scoundrel as he was, Sprot could not guess that the Privy Council would use papers which were confessed forgeries to save Dunbar and Balmerino from paying some 33,000 marks to Logan's executors. The wretched Sprot had robbed the orphans on a small scale, but he would not, by producing the genuine Logan letter, enable the Lords to ruin them utterly. Bad as he was, the Laird had been kind to Sprot. Therefore he kept back, and by many a lie concealed, his real pieces of evidence, Letter IV, and I, if I is genuine. So far he acted on a remnant of natural conscience.

But Sprot, alas, had a religious conscience. He had a soul to be saved. The preachers had prayed with him. When death was but forty-eight hours distant, he feared to die with a lie in his mouth. So *now*, at last, he spoke of Letter IV as his real model. Perhaps he hoped that it would not be found, and probably it was in some secret drawer or false bottom of his kist. It was found, and was used, along with the confessed forgeries (which even Sprot could not have anticipated), to destroy the inheritance of the children, at Logan's posthumous trial in 1609.

But the obvious reply to this hypothesis is, that Letter IV, by the evidence of modern experts (evidence unanimous and irresistible), is just as much forged as all the rest, is just as certainly in Sprot's imitation of Logan's handwriting. This being so, why did Sprot keep it back so long, and why,

having kept it back, did he, almost in his last hour, produce it, and say (if he did) that it was genuine, and his model, as it certainly was? This is the last enigma of Sprot. His motives defy my poor efforts to decipher them. Even if the substance of IV is genuine, what were Sprot's motives? I do not feel assured that Sprot really maintained the genuineness of the *handwriting* of Letter IV. His remark that he kept Logan's letter only *till* he forged others on it, as a model, certainly implies that he did not keep it *after* he had done his forgeries, and therefore that our Letter IV is, confessedly, *not* Logan's original. Certainly it is not.

XVI. WHAT IS LETTER IV?

The crucial question now arises, *What is Letter IV?* If it be genuine (in substance), then, whatever the details of the Gowrie Conspiracy may have been, a conspiracy there was. This can only be denied by ignorance. If the enterprise fails, says the author of Letter IV, the plotters will lose their lives, their lands and houses will be ‘wrecked,’ their very names will be extirpated; and, in fact, James did threaten to extirpate the name of Ruthven. The letter deliberately means High Treason. The objection of Calderwood, and of all the Ruthven apologists, that Sprot confessed to having forged *all* the letters, we have shown to rest on lack of information. He said, at last, that he had forged many papers (some did not appear in Court in 1609), and that he forged *three* letters on the model of Letter IV. These three letters may either be I, III, and V; or III, V, and the torn letter. The case of Letter I is peculiar. Though it contains much that is in Letter IV, and might have been taken from it, the repetitions need not imply copying from Letter IV. Byron and others would say the same things, on the same day, to two or three correspondents. Letter IV is subsequent, as dated, to Letter I, and Logan might say to the Unknown, on July 18, what, after the announced interval of ten days, he said to Gowrie. Letter I contains this remark on the nature of the plot: ‘It is not far by’ (not unlike) ‘that form, with the like stratagem, whereof we had conference in Cap. h,’ which may be Capheaton, on the English side of the Border. Probably Logan often discussed ingenious ways of catching the King: new plots were hatched about once a month, as Cecil’s and the other correspondence of the age abundantly proves. The plot (the letter says) is like that in a Paduan story of a nobleman. The rest of the letter is identical with the matter of III, IV, and V. We cannot be sure whether Letter I is one of the three forged on IV or not.

One thing is certain, Letters III and V, to the Unknown, *are* modelled on IV, as is the torn letter. Sprot said this was the case, and every reader of III, V,

and the torn letter (given above) must see that he tells the truth. These letters contain no invention at all, they merely repeat Letter IV. Any man who could invent IV had genius enough to alter his tunes in III, V. and the torn letter. But Sprot never deserts his model. This is an argument for the authenticity in substance of Letter IV. The other three contain nothing that is not in Letter IV, and everything that is in it, except what is personal to Gowrie, and would be inappropriate if addressed to the Unknown (I, III, V), or to Chirnside (torn letter).

There is (1) the mention of a Paduan adventure, the basis of the plot, a thing that Sprot is very unlikely to have invented. With all my admiration for Sprot, I do think that the Paduan touch is beyond him. This occurs in Letter IV, 'the good sport that M.A., your lordship's brother, told me of a nobleman in Padua. It is a parasteur' (? *à propos*) 'to this purpose we have in hand.' This appears in Letter I, 'reckless toys of Padua,' and in Letter V, 'bid M. A. remember on the sport he told me of Padua.'

2. The constant applause of Bower. This is in Letter IV, and in I, III, V, and the torn letter.

3. Meeting with Alexander Ruthven. This is in IV, and in I and V.

4. The meeting at Fastcastle, which is to be quiet and well-provisioned. This is in IV, and in I, III, V.

5. Lord Home and Mr. Rhynd are to know nothing. This is in IV, and in I, and V, and the torn letter, utterly needless repetition.

6. The King's hunting, the opportunity for the plot. This is in IV, and in I, but that is natural.

7. Directions as to returning the letters. These are in IV, in I, III, V, and the torn letter.

8. Injunctions of secrecy. These are in IV, and I, III, V, and in the torn letter.

9. Logan will be true, 'although the scaffold were already set up.' This is a phrase of Letter IV, and recurs in Letter III and in the torn letter.

10. Logan's elevation of heart on receipt of Gowrie's letter. This occurs in IV and in V.

Who can doubt that Letter IV is the source, followed servilely by the forger, of the torn letter and I (?), III, V? If Sprot could invent the substance of IV, why was he so chary of invention in all the other letters?

It is clear, moreover, that the Unknown himself is derived from a line in Letter IV: 'I have already sent another letter to the gentleman your Lordship knows, as the bearer will inform you of his answer.' The bearer is always Bower, so the 'gentleman' is to be conceived as in Gowrie's neighbourhood, or on the route thither, as one bearer serves both for Gowrie and the gentleman. Therefore, before July 5, Sprot (who had no idea as to who the gentleman was) identified the 'gentleman,' the Unknown of I, III, V, with the laird of Kinfauns, near Perth, or with the Constable of Dundee; but he withdrew these imputations, craving the pardon of the accused.

Thus it stands to reason that I (?), III, V, and the torn letter are forged on the model of IV. Sprot introduces no novelties in I, III, V, or the torn epistle. He harps eternally on the strings of IV. The only variation is (V) the mention of 'one other man with you,' in the proposed sail to Fastcastle.

It is not easy for criticism to evade the conclusion that I (?), III, V, and the torn letter are, indeed, forgeries modelled on IV. And what is IV?

Is Letter IV in substance genuine? If not, why did Sprot keep it back till the rope was noosed for his neck? A guess at his possible reasons for so keeping it back (as the only real documentary evidence extant against the orphans of Logan) we have given, but this fails if Letter IV was a forgery: as in handwriting it was.

Then there are the contents of Letter IV. To myself, and to Mr. Anderson, it does not seem probable, it seems hardly credible, that Sprot could have *invented* the contents of Letter IV. If he did, his power of rendering character might have been envied by the author of the Waverley Novels. In IV Logan is painted, the 'main loose man, but a good fellow,' with a master hand. The thing is freely, largely, and spontaneously executed. What especially moves me to think IV no invention, is the reference to the Paduan incident or romance, 'the good sport that Mr. Alexander told me of the

nobleman of Padua, it is *à propos* to the purpose we have in hand.’ This is casually inserted in the last words of the postscript, not blazoned in the text, as in the forgeries confessedly modelled on this letter. The whole tone of the letter is in keeping with the alleged author’s temperament. It is respectful, but far from servile. Gowrie is a great Earl, but Logan is of an old and good name. There is the genial sensualism of the man, with his promise of wine and ‘a fine hattit kit’ (a kind of syllabub). There is the joyous forward glance at an anniversary dinner, with Bothwell, to which the King’s hunting of *this* year shall furnish the dainty cheer; ‘*hoc jocose!*’ At this dinner Bothwell and Gowrie, old allies, are to meet at Logan’s board, which may suggest that Bothwell and Gowrie are still working together.

The contempt for Lord Home as a conspirator—‘in good faith he will never help his friend or harm his foe’—and the praises of Bower, are characteristic, and, here, are in place; elsewhere they are idle repetitions, mere copies. The apology for bad writing—Logan could not employ a secretary in this case—is natural: the two days writing agrees with Sprot’s evidence. (p. 221.)

Could Sprot have invented all this: and, in his confessed forgeries, failed to invent anything? Would not the fertility of his genius have hurried him into fresh developments, and characteristic details, appropriate to the imaginary correspondent whom he addresses? These considerations may seem a mere leaning on ‘internal evidence,’ and ‘literary instinct,’ broken reeds. But the case is buttressed by the long and, on any theory, purposeless retention of Letter IV, the secrecy concerning it, and the confession, so obviously true, that Letter IV is the source and model of the forgeries. These facts have hitherto been unknown to writers who believed the whole correspondence to be a forgery done for the Government.

Both Mr. Anderson (who has greatly aided me by his acuteness and learned experience of old MSS.) and myself disbelieve that Logan’s hand wrote Letter IV. The matter, the contents of Letter IV, may be Logan’s, but the existing document may be ‘a Sprot after Logan.’ Sprot may have reinserted the genuine Logan IV among Bower’s collection of papers, pretended to find it, and returned it to Logan, after copying it *in Logan’s hand*. Or he may have copied it in his ‘course hand’ (the copy in the Haddington MSS.), and later, in autumn 1606, after Logan’s death, have rewritten his copy in an

imitation of Logan's hand. The contents, Mr. Anderson believes, as I do, are, none the less, genuine Logan.

If readers accept these conclusions, there was a Gowrie conspiracy, and Logan was in it. 'I trow your Lordship has a proof of my constancy already ere now,' he says in Letter IV, and Gowrie may have had a proof, in his early conspiracies of 1593–1594, or in a testimonial to Logan from Bothwell, Gowrie's old ally.

But, if readers do not accept our conclusions, they may still rest, perhaps, on the arguments adduced in the earlier chapters of this essay, to demonstrate that neither accident nor the machinations of the King, but an enterprise of their own, caused the Slaughter of the Ruthvens. The infamous conduct of the Privy Council in 1608–1609 does not prove that, in 1600, the King carried out a conspiracy in itself impossible.

I have found nothing tending to show that King James was ever made aware of Sprot's confessions of forgery. It is true that Sir William Hart, the Lord Justice, went to Court after Sprot's death, and, in September, the Scottish Privy Council asked James to send him home again. ^[239] But Hart need not have told all the truth to James.

There is a kind of rejoicing *naïveté* in all of James's references to the Gowrie affair, which seems to me hardly consistent with his disbelief in his own prowess on that occasion. If one may conjecture, one would guess that the Privy Council and the four preachers managed to persuade themselves, Sprot being the liar whom we know, that he lied when he called his Logan papers forgeries. The real facts may have been concealed from the King. Mr. Gunton, the Librarian at Hatfield, informs me that, had he not seen Letter IV (which he is sure was *written* by Sprot), he does not think he should have suspected the genuineness of Letters II and III, after comparing them with the undoubted letters of Logan in the Cecil manuscripts. The Government and the four preachers, with such documents in their hands, documents still apt to delude, may easily have brought themselves to disbelieve Sprot's assertion that they were all forgeries. Let us hope that they did!

XVII. INFERENCES AS TO THE CASKET LETTERS

The affair of Sprot has an obvious bearing on that other mystery, the authenticity of the Casket Letters attributed to Queen Mary. As we know, she, though accused, was never allowed to see the letters alleged to be hers. We know that, in December 1568, these documents were laid before an assembly of English nobles at Hampton Court. They were compared, for orthography and handwriting, with genuine letters written by the Queen to Elizabeth, and Cecil tells us that ‘no difference was found.’ It was a rapid examination, by many persons, on a brief winter day, partly occupied by other business. If experts existed, we are not informed that they were present. The Casket Letters have disappeared since the death of the elder Gowrie, in 1584. From him, Elizabeth had vainly sought to purchase them. They were indispensable, said Bowes, her ambassador, to ‘the secrecy of the cause.’ Gowrie would not be tempted, and it is not improbable that he carried so valuable a treasure with him, when, in April 1584, he retired to Dundee, to escape by sea if the Angus conspiracy failed.

At Dundee he was captured, after defending the house in which he was residing. That house was pulled down recently; nothing was discovered. But fable runs that, at the destruction of another ancient house in Dundee, ‘Lady Wark’s Stairs,’ *a packet of old letters in French* was found in a hiding hole contrived within a chimney. The letters were not examined by any competent person, and nobody knows what became of them. Romance relates that they were the Casket Letters, entrusted by Gowrie to a friend. It is equally probable that he yielded them to the King, when he procured his remission for the Raid of Ruthven. In any case, they are lost.

Consequently we cannot compare the Casket Letters with genuine letters by Mary. On the other hand, as I chanced to notice that genuine letters of Logan’s exist at Hatfield, I was enabled, by the kindness of the Marquis of

Salisbury, and of Sir Stair Agnew, to have both the Hatfield Logan letters, and the alleged Logan letters produced in 1609, photographed and compared, at Hatfield and at the General Register House in Edinburgh. By good fortune, the Earl of Haddington also possesses (what we could not expect to find in the case of the Casket Letters) documents in the ordinary handwriting of George Sprot, the confessed forger of the plot-letters attributed to Logan. The result of comparison has been to convince Mr. Gunton at Hatfield, Mr. Anderson in Edinburgh, Professor Hume Brown, and other gentlemen of experience, that Sprot forged all the plot-letters. Their reasons for holding this opinion entirely satisfy me, and have been drawn up by Mr. Anderson, in a convincing report. To put the matter briefly, the forged letters present the marked peculiarities of Logan's orthography, noted by the witnesses in 1609. But they also contain many peculiarities of spelling which are not Logan's, but are Sprot's. The very dotting of the 'i's' is Sprot's, not Logan's. The long 's' of Logan is heavily and clumsily imitated. There is a distinct set of peculiarities never found in Logan's undisputed letters: in Sprot's own letters always found. The hand is more rapid and flowing than that of Logan. Not being myself familiar with the Scottish handwriting of the period, my own opinion is of no weight, but I conceive that the general effect of Logan's hand, in 1586, is not precisely like that of the plot-letters.

My point, however, is that, in 1609, Sprot's forgeries were clever enough to baffle witnesses of unblemished honour, very familiar with the genuine handwriting of Logan. The Rev. Alexander Watson, minister of the Kirk of Coldingham (where Logan was wont to attend), alleged that '*the character of every letter resembles perfectly Robert's handwrit, every way.*' The spelling, which was peculiar, was also Logan's as a rule. Mr. Watson produced three genuine letters by Logan, before the Lords of the Articles (who were very sceptical), and satisfied them that the plot-letters were the laird's. Mr. Alexander Smith, minister of Chirnside, was tutor to Logan's younger children; he gave identical evidence. Sir John Arnott, Provost of Edinburgh, a man of distinction and eminence, produced four genuine letters by the Laird, 'agreeing perfectly in spelling and character with the plot-letters. The sheriff clerk of Berwick, William Home, in Aytoun Mill (a guest, I think, at Logan's 'great Yules'), and John Home, notary in Eyemouth, coincided. The minister of Aytoun, Mr. William Hogg,

produced a letter of Logan to the Laird of Aytoun, but was not absolutely so certain as the other witnesses. 'He thinks them' (the plot-letters) 'like [to be] his writing, and that the same appear to be very like his write, by the conformity of letters and spelling.' ^[243a]

Thus, at the examination of Logan's real and forged letters, as at the examination of Queen Mary's real and Casket letters, in spelling and handwriting 'no difference was found.' Yet the plot-letters were all forged, and Mr. Anderson shows that, though 'no difference was *found*,' many differences existed. Logan had a better chance of acquittal than Mary. The Lords of the Articles, writes Sir Thomas Hamilton to the King (June 21, 1609), 'had preconceived hard opinions of Restalrig's process.' ^[243b] Yet they were convinced by the evidence of the witnesses, and by their own eyes.

From the error of the Lords of the Articles, in 1609, it obviously follows that the English Lords, at Hampton Court, in 1568, may have been unable to detect proofs of forgery in the Casket Letters, which, if the Casket Letters could now be compared with those of Mary, would be at once discovered by modern experts. In short, the evidence as to Mary's handwriting, even if as unanimously accepted, by the English Lords, as Cecil declares, is not worth a 'hardhead,' a debased copper Scottish coin. It is worth no more than the opinion of the Lords of the Articles in the case of the letters attributed to Restalrig.

APPENDICES

APPENDIX A. THE FRONTISPIECE

Gowrie's Arms and Ambitions

The frontispiece of this volume is copied from the design of the Earl of Gowrie's arms, in what is called 'Workman's MS.,' at the Lyon's office in Edinburgh. The shield displays, within the royal treasure, the arms of Ruthven in the first and fourth, those of Cameron and Halyburton in the second and third quarters. The supporters are, dexter, a Goat; sinister, a Ram; the crest is a Ram's head. The motto is not given; it was *DEID SCHAW*. The shield is blotted by transverse strokes of the pen, the whole rude design having been made for the purpose of being thus scored out, after Gowrie's death, posthumous trial and forfeiture, in 1600.

On the left of the sinister supporter is an armed man, in the Gowrie livery. His left hand grasps his sword-hilt, his right is raised to an imperial crown, hanging above him in the air; from his lips issue the words, *TIBI SOLI*, 'for thee alone.' Sir James Balfour Paul, Lyon, informs me that he knows no other case of such additional supporter, or whatever the figure ought to be called.

This figure does not occur on any known Ruthven seal. It is not on that of the first Earl of Gowrie, affixed to a deed of February 1583–1584. It is not on a seal used in 1597, by John, third Earl, given in Henry Laing's 'Catalogue of Scottish Seals' (vol. i. under 'Ruthven'). But, in Crawford's 'Peerage of Scotland' (1716), p. 166, the writer gives the arms of the third Earl (John, the victim of August 5, 1600). In place of the traditional Scottish motto *Deid Schaw*, is the Latin translation, *Facta Probant*. The writer says (Note C), 'This from an authentic copy of his arms, *richly*

illuminated in the year 1597, with his name and titles, viz. “Joannes Ruthven, Comes de Gowry, Dominus de Ruthven,” &c., in my hands.’

In 1597, as the archives of the Faculty of Law, in the University of Padua, show, Gowrie was a student of Padua. It is also probable that, in 1597, he attained his majority. He certainly had his arms richly illuminated, and he added to his ancestral bearings what Crawford describes thus: ‘On the dexter a chivaleer, garnish’d with the Earl’s coat of arms, *pointing with a sword upward to an imperial crown*, with this device, TIBI SOLI.’

In Workman’s MS., the figure points to the crown with the open right hand, and the left hand is on the sword-hilt. The illuminated copy of 1597, once in the possession of Crawford, must be the more authentic; the figure *here* points the sword at a crown, which is *Tibi Soli*, ‘For thee’ (Gowrie?) ‘alone.’

Now on no known Ruthven seal, as we saw, does this figure appear, not even on a seal of Gowrie himself, used in 1597. Thus it is perhaps not too daring to suppose that Gowrie, when in Italy in 1597, added this emblematic figure to his ancestral bearings. What does the figure symbolise?

On this point we have a very curious piece of evidence. On June 22, 1609, Ottavio Baldi wrote, from Venice, to James, now King of England. His letter was forwarded by Sir Henry Wotton. Baldi says that he has received from Sir Robert Douglas, and is sending to the King by his nephew—a Cambridge student—‘a strange relique out of this country.’ He obtained it thus: Sir Robert Douglas, while at home in Scotland, had ‘heard speech’ of ‘a certain emblem or impresa,’ left by Gowrie in Padua. Meeting a Scot in Padua, Douglas asked where this emblem now was, and he was directed to the school of a teacher of dancing. There the emblem hung, ‘among other devices and remembrances of his scholars.’ Douglas had a copy of the emblem made; and immediately ‘acquainted me with the quality of the thing,’ says Baldi. ‘We agreed together, that it should be fit, if possible, to obtain the very original itself, and to leave in the room thereof the copy that he had already taken, which he did effect by well handling the matter.

‘Thus hath your Majesty now a view, *in umbra*, of those detestable thoughts which afterwards appeared *in facto*, according to the said Earl’s own *mot*.

For what other sense or allusion can the reaching at a crown with a sword in a stretched posture, and the impersonating of his device in a blackamore, yield to any intelligent and honest beholder?’ [247]

From Baldi’s letter we learn that, in the device left by Gowrie at Padua, the figure pointing a sword at the crown was a negro, thus varying from the figure in Workman’s MS., and that in the illuminated copy emblazoned in 1597, and possessed in 1716 by Crawford. Next, we learn that Sir Robert Douglas had heard talk of this emblem in Scotland, before he left for Italy. Lastly, a *mot* on the subject by the Earl himself was reported, to the effect that the device set forth ‘in a shadow,’ what was intended to be executed ‘in very deed.’

Now how could Sir Robert Douglas, in Scotland, hear talk of what had been done and said years ago by Gowrie in Padua? Sir Robert Douglas was descended from Archibald Douglas of Glenbervie (*ob.* 1570), who was ancestor of the Catholic Earl of Angus (*flor.* 1596). This Archibald of Glenbervie had a son, Archibald, named in his father’s testament, but otherwise unknown. [248] Rather senior to Gowrie at the University of Padua, and in the same faculty of law, was an Archibald Douglas. He may have been a kinsman of Sir Robert Douglas, himself of the Glenbervie family, and from him Sir Robert, while still in Scotland, may have heard of Gowrie’s device, left by him at Padua, and of his *mot* about *in umbra* and *in facto*. But, even if these two Douglasses were not akin, or did not meet, still Keith, Lindsay, and Ker of Newbattle, all contemporaries of Gowrie at Padua, might bring home the report of Gowrie’s enigmatic device, and of his *mot* there-anent. Had the emblem been part of the regular arms of Ruthven, Sir Robert Douglas, and every Scot of quality, would have known all about it, and seen no mystery in it.

It will scarcely be denied that the assumption by Gowrie of the figure in his livery, pointing a sword at the crown, and exclaiming ‘For Thee Only,’ does suggest that wildly ambitious notions were in the young man’s mind. What other sense can the emblem bear? How can such ideas be explained?

In an anonymous and dateless MS. cited in ‘The Life of John Earl of Gowrie,’ by the Rev. John Scott of Perth (1818), it is alleged that Elizabeth, in April 1600, granted to Gowrie, then in London, the guard and honours

appropriate to a Prince of Wales. The same Mr. Scott suggests a Royal pedigree for Gowrie. His mother, wife of William, first Earl, was Dorothea Stewart, described in a list of Scottish nobles (1592) as ‘sister of umquhile Lord Methven.’ Now Henry Stewart, Lord Methven (‘Lord Muffin,’ as Henry VIII used to call him), was the third husband of the sister of Henry VIII, Margaret Tudor, wife, first of James IV, then of the Earl of Angus (by whom she had Margaret, Countess of Lennox, and grandmother of James VI), then of Lord Methven. Now if Margaret Tudor had issue by Henry Stewart, Lord Methven, and if that issue was Dorothea, mother of John, third Earl of Gowrie, or was Dorothea’s father or mother, that Earl was Elizabeth’s cousin. Now Burnet, touching on the Gowrie mystery, says that his own father had ‘taken great pains to inquire into that matter, and did always believe it was a real conspiracy. . . . Upon the King’s death, Gowrie stood next to the succession of the crown of England,’ namely, as descended from Margaret Tudor by Henry (Burnet says ‘Francis’!), Lord Methven. Margaret and Methven, says Burnet, had a son, ‘made Lord Methven by James V. In the patent he is called *frater noster uterinus*’—‘Our brother uterine.’ ‘He had only a daughter, who was mother or grandmother to the Earl of Gowrie, so that by this he might be glad to put the King out of the way, that so he might stand next to the succession of the crown of England.’

[249] If this were true, the meaning of Gowrie’s device would be flagrantly conspicuous. But where is that patent of James V? Burnet conceivably speaks of it on the information of his father, who ‘took great pains to inquire into the particulars of that matter,’ so that he could tell his son, ‘one thing which none of the historians have taken any notice of,’ namely, our Gowrie’s Tudor descent, and his claims (failing James *and his issue*) to the crown of England. Now Burnet’s father was almost a contemporary of the Gowrie affair. Of the preachers of that period, the King’s enemies, Burnet’s father knew Mr. Davidson (*ob.* 1603) and Mr. Robert Bruce, and had listened to their prophecies. ‘He told me,’ says Burnet, ‘of many of their predictions that he himself heard them throw out, which had no effect.’ Davidson was an old man in 1600; Bruce, for his disbelief in James’s account of the conspiracy, was suspended in that year, though he lived till 1631, and, doubtless, prophesied in select circles. Mr. Bruce long lay concealed in the house of Burnet’s great-grandmother, daughter of Sir John Arnot, a witness in the trial of Logan of Restalrig. Thus Burnet’s father had every means of knowing the belief of the contemporaries of Gowrie, and he

may conceivably be Burnet's source for the tale of Gowrie's Tudor descent and Royal claims. They were almost or rather quite baseless, but they were current.

In fact, Dorothea Stewart, mother of Gowrie, was certainly a daughter of Henry Stewart, Lord Methven, and of Janet Stewart, of the House of Atholl. We find no trace of issue born to Margaret Tudor by her third husband, Lord Methven. Yet Gowrie's emblem, adopted by him at Padua in 1597, and his device left in the Paduan dancing school, do distinctly point to some wild idea of his that some crown or other was 'for him alone.' At the trial of Gowrie's father, in 1584, we find mention of his 'challenging that honor to be of his Hignes blud,' but *that* must refer to the relationship of the Ruthvens and the King through the Angus branch of the Douglasses. [250a]

This question as to the meaning of Gowrie's emblem came rather early into the controversy. William Sanderson, in 1656, published *Lives of Mary and of James VI*; he says: 'I have a manuscript which relates that, in Padua, the Earl of Gowrie, among other impressa (*sic*) in a fencing school, caused to be painted, for his devise, a hand and sword aiming at a crown.' [250b] Mr. Scott, in 1818, replied that the device, with the Ruthven arms, 'is engraven on a stone taken from Gowrie House in Perth, and preserved in the house of Freeland' (a Ruthven house). 'There is also, I have been told, a seal with the same engraving upon it, which probably had been used by the Earls of Gowrie and by their predecessors, the Lords of Ruthven.' [251a] But we know of no such seal among Gowrie or Ruthven seals, nor do we know the date of the engraving on stone cited by Mr. Scott. In his opinion the armed man and crown might be an addition granted by James III to William, first Lord Ruthven, in 1487–88. Ruthven took the part of the unhappy King, who was mysteriously slain near Bannockburn. Mr. Scott then guesses that this addition of 1488 implied that the armed man pointed his sword at the crown, and exclaimed *Tibi Soli*, meaning 'For Thee, O James III alone, *not* for thy rebellious son,' James IV. It may be so, but we have no evidence for the use of the emblem before 1597. Moreover, in Gowrie's arms, in Workman's MS., the sword is sheathed. Again, the emblem at Padua showed a 'black-a-more,' or negro, and Sir Robert Douglas could not but have recognised that the device was only part of the ancestral Ruthven

arms, if that was the case. The ‘black-a-more’ was horrifying to Ottavio Baldi, as implying a dark intention.

Here we leave the additional and certainly curious mystery of Gowrie’s claims, as ‘shadowed’ in his chosen emblem. I know not if it be germane to the matter to add that after Bothwell, in 1593, had seized James, by the aid of our Gowrie’s mother and sister, he uttered a singular hint to Toby Matthew, Dean of Durham. He intruded himself on the horrified Dean, hot from his successful raid, described with much humour the kidnapping of the untrussed monarch, and let it be understood that he was under the protection of Elizabeth, *that there was a secret candidate for James’s crown*, and that he expected to be himself Lieutenant of the realm of Scotland. Bothwell was closely *lié* with Lady Gowrie (Dorothea Stewart), and our Gowrie presently joined him in a ‘band’ to serve Elizabeth and subdue James. ^[251b]

APPENDIX B: THE CONTEMPORARY RUTHVEN VINDICATION

(State Papers, Scotland (Elizabeth), vol. lxvi. No. 52)

The verie maner of the Erll of Gowrie and his brother their death, quha war killit at Perth the fyft of August by the kingis servanttis his Matie being present.

Vpone thurisdai the last of July Perth from Strebrane bene ahunting accompainit wth purpose to have ridden to mother. Bot he had no sooner aspersauit fyn vpon such addressit thame selffis thay continewit daylie Amangis the rest Doctor Herries Satirday the first of August feinyng himself to of purpose to and my lordis house. This man be my Lord was w and convoyit throche . . the house and the secreit pairts schawin him.

Vpon tysday my [lordis?] servanttis vnderstanding that my [lord?] was to ryde to Lot [Lothian] obteinit licence to go thair effairis and to prepare thameselfis. Whylk my lord wold [not] have grantit to thame if they any treason in

The same day Mr. Alexander being send for be the king . . . tymes befoir, raid to facland accompaneit wth Andro Ruthven and Andro Hendirson, of mynd not to have returnit . . . bot to have met his brother my lord the next morning at the watter syde. And Andro Hendirsonis confessioun testifeit this . . . tuke his ludgeing in facland for this nygt.

At his cuming to facland he learnit that his Matie was a hunting, quhair eftir brekfast he addrest him self. And eftir conference wt his Matie, he directit Andro Hendirson to ryd befoir, and schaw my lord [that] the king wald come to Perth [for?] quhat occasion he knew not, and desyrit him to haist becaus he knew my lord vnforsene and vnprovydit for his cuming.

The kingis Matie eftir this resolution raid to Perth accompaneit wth thrie score horse quhair (?) threttie come a lytle before him . . . remainit . . .

My lord being at dennar Andro Hendirson cwmes and sayis to his Lordship that the kingis Matie was cummand. My lord . . . quhat his Matie . . . his hienes was. The vther ansuris . . . Then my Lord caused discover the tabel and directit his Officeris [incontinent?] to go to the towne to seik prouision for his Mateis dennare. His Lordship's self accompaneit wt fower men (?) . . . twa onlie war his awin servanttis went to the south . . . of Perth to meit his Matie quhair in presence of all the company his Matie kyssit my lord at meitting.

When his Matie enterit in my lordis house his Maties awin porteris resavit the keyis of the gaitt . . . ylk thay keipit quh . . . murther was endit.

His Mateis self commandit to haist the dennare wt all expedition becaus he was hungrie eftir hunting quhilk . . . the schort warning and suddentlie dispaschit. His Mateis sendis Mr. Alexander to call Sir Thomas Erskyne and Jon Ramsay to folow him to the challmer, quhair his Matie, Sir Thomas Erskyne, Jon Ramsay, Doctor Hereis, and Mr. Wilsone being convenit slew [Mr. Alexr] and threw him down the stair, how and for quhat cause . . . thame selfis, and no doubt wald reveill if thay war was als straytlie toyit in the . . . men . . . kingis servanttis cummes to the . . . at dennare in the hall the . . . saying my lordis will ye . . . calling for horse . . . at his Maties . . . suddaine departure . . . and callit for his horse and stayit not . . . past out to the streit qr abyding his horse he hearis His Matie call on him out at the chalmer window my Lord of Gowrie traittoris hes murtherit yor brother

alreddie and . . . ye suffir me to be murtherit also. My Lord hering yis makis to the yait (?) quhair himself was . . . in and Mr. Thomas Cranstoun that thrust in before him, the rest was excludit by violence of the kingis servanttis and cumpany quha . . . the hous and yett. My lord being in at the yett and entering in the turnpyck to pass vp to his Matie he fand his brother thrawin down ye stairs dead. And when he came to the chalmer dure Mr. Thomas Cranstoun being before him was stricken throw the body twyse and drawin bak be my lord, quha enterit in the chalmer calling if the king was alyve, bot the . . . , quhylk was in the chalmer . . . him wt stroke of sworde, bot being unable to ovircum him, and some of thame woundit, they promisit him to lat him see the king alyve according to his desyre, and in the meantyme he croceing his two swordis was be Jon Ramsay strok throw ye body, and falling wt the stroke recommendit his saule to God, protesting before his heavinlie Matie that he deit his trew subiect and the kingis. And this far is certanely knawin & collectit pairtly be the trew affirmacione of sum quha war present of the kingis awin folkis and last of all be the deposicionnis of Mr. Thomas Cranstoun, George Craingingelt, and J. (?) Barroun, quha eftir grevous & intolerable torturis tuke it vponn thair saluaciun & damnatioun that they never knew the Earle of Gowrie to carie any evill mynd to the kyng lat be to intend treasoun against him, bot rather wald die wt that that the Earle of Gowrie his brother and thay thame selfis deit innocent: . . . Hendersone if he be put to the lyke tryall . . . bot he will confess that he was servind the Lordis al . . . in the hall quhen the Mr was murtherit and quhen the kingis [servant?] broght the newis that his Matie was away & fra that I hear . . . that he was sene till the king causit him to come vponn promeis that his lyfe and landis suld be saif, for quhat cause the effect will . . . As for the buke of Necromancie whiche was alledgit to have bene deprehendit on my lord it (?) was proposeit to the earles pedagog Mr. Wr Rind (?), quha schawis that he knew my lord to have ane memoriall buik quhairin he wreat all the notable thingis he learned in his absence, ather be sicht or hearing, bot as for any buik of Necromancie nor his medling wt necromanceis he never knew thereof.

It may be my gude Lord governor that the maner of the earle of Gowrie and his brotheris death befoir writtin be so far frome yor honoure in mynd that yt (?) may move farther doubtes to aryse theryn. The cause hereof I vnderstand is pairtlie the difference of the last report frome the reporttis

preceidding in that it determines na thing concerning the cause of his Maties sending for the Mr of Gowrie nor concerning. . . . speiches and . . . and in the chalmer. . . . pairtlie becaus . . . prevaile . . . or speik against his Matie albeit thay kowe . . . some thair be that corse . . . apat (?) to his Maties sayingis that thay will swear thame all albeit thair consciences persuade thame of [the] contrair. Sua it is hard for yor Lordship to be resolut be reporttis. Bot if it will pleas yor Lordship to be acquent wt the causis and incidentis preceidding this dolorous effect, I hoip yor Lordship wilbe the mair easilie persuadit of the treuth. And first of all the evill mynd careit be my lord. . . . Colonel (?) Stewart and his privie complaint & informacioun to his Matie thair anent.

Secondlie the opposition laid (?) be my lord himself in the Conventioun and be the barronnis, as is thocht be his instigacioun, against (?) his Matie.

Thirddie the great haitrent and envy of the courtieris in particularis, quha had persavit him to be ane great staye of thair commoditie, and sa be fals reportis and calumneis did go about to kendle and incense his Maties wrath against him privile.

And fourtlie the over great expectatioun the Kirk and cuntrie had of him wt ane singular lowe preceding yr fra and vther causis qlk is not neidfull to be exprest. All these causis makis the kingis pairt to be deadlie suspected be those quha knawis thame to be of veritie.

As for my lordis pairt if yor Lordship knew how weill he was trainit be Mr Robert Rollok ane of the godliest men in Scotland at schoolis, and quhat testificatioun of gude inclinacioun and behaviour he had ressaut fra him yor honor wald hardlie beleue him a traitor.

Secondlie if yor Lordship knew wt quhat accompt and good opinioun of all gude men he passit sobirlie and quyetlie out of his . . . how wiselie and godlie he behavit him self in all natiounis quhairsoever he come, how he sufferit in Rome itself . . . for the treuth of his religion . . . as I am sure he . . . be suspect to be a traittor.

Thirddie to quhat end suld my lord of Gourie have maid hes leving frie, brocht hame furniture and ornamenttis for his hous and payit all his. . . fatheris debtis and setlit himself to be a gude iusticiar in his awin landis as

is notoriouslie knawin gif wtin the space of twa monethis haveing scairslie . . . countrie he suld resolute to . . . & murther his Prince be . . . cause and sa to quyt his countrie his leving his welth his . . . & lyfe, lat be the ruitting out of his name & posteritie for evir.

APPENDIX C.

FIVE LETTERS FORGED BY SPROT, AS FROM LOGAN

[Preserved in the General Register House, Edinburgh]

(1) Robert Logan of Restalrig to . . .

Rycht Honorabill Sir,—My dewty with servise remembred. Pleise yow onderstand, my Lo. of Gowry and some vtheris his Lo. frendis and veill villeris, qha tendaris his Lo. better preferment, ar vpon the resolucion ye knaw, for the revenge of that cawse; and his Lo. hes vrettin to me anent that purpose, qhairto I vill accorde, incase ye vill stand to and beir a part: and befoir ye resolve, meet me and M.A.R. in the Cannogat on Tysday the nixt owk, and be als var as ye kan. Indeid M.A.R. spak with me fowr or fywe dayis syn, and I hew promised his Lo. ane answar within ten dayis at farrest. As for the purpose how M.A.R. and I hes sett down the cowrse, it vill be ane very esy done twrne, and nocht far by that forme, with the lyke stratagem, qhairof ve had conference in Cap. h. Bot incase ye and M.A.R. forgader, becawse he is someqhat consety, for Godis saik be very var with his raklese toyis of Padoa: For he tald me ane of the strangest taillis of ane nobill man of Padoa that ever I hard in my lyf, resembling the lyk purpose. I pray yow, Sir, think nathing althocht this berare onderstand of it, for he is the special secretair of my lyf; His name is Lard Bower, and was ald Manderstonis man for deid and lyf, and evin so now for me. And for my awin part, he sall knaw of all that I do in this varld, so lang as ve leif togidder, for I mak him my howsehald man: He is veill vorthy of credit, and I recommend him to yow. Alvyse to the purpose, I think best for our plat that ve meet all at my house of Fastcastell; for I hew concludit with M.A.R. how I think it sall be meittest to be convoyit quyetest in ane bote, be sey; at qhilk tyme vpon swre adwartisment I sall hew the place very quyet and veill provydit; and as I receve yowr answer I vill post this berair to my Lo. and therfoir I pray yow, as ye luf yowr awin lyf, becawse it is nocht ane matter

of mowise, be circumspect in all thingis, and tak na feir bot all sall be veill. I hew na vill that ather my brother or yit M.W.R. my Lo. ald pedagog knaw ony thing of the matter, qhill all be done that ve vald hew done; and thane I cair nocht qha get vit, that lufis vs. Qhen ye hew red, send this my letter bak agane vith the berar, that I may se it brunt my self, for sa is the fasson in sic errandis; and if ye please, vryyt our (?) answer on the bak herof, incase ye vill tak my vord for the credit of the berair: and vse all expedicioun, for the twrne vald nocht be lang delayit. Ye knaw the kingis hwnting vill be schortly, and than sall be best tyme, as M.A.R. has asswred me, that my Lo. has resolved to interpryse that matter. Lwking for yowr answer, committis yow to Chrystis haly protectioun. Frome Fastcastell, the awchtan day of July 1600.

(Sic subscribitur) Yowris to vtter power redy

RESTALRIGE.

On the back 'Sprott,' 'bookit' (2).

(2) *Robert Logan of Restalrig to Laird Bower.*

Lard Bower,—I pray yow hast yow hast to me abowt the erand I tald yow, and ve sall confer at lenth of all thingis. I hew recevit an new letter fra my Lo(rd) of Go(wrie) concerning the purpose that M.A. his Lo. brothir spak to me befor, and I perseif I may hew advantage of Dirleton, incase his other matter tak effect, as ve hope it sall. Alwayse I beseik yow be at me the morne at evin, for I hew asswred his lo. servand, that I sall send yow over the vatter vithin thre dayis, vith an full resolucion of all my vill, anent all purposes; As I sall indeid recommend yow and yowr trustiness till his lo. as ye sall find an honest recompense for yowr panes in the end. I cair nocht for all the land I hew in this kingdome, incase I get an grip of Dirleton, for I esteem it the plesantest dwelling in Scotland. For Goddis cawse, keip all thingis very secret, that my lo. my brothir get na knowlege of ovr purposes, for I (wald?) rather be eirdit quik. And swa lwking for yow, I rest till meitting. Fra the Kannogait, the xvij day of July.

(Sic subscribitur) Yowris to power redy

RESTALRIGE.

I am verie ill at eise and thairfoir speid yow hither.

On the back ‘Sprott,’ ‘Secund,’ ‘bookit.’

(3) *Robert Logan of Restalrig to*

Rycht honorable Sir,—All my hartly duty vith humbill servise remembred. Sen I hew takin on hand to interpryse vith my lo(rd) of Go(wrie) yowr speciall and only best beloved, as ve hew set down the plat alredy, I vill request yow that ye vill be very circumspek and vyse, that na man may get ane advantage of vs. I dowl nocht bot ye knaw the perell to be bayth lyf, land and honowr, incase the mater be nocht vyslie vsed: And for my avin part, I sall hew an speciall respek to my promise that I hew maid till his Lo. and M.A. his lo(rdschipsis) brother, althocht the skafald var set vp. If I kan nocht vin to Fakland the first nycht, I sall be tymelie in St Johnestoun on the morne. Indeid I lipnit for my lo(rd) himself or ellise M.A. his lo.

brother at my howse of Fast(castell) as I vret to them bayth. Alwyse I repose on yowr advertysment of the precyse day, vith credit to the berar: for howbeit he be bot ane silly ald gleyd carle, I vill answer for him that he sall be very trew. I pray yow, sir, reid and ather bwrne or send agane vith the berare; for I dar haserd my lyf and all I hew ellise in the varld on his message, I hew sik pruiif of his constant trewth. Sa committis yow to Chrystis holy protectioun. Frome the Kannogait the xxvij day of July 1600.

(Sic subscribitur)

Yowris till all power vt humbill servise redy
RESTALRIGE.

I vse nocht to vryt on the bak of ony of my letteris concerning this errand.

On the back 'Sprott,' 'bookit' (3).

(4) *Robert Logan of Restalrig to the Earl of Gowrie.*

My Lo.—My maist humbill dewtie vith servise in maist hartly maner remembred. At the resset of yowr lo(rdchipis) letter I am so comforted, especially at your Lo: purpose communicated onto me thairin, that I kan nather vtter my joy nor find myself habill how to encounter yowr lo. vith dew thankis. Indeid my lo. at my being last in the town M.A. your lo. brother imperted somqhat of yowr lo(rdschipis) intioun anent that matter onto me; and if I had nocht bene busied abowt sum turnis of my avin, I thocht till hew cummit over to S. Jo. and spokin vith your lo(rdschip). Yit alwayse my lo. I beseik your lo. bayth for the saifty of yowr honowr, credit and mair nor that, yowr lyf, my lyf, and the lyfis of mony otheris qha may perhapis innocently smart for that turne eftirwartis, incase it be reveilled be ony; and lykvyse, the vtter vraking of our landis and howsis, and extirpating of ovr names, lwke that ve be all also sure as yowr lo. and I myself sall be for my avin part, and than I dowl nocht, bot vith Godis g(race) we sall bring our matter till ane fine, qhilk sall bring contentment to vs all that ever vissed for the revenge of the Maschevalent massakering of our deirest frendis. I dowl nocht bot M.A. yowr lo. brother hes informed yowr lo. qhat cource I laid down, to bring all your lo(rdschipis) associatis to my howse of Fast(castell) be sey, qhair I suld hew all materiallis in reddyness for thair

saif recayving a land, and into my howse; making as it ver bot a maner of passing time, in ane bote on the sey, in this fair somer tyde; and nane other strangeris to hant my howse, qhill ve had concluded on the laying of owr plat, quhilk is alredy devysed be M.A. and me. And I vald viss that yowr lo. wald ather come or send M.A. to me, and thareftir I sowld meit yowr lo. in Leith, or quyetly in Restal(rig) qhair ve sowld hew prepared ane fyne hattit kit, vt succar, comfeitis, and vyn; and thereftir confer on matteris. And the soner ve broght owr purpose to pass it ver the better, before harwest. Let nocht M.W.R. yowr awld pedagog ken of your comming, bot rather vald I, if I durst be so bald, to intreit yowr lo. anis to come and se my avin howse, qhair I hew keipit my lo(rd) Bo(thwell) in his gretest extremityis, say the King and his consell qhat they vald. And incase God grant vs ane hapy swccess in this errand, I hope baith to haif yowr lo. and his lo., with mony otheris of yowr loveries and his, at ane gude dyner, before I dy. Alvyse I hope that the K(ingis) bwk hunting at Falkland, this yeir, sall prepair sum daynty cheir for ws, agan that dinner the nixt yeir. *Hoc jocose*, till animat yowr lo. at this tyme; bot eftirvartis, ve sall hew better occasion to mak mery. I protest, my lo. before God, I viss nathing with a better hart, nor to atchive to that qhilk yowr lo. vald fane atteyn onto; and my continewall prayer sall tend to that effect; and with the large spending of my landis gudis, yea the haserd of my lyf, sall not afray me fra that, althocht the skaffold var alredy sett vp, befoir I sowld falsify my promise to yowr lo. and perswade yowr lo(rdschip) therof. I trow yowr lo. hes ane prufe of my constancy alredy or now. Bot my lo. qharas your lo. desyris in yowr letter, that I craif my lo. my brotheris mynd anent this matter, I alvterly disasent fra that that he sowld ever be ane counsalowr therto; for in gude fayth, he vill newer help his frend nor harme his fo. Yowr lo. may confyde mair in this ald man, the beirer heirof, my man La(ird) Bowr, nor in my brother; for I lippin my lyf and all I hew ells in his handis; and I trow he vald nocht spair to ryde to Hellis yet to plesour me; and he is nocht begylit of my pairt to him. Alvyse, my lo. qhen yowr lo. hes red my letter, delyver it to the berair agane, that I may se it brunt vith my awin ein; as I hew sent yowr Lo: letter to yowr Lo. agane; for so is the fassone I grant. And I pray yowr lo. rest fully perswaded of me and all that I hew promesed; for I am resolved, howbeit it ver to dy the morne. I man intreit yowr lo. to expedie Bowr, and gif him strait directioun, on payn of his lyf, that he tak never ane vink sleip, qhill he se me agane; or ellise he vill vtterly vndo vs. I hew alredy sent an

other letter to the gentill man yowr lo. kennis, as the berare vill informe yowr lo. of his answer and forvardness vith yowr lo.; and I sall schaw yowr lo. forder, at meting, qhen and qhair yowr lo. sall think meittest. To qhilk tyme and ever committis yowr lo. to the proteccioun of the Almychtie God. From Gwnisgrene, the twenty nynt of Julij 1600.

(Sic subscribitur) Your lo. awin sworne and bundman to obey and serve vt efauld and ever redy seruise to his vtir power till his lyfis end.

RESTALRIGE.

Prayis yowr lo. hald me excused for my vnsemlly letter, qhilk is nocht sa veil vrettin as mister var: For I durst nocht let ony of my vryteris ken of it, but tuke twa syndry ydill dayis to it my self.

I vill never foryet the gude sporte that M.A. yowr lo: brother tald me of ane nobill man of Padoa, it comiss sa oft to my memory. And indeid it is a parastevr to this purpose ve hew in hand.

On the back ‘Sprott,’ ‘bookit’ (4).

(5) *Robert Logan of Restalrig to . . .*

Rycht honorabill Sir,—My hartly dewty remembred. Ye knaw I tald yow at owr last meitting in the Cannogat that M.A.R. my lo. of Go(wries) brother had spokin vith me, anent the matter of owr conclusion; and for my awin part I sall nocht be hindmest; and sensyne I gat ane letter from his lo. selff, for that same purpose; and apoun the resset tharof, onderstanding his lo. frankness and fordvardness in it, God kennis if my hart vas nocht liftit ten stagess! I postit this same berare till his lo. to qhome ye may concredit all yowr hart in that asveill as I; for and it var my very sowl, I durst mak him messinger therof, I hew sic experiense of his treuth in mony other thingis: He is ane silly ald gleyd carle, bot vonder honest: And as he hes reportit to me his lo. awin answer, I think all matteris sall be concluded at my howse of Fa(stcastell); for I and M.A.R. conclude that ye sowld come vith him and his lo. and only ane other man vith yow, being bot only fowr in company, intill ane of the gret fisching botis, be sey to my howse, qher ye sall land as saifly as on Leyth schoir; and the howse agane his lo. comming to be quyet:

And qhen ye ar abowt half a myll fra schoir, as it ver passing by the howse, to gar set forth ane vaf. Bot for Godis sek, let nether ony knowlege come to my lo. my brotheris eiris, nor yit to M.W.R. my lo. ald pedagog; for my brother is kittill to scho behind, and dar nocht interpryse, for feir; and the other vill disswade vs fra ovr purpose vith ressonis of religion, qhilk I can newer abyd. I think thar is nane of a nobill hart, or caryis ane stomak vorth an pini, bot they vald be glad to se ane contented revenge of Gray Steillis deid: And the soner the better, or ellse ve may be marrit and frustrat; and therfor, pray his lo(rdschip) be qwik and bid M.A. remember on the sport he tald me of Padoa; for I think vith my self that the cogitacion on that sould stimulat his lo(rdschip). And for Godis cawse vse all yowr cowrses *cum discrecione*. Fell nocht, sir, to send bak agan this letter; for M.A. leirit me that fasson, that I may se it distroyed my self. Sa till your comming, and ever, committis yow hartely to Chrystis holy protection. From Gwnisgrene, the last of July 1600.

On the back ‘xiiij Aprilis 1608 producit be Ninian Chirnesyde (8).’

Also ‘Sprott,’ ‘Fyft. bookit.’

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Footnotes:

[0a] Longmans, Green, & Co., 1871.

[7] See *The Mystery of Mary Stuart*. Longmans, 1901.

[12a] Extracted from the Treasurer's Accounts, July, August, 1600. MS.

[12b] The King's Narrative, Pitcairn's *Criminal Trials of Scotland*, ii. 210.

[13] The King's Narrative, *ut supra*. Treasurer's Accounts, MS.

[14] Lennox in Pitcairn, ii. 171–174.

[18] The description is taken from diagrams in Pitcairn, derived from a local volume of Antiquarian Proceedings. See, too, *The Muses' Threnodie*, by H. Adamson, 1638, with notes by James Cant (Perth, 1774), pp. 163, 164.

[19] Pitcairn, ii. 199.

[23] The evidence of these witnesses is in Pitcairn, ii. 171–191.

[28] Cranstoun's deposition in Pitcairn, ii. 156, 157. At Falkland August 6.

[30] The adversaries of the King say that these men ran up, and were wounded, *later*, in another encounter. As to this we have no evidence, but we have evidence of their issuing, wounded, from the dark staircase at the moment when Cranstoun fled thence.

[38] Quoted by Pitcairn, ii. 209. The Falkland letter, as we show later, was probably written by David Moysie, but must have been, more or less, 'official.' Cf. p. 100, *infra*.

[40] Many of these may be read in *Narratives of Scottish Catholics*, by Father Forbes-Leith, S.J.

[42] Carey to Cecil. Berwick, *Border Calendar*, vol. ii. p. 677, August 11, 1600.

[44a] Deposition of Craigengelt, a steward of Gowrie's, Falkland, August 16, 1600. Pitcairn, ii. 157.

[44b] Pitcairn, ii. p. 185.

[44c] Pitcairn, ii. p. 179.

[45] Barbé, p. 91.

[48a] State Papers, Scotland (Elizabeth), vol. lxvi. No. 50.

[48b] Mr. S. R. Gardiner alone remarks on this point, in a note to the first edition of his great History. See note to p. 54, *infra*.

[52a] Apparently not Sir Thomas Hamilton, the King's Advocate.

[52b] State Papers, Scotland (Elizabeth), vol. lxvi. No. 51.

[53] Pitcairn, vol. ii. p. 249.

[58] Mr. Scott suggested that a piece of string was found by Balgonie. The words of Balgonie are 'ane gartane'—a garter. He never mentions string.

[59] According to a story given by Calderwood, Ruthven's sword was later found rusted in its sheath, but no authority is given for the tale.

[60] Pitcairn, ii. 197.

[61a] *The Tragedy of Gowrie House*, by Louis Barbé, 1887, p. 91.

[61b] Mr. Barbé, as we saw, thinks that Robertson perjured himself, when he swore to having seen Henderson steal out of the dark staircase and step over Ruthven's body. On the other hand, Mr. Bisset thought that Robertson spoke truth on this occasion, but concealed the truth in his examination later, because his evidence implied that Henderson left the dark staircase, not when Ramsay attacked Ruthven, but later, when Ruthven had already been slain. Mr. Bisset's theory was that Henderson had never been in the turret during the crisis, but had entered the dark staircase from a door of the dining-hall on the first floor. Such a door existed, according to Lord Hailes,

but when he wrote (1757) no traces of this arrangement were extant. If such a door there was, Henderson may have slunk into the hall, out of the dark staircase, and slipped forth again, at the moment when Robertson, in his first deposition, swore to having seen him. But Murray of Arbany cannot well have been there at that moment, as he was with the party of Lennox and Mar, battering at the door of the gallery chamber.—Bisset, *Essays in Historical Truth*, pp. 228–237. Hailes, *Annals*. Third Edition, vol. iii. p. 369. Note (1819).

[63a] *Privy Council Register*, vi. 149, 150.

[63b] Pitcairn, ii. 250.

[64] Mr. Panton, who, in 1812, published at Perth, and with Longmans, a defence of the Ruthvens, is very strong on the improbability that Henderson was at Falkland. Why were not the people to whose house in Falkland he went, called as witnesses? Indeed we do not know. But as Mr. Panton looked on the King's witnesses as a gang of murderous perjurers, it is odd that he did not ask himself why they, and the King, did not perjure themselves on this point. (*A Dissertation on the Gowry Conspiracy*, pp. 127–131.)

[67a] Pitcairn, ii. 222, 223.

[67b] Hudson to Cecil, Oct. 19, 1600, Edinburgh. State Papers, Scotland (Elizabeth), vol. lxvi. No. 78.

[69a] *James Hudson to Sir Robert Cecil*.

‘. . . I have had conference of this last acsyon, first wth the King, at lenglht, & then wth Henderson, but my speache was first wth Henderson befoar the King came over the watter, betwixt whoame I fynde no defference but yt boath alegethe takinge the dager frome Alexander Ruthven, wch stryf on the one part maie seame to agment honor, & on the other to move mersy by moar merit: it is plaen yt the King only by god's help deffended his owin lyff wel & that a longe tyme, or els he had lost it: it is not trew that Mr. Alex spok wth his brother when he went owt, nor that Henderson vnlokt the door, but hast & neglect of Mr. Alex, left it opin, wherat Sr Jhon Ramsay entrid,

& after hime Sr Tho. Ereskyn Sr Hew Haris & Wilsone. Yt it is not generally trustid is of mallice & preoccupassyon of mens mynds by the minesters defidencce at the first, for this people ar apt to beleve the worst & loath to depart frome yt fayth.

. . . .

‘Edinborow this 19 of October 1600.’

[69b] Pitcairn, ii. 218.

[73] *Privy Council Register*, vi. 671.

[74a] State Papers, Scotland (Elizabeth), vol. lxvi. No. 107.

[74b] Cranstoun mentioned his long absence in France to prove that he was not another Mr. Thomas Cranstoun, a kinsman of his, who at this time was an outlawed rebel, an adherent of Bothwell (p. 155, *infra*).

[75] State Papers, Scotland (Elizabeth), vol. lxvi. No. 107.

‘George Nicolson to Sir Robert Cecil.

.

‘A man of Cannagate speaking that one Mr. Ro: Oliphant, lyeng at his house, should haue complayned and said that “there was no justice in Scotland, for favlters skaped fre and innocentis were punished. Mr. Thomas Cranston was execute being innocent, and Henderson saued. That therle of Gowry had moued that matter to him (Oliphant) in Paris and here, that he had wth good reasons deverted him, that therle thereon left him and delt wth Henderson in that matter, that Henderson vndertooke it and yet fainted, and Mr. Thomas Cranston knew nothing of it and yet was executed.” This I heare, and that this Oliphant that was Gowries servant is, vpon this mans speache of it, againe fled. The heades of Gowry and his brother are sett vpon the tolebuthe here this day.

‘Edenb. the 5 of Decemb. 1600.’

[76] The Captain was ‘a landless gentleman.’ His wife owned Ranfurdie, and the Captain, involved in a quarrel with Menteith of Kers, had been accused of—witchcraft! The Captain’s legal affairs may be traced in the *Privy Council Register*.

[77] The proceedings of the English Privy Council at this point are lost, unluckily. The Scottish records are in *Privy Council Register*, 1608–1611, s.v. Oliphant, Robert, in the Index.

[80] See the Rev. Mr. Scott’s *Life of John, Earl of Gowrie*. Mr. Scott, at a very advanced age, published this work in 1818. He relied much on tradition and on anonymous MSS. of the eighteenth century.

[81] State Papers, Scotland (Elizabeth), vol. lxvi. No. 52. For the document see Appendix B.

[83] James himself, being largely in Abercromby’s debt, in 1594 gave him ‘twelve monks’ portions’ of the Abbacy of Cupar.—*Act. Parl. Scot.* iv. 83, 84.

[93] Mr. Henderson, in his account of William, Earl of Gowrie, in the *Dictionary of National Biography*, mentions ‘The Vindication of the Ruthvens’ in his list of authorities. He does not cite the source, as in MS. or in print; and I know not whether he refers to ‘The Verie Manner &c.,’ State Papers, Scotland (Elizabeth), vol. lxvi. No. 52. The theory of Mr. Scott (1818) is much akin to that of ‘The Verie Manner,’ which he had never seen.

[94] Barbé, p. 124.

[96] State Papers, Scotland (Elizabeth), vol. lxvi. No. 64.

[97] State Papers, Scotland (Elizabeth), vol. lxvi. No. 64.

Sir William Bowes to Sir John Stanhope, Sept. 2, 1600.

Sr I attending hir Mties embassadr toward Newcastle happened to meet wyth Mr Preston then on his waie from his king to hir Mtie. In renewing a former acquaintance I found hym verie willing to possesse me wyth his report of the death of Gowrie and his brother, in the circumstances wherof sundrie thingis occurring hardlie probable I was not curious to lett him see that wyse men wyth vs stumbled therat. And therfor I thought yt wysdom

in the king to deliuer his honor to the world and especiallie to her Mtie. And in this as in other albeit I am not ignorant that the actions of princes must challenge the Fairest interpretation Yet because in deed truthe symplie canne doe no wrong And that we owe or dearest and nearest truthes to our soueraygnes in this matter so precisely masked lett me deliuer to youe what For myne own part I doe belieue.

The King being readie to take horse was wythdrawen in discourse with the Mr of Gowrie, a learned sweet and hurtles yong gentleman, and one other attending. Now were it by occasion of a picture (as is sayde) or otherwise, speech happening of Earle Gowrie his father executed, the king angrelie sayde he was a traitour, whereat the youth showing a greeved and expostulatorie countenance and happelie Scot-like Woordis, the King, seeing hymself alone and wythout weapon, cryed, Treason, Treason. The Mr abashed much to see the king so apprehend yt, whilst the king wold call to the Lords, the Duke, Marre, and others that were attending in the court on the king comming to horse, putt his hand with earnest deprecations to staie the king, showing his countenance to them wythout in that moode, immediatlly falling on his knees to entreat the King. At the K. sound of Treason, from out of the Lower Chamber hastelie running Harris the physician Ramsey his page and Sr Thomas Erskyn came to where the king was Where Ramsey runne the poore gentleman thorough, sitting as is saide vpon his knees.

At this stirr the earle wyth his Mr Stablere and somme other, best knowing the howse and the wayes, came first to the slaughter where finding his brother dead and the king retyred (For they had perswaded hym into a countinghouse) some fight beganne between the earle and the others. Mr Preston saies that vpon thar relation that the king was slayne the earle shronke from the pursuyte, and that one of the afornamed rushing sodainlee to the earle thrust hym through that he fell down and dyed. This matter seeming to haue an accidentall beginning, to gyve it an honorable cloake is pursued wyth odious treasons coniurations &c. imputed to the dead earle, wyth the death of the Mr Stabler, Wyth making knyghtis the actors, And manye others such as I know are notified to you long ere this. The ministers as I heare are asked to make a thankgyving to god, where they think more need of Fasting in Sackclothe and Ashes, to the kingis much discontenting. This I must not saie (as the scholers terme yt) to be

categoricallie true, but heupatheticallie ^[98] I take yt so to be. Wherevpon maie be inferred that as the death of the twoe First maie be excused by tendering the verie shoue of hazard to the King, so is the making of religion and iustice cloakes to cover accidentall oversightis a matter which both heaven and earth will iudge. . . .

From Bradley this 2de of Sept.

Yor poore Frend to commannd.

WILLM. BOWES.

[98] Hypothetically?

[103] Calderwood, vi. 84.

[104] Pitcairn, ii. 248 *et seq.*

[105a] Calderwood, vi. 98.

[105b] *Ibid.* vi. 130.

[107a] Calderwood, vi. 147.

[107b] *Ibid.* vi. 156.

[110] Mr. Bruce appears to have gone to France in 1599–1600, to call Gowrie home. In a brief account of his own life, dictated by himself at about the age of seventy (1624), he says, ‘I was in France for the calling of the *Master*’ (he clearly means *Earl*) ‘of Gowrie’ (Wodrow’s ‘Life of the Rev. Robert Bruce,’ p. 10, 1843). Calderwood possessed, and Wodrow (*circ.* 1715) acquired, two ‘Meditations’ by Mr. Bruce of August 3, 4, 1600. Wodrow promises to print them, but does not, and when his book was edited in 1843, they could not be found. He says that ‘Mr. Bruce appears to have been prepared, in Providence,’ for his Gowrie troubles, judging (apparently) by these ‘Meditations.’ But Mr. Henry Paton has searched for and found the lost ‘Meditations’ in MS., which are mere spiritual outpourings. Wodrow’s meaning is therefore obscure. Mr. Bruce had great celebrity as a prophet, but where Wodrow found prophecy in the ‘Meditations’ of August 3, 4, 1600, is not apparent (Wodrow’s ‘Bruce,’ pp. 83, 84. Wodrow MSS., Advocates’ Library, vol. xliv. No. 35).

[111] Calderwood, vi. 49, 66–76.

[114] Pitcairn, ii. 196.

[118] Bain, *Calendar*, ii. 350; Nau, p. 59.

[121a] *Form of certain Devices, &c.* See *Papers relating to William, Earl of Gowrie*, London, 1867, pp. 25–29.

[121b] Form of examination and death of William, Earl of Gowrie. British Museum, Caligula, c. viii. fol. 23.

[126] Thorpe, *Calendar*, ii. 650

[127a] *De Natione Anglica et Scota Juristarum Universitatis Patavinae* Io. Aloys. Andrich. Patavii, 1892, pp. 172, 173.

[127b] Ottavio Baldi to the King, June 22, 1609. Record Office. Venice, No. 14, 1608–1610. See *infra*, Appendix A, ‘Gowrie’s Arms and Ambitions.’

[128a] Gowrie’s letters of 1595 are in Pitcairn.

[128b] State Papers, Scotland (Elizabeth), vol. lxiii. No. 85.

G. Nicolson to Sir Robert Cecil.

Edinburgh, 25 December, 1598.

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‘I heare Gowry is become a papist. But the K. takes little care to this, And yet sure it importes him most to se to it, vnlest he accompt otherwais of it than he hath cause, except he haue other pollicy than I will conjecture.’ Compare Galloway’s sermon, in Pitcairn, ii. 249, and *A Short Discourse*, ii. 231, 232.

[129a] Simancas, iv. pp. 653, 654, 677, 680, 715.

[129b] Compare note, p. 110, *supra*.

[130a] *Winwood Memorials*, pp. 1, 156. Hudson to Cecil. State Papers, Scotland (Elizabeth), vol. lxvi. No. 19.

[130b] *Border Calendar*, vol. ii. May 29, 1600. Carey to Cecil.

[131a] The whole proceedings are printed in Arnot's *Criminal Trials*.

[131b] Nicholson to Cecil, June 22, June 29, 1600. Tytler, vol. ix. pp. 325, 326, 1843.

[131c] This date I infer from Cranstoun's statement. On August 5 he had scarcely seen the Ruthvens, to speak to, for a fortnight.

[133] *Border Calendar*, vol. ii. p. 698, Oct. 21, 1600. Carey to Cecil.

[134a] Calderwood, vi. 71.

[134b] A defender of Gowrie, Mr. Barbé, has the following 'observes' upon this point. It has been asserted by Calderwood that, 'while the Earl was in Strathbraan, fifteen days before the fact' (say July 20), 'the King wrote sundry letters to the Earl, desiring him to come and hunt with him in the wood of Falkland, which letters were found in my lord's pocket, as is reported, but were destroyed.' Mr. Barbé then proves that letters *were* sent to Gowrie and Atholl in the last days of July. It is certain that a letter was sent to Gowrie about July 20, possibly a sporting invitation, not that there was any harm in an invitation to join a hunting party. James is next accused of 'trying to stifle the rumour' about this 'letter,' by a direct denial. This means that Craigengelt, Gowrie's caterer, was asked whether he knew of any man or boy who came to Gowrie from Court, and said that he did not, a negative reply supposed to have been elicited by the torture to which Craigengelt was certainly subjected. We only know that at the end of July letters were sent to Gowrie, to Inchaffray, to Atholl, and to Ruthven. Whether his reached Gowrie or not, and what it contained, we cannot know.

[137] *Privy Council Register*, vi. 194.

[140a] Cf. p. 110, note.

[140b] *Border Calendar*, i. 491.

[142] *Tragedy of Gowrie House*, pp. 29, 31.

[147] As to Bothwell's whereabouts, in 1600, he left Brussels in March, nominally to go to Spain, but, in June, the agent of the English Government in the Low Countries was still anxious to hear that he had arrived in Spain. When he actually arrived there is uncertain. Compare Simancas, iv. p. 667, with State Papers, Domestic (Elizabeth) (1598–1600), p. 245, No. 88, p. 413 (March 24, April 3, 1600), p. 434, May 30, June 9, p. 509. Cecil meant to intrigue with Bothwell, through Henry Locke, his old agent with Bothwell's party, Atholl, and Gowrie (October 1593). Compare *infra*, p. 160.

[152] *Privy Council Register*, ii. 217, 218.

[153] *Privy Council Register*, ii. 622, 699.

[155a] *Privy Council Register*, vi. 73, 74.

[155b] State Papers, Scotland (Elizabeth), vol. lxvi. No. 13, No. 21.

[156] *Hatfield Calendar*, viii. 147, 399.

[157] For these letters of Logan's, see *Hatfield Calendar*, vols. iii. iv. under 'Restalrig,' in the Index.

[158] *Privy Council Register*, vol. v., s. v. 'Logan' in the Index.

[159] *Border Calendar*, vol. ii. Willoughby to Cecil, January 1, 1599.

[160a] Pitcairn, ii. 405–407.

[160b] See Thorpe's *Calendar*, vol. ii., s. v. 'Mowbray, Francis' in the Index.

[161] He had sold Nether Gogar in 1596.

[162] Some of the papers are in the General Register House, Edinburgh.

[164] The evidence for all that occurred to Sprot, between April and July 1608, is that of a manuscript *History of the Kirk of Scotland*, now in the Advocates' Library. It is written in an early seventeenth-century hand. Calderwood follows it almost textually up to a certain point where the author of the MS. history says that Sprot, on the scaffold, declared that he had no promise of benefit to his family. But Calderwood declares, or says

that others declare, that Sprot was really condemned as a forger (which is untrue), but confessed to the Gowrie conspiracy in return for boons to his wife and children.

We have, of course, no evidence that anything was done by Government, or by any one, for Mrs. Sprot and the children. The author of the MS., which Calderwood used as he pleased, avers that Sprot denied on the scaffold the fact that he had any promise. Neither draft nor official account confirms the MS. history on the point of no promise. The official *draft* of his last moments (from its interlineations, each signed by the Clerk of Council) appears to have been drawn up on the spot, or hurriedly, as soon as Sprot was dead. This is the aspect of the *draft* of the account; the official *printed* account says that there was ‘no place of writing on the scaffold, in respect of the press and multitude of people’ (Pitcairn, ii. 261).

[169] Vol. ii. pp. 282–7.

[170] Letter I is a peculiar case, and was not, perhaps, spoken of by Sprot at all.

[183] Laing, *Charters*, Nos. 1452, 1474–76, 2029.

[198] *Hatfield Calendar*, iv. 659.

[199a] Pitcairn, iii. Appendix vii.

[199b] *Border Calendar*, i. 486, 487.

[202] Thorpe, ii. 614, 616, 617. *Border Calendar*, i. 457.

[203] *Privy Council Register*, viii. 150–2, 605.

[206a] Pitcairn, ii. 287, *n* 2.

[206b] Neville to Cecil, Paris, Feb. 27, 1600. Willoughby to Cecil, Berwick, April 22, 1600. *Winwood Memorials*, p. 166. *Border Calendar*, ii. 645.

[217] The peculiarities of spelling are those recognised as Logan’s, and easily imitated by the forger.

[221] He had not the letter before him at this moment, and may have forgotten.

[222] Spottiswoode, vol. iii. pp. 274, 282.

[224] Cromarty, *An Historical Account, &c.*, 92 (1713).

[227a] Calderwood, vi. 780.

[227b] In the Auchendrane case (1615), the public, partisans of the murderers, wished the only witness to be hanged, just to see if he would persevere in his confession.

[239] *Melrose Papers*, vol. i. pp. 72, 73.

[243a] Pitcairn, ii. 289–290.

[243b] *Ibid.* ii. 292.

[247] *State Papers*, Venice, R.O., No. 14, 1608–10. Hill Burton, *History of Scotland*, vol. vi. pp. 135, 136. Note. Edition of 1870.

[248] This information I owe to Mr. Anderson, with the reference to Crawford, and other details.

[249] Burnet's *History of his Own Time*, vol. i. pp. 24, 25, mdccxxv.

[250a] *Papers relating to William, first Earl of Gowrie*, p. 30. (Privately printed, 1867.)

[250b] Sanderson, p. 226.

[251a] Scott, pp. 282, 284.

[251b] *Border Calendar*, vol. i. p. 491.

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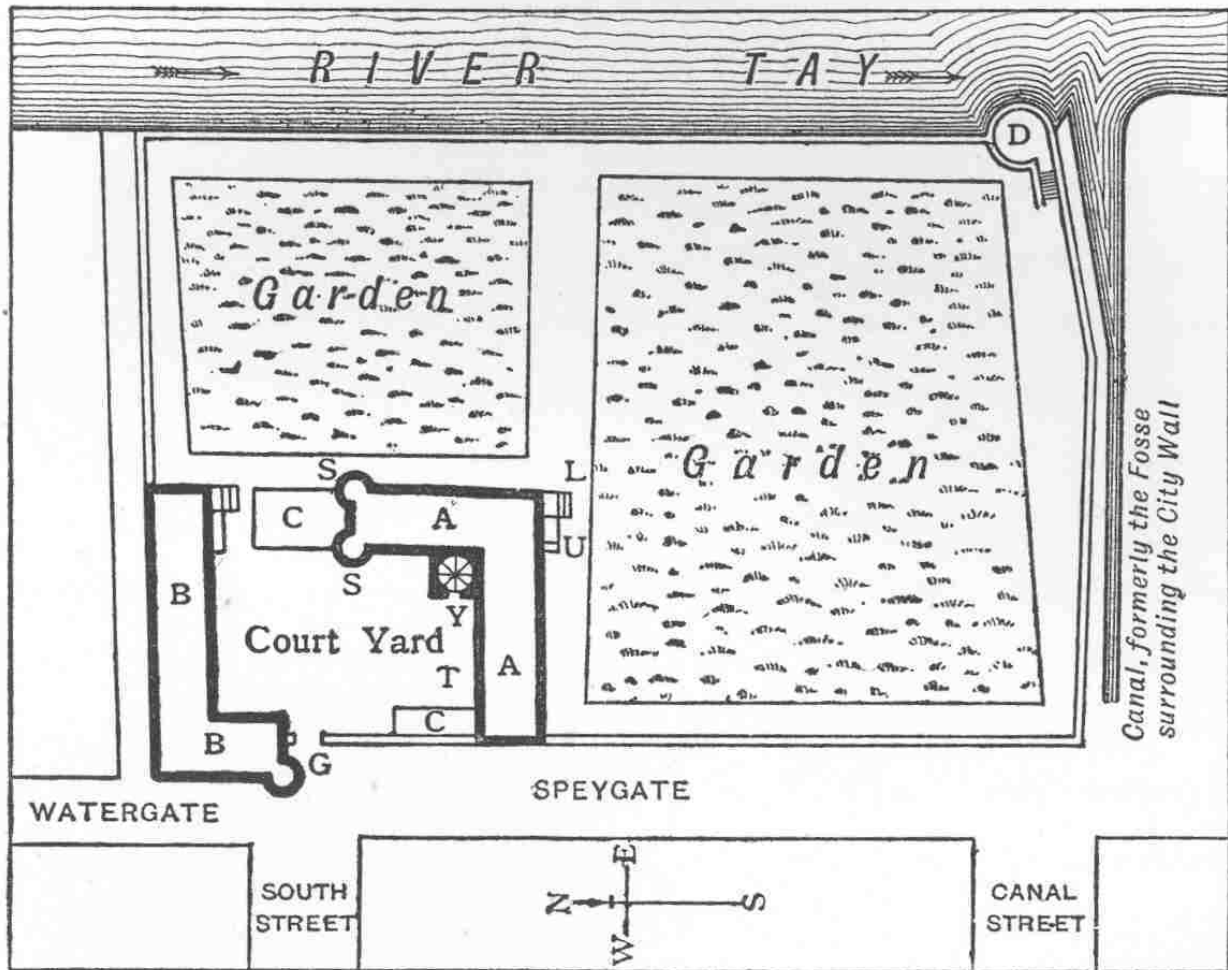
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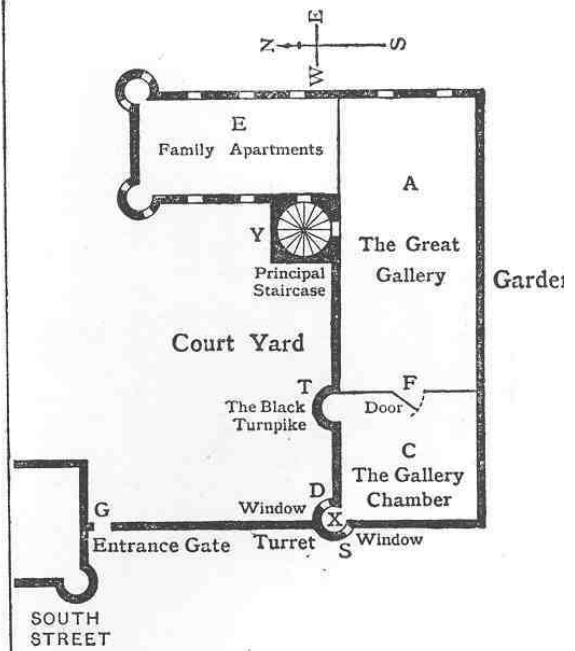
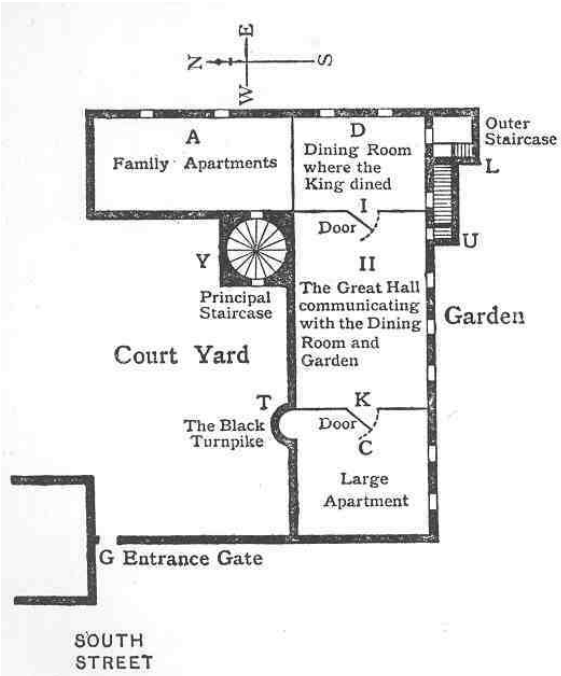
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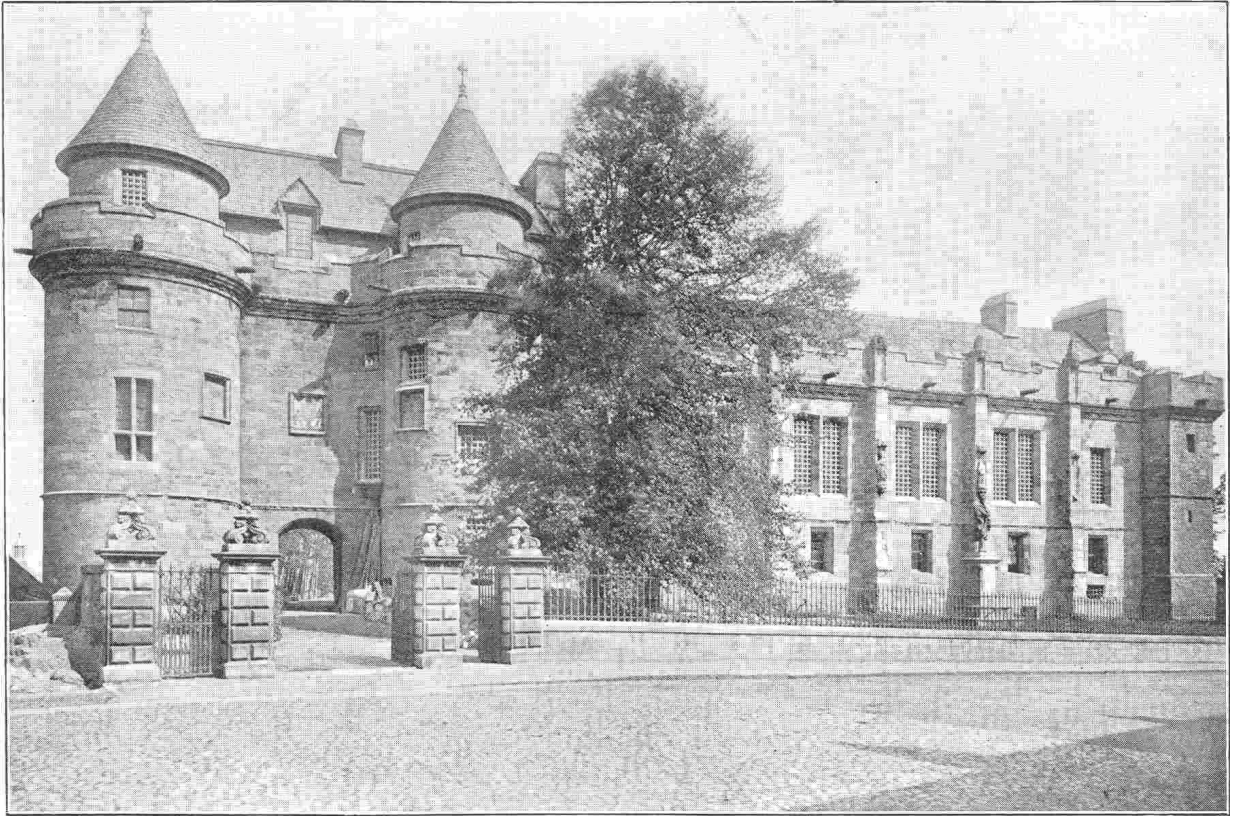
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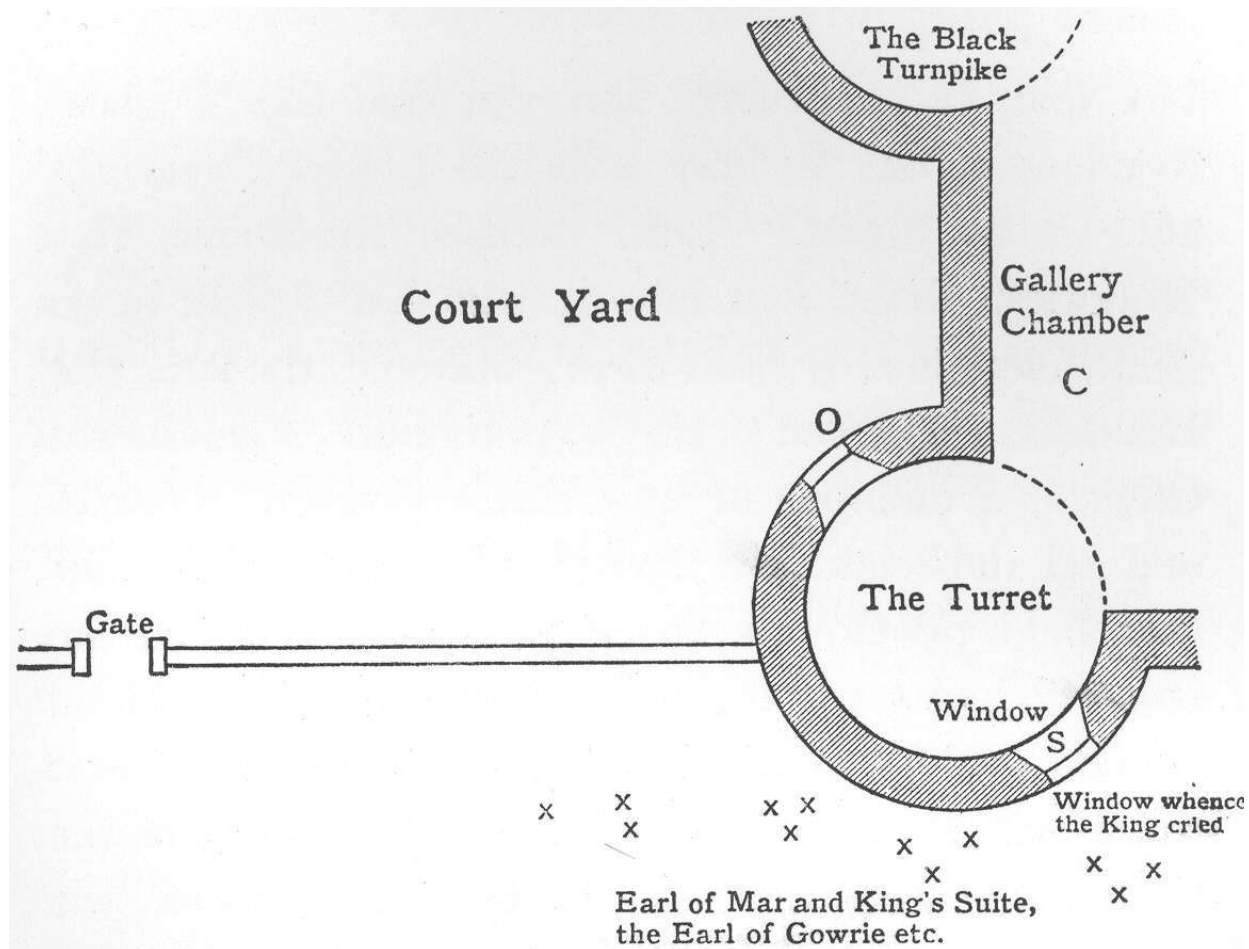
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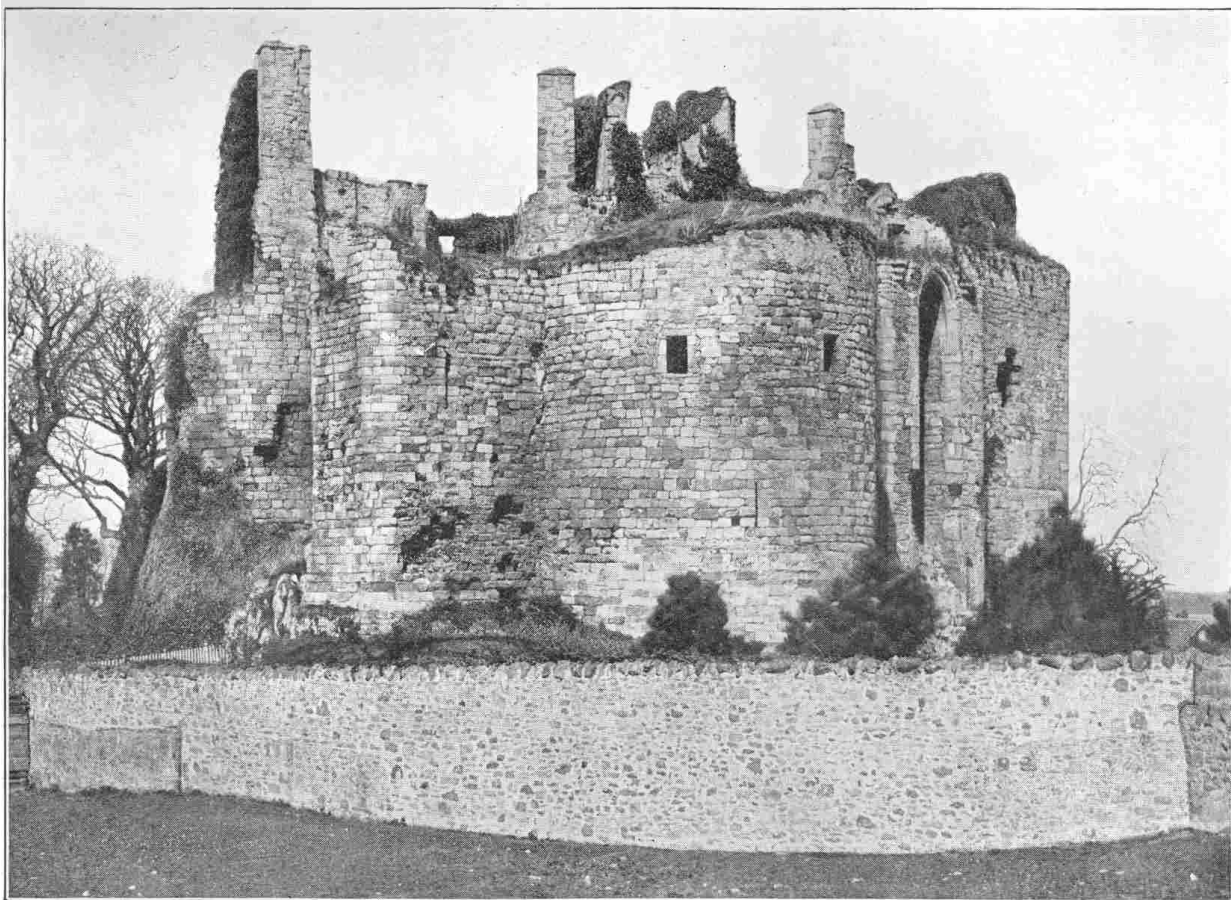
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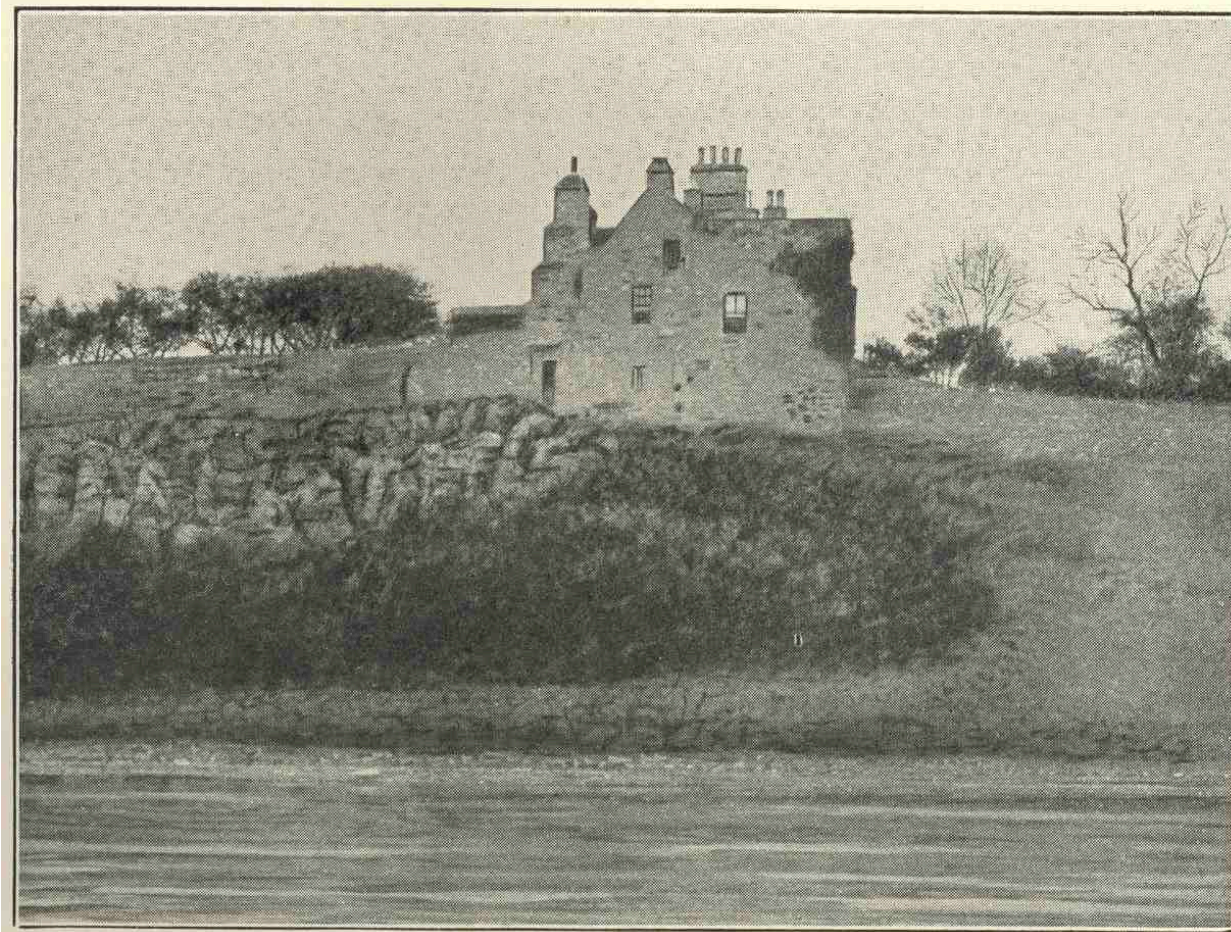
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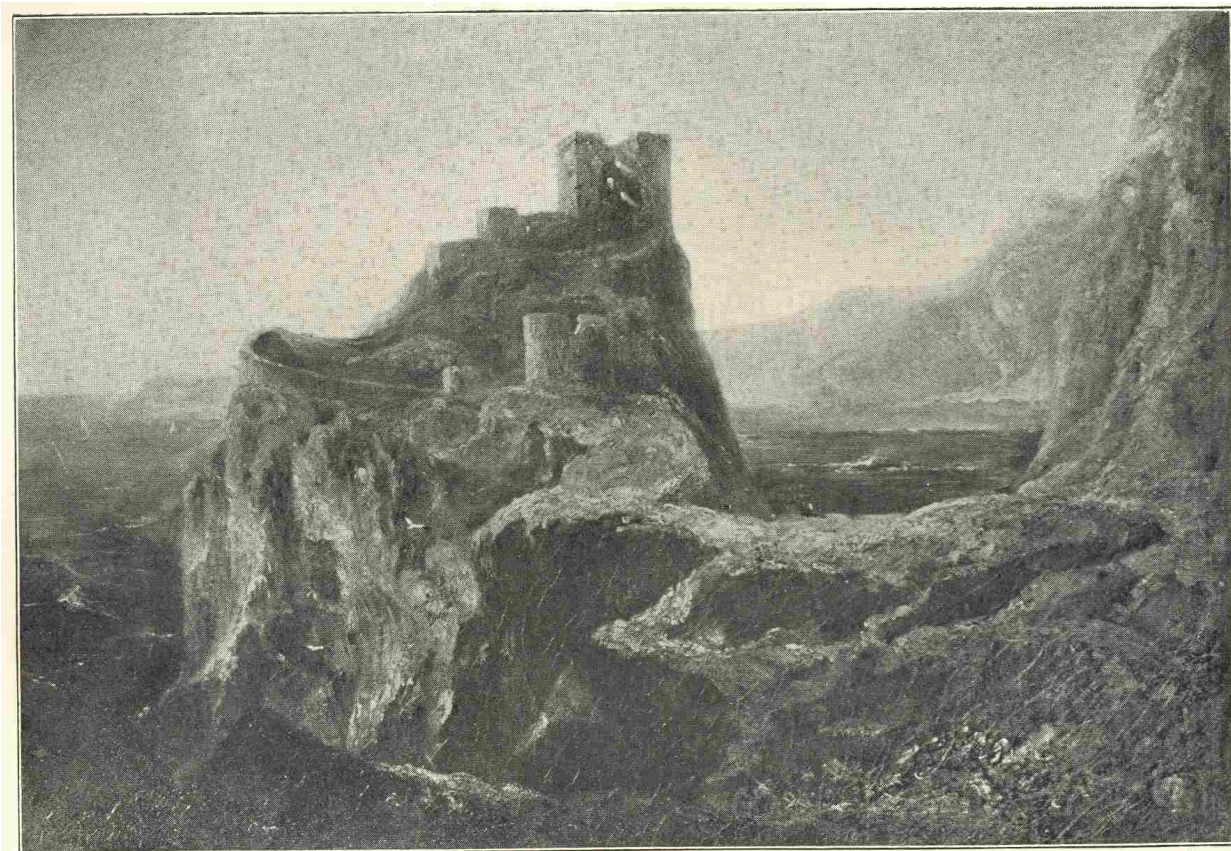
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